

SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING
DO-H8PAGE OF PAGES
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2. CONTRACT NUMBER	3. SOLICITATION NUMBER 80GSFC25R7005	4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	5. DATE ISSUED	6. REQUISITION/PURCHASE NUMBER 4200890223
7. ISSUED BY NASA Goddard Space Flight Center Greenbelt, Maryland 20771	CODE 171	8. ADDRESS OFFER TO (If other than item 7)		

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**

9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until _____ local time _____ (Hour) _____ (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL: 	A. NAME Bruce Tsai	B. TELEPHONE (NO COLLECT CALLS)		C. EMAIL ADDRESS Bruce.B.Tsai@nasa.gov
	AREA CODE 240	NUMBER 6840428	EXTENSION	

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OFFER (Must be fully completed by offeror)**NOTE:** Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8) 	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE
15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
15B. TELEPHONE NUMBER AREA CODE NUMBER EXTENSION	☐ 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE	18. OFFER DATE

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()	23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified) 	ITEM
24. ADMINISTERED BY (If other than Item 7)	25. PAYMENT WILL BE MADE BY CODE	
26. NAME OF CONTRACTING OFFICER (Type or print)	27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.AUTHORIZED FOR LOCAL REPRODUCTION
Previous edition is unusable**STANDARD FORM 33 (REV. 12/2022)**
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

PART I – THE SCHEDULE
SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS

1852.216-85 ESTIMATED COST AND AWARD FEE. (SEP 1993)

The estimated cost of this contract is \$TBP. The maximum available award fee is \$TBP. Total estimated cost and maximum award fee are \$TBP.

Sounder for Microwave-Based Applications Flight Model #1

The estimated cost of this item is \$TBP. The maximum available award fee is \$TBP. Total estimated cost and maximum award fee are \$TBP.

Sounder for Microwave-Based Applications Flight Model #2

The estimated cost of this item is \$TBP. The maximum available award fee is \$TBP. Total estimated cost and maximum award fee are \$TBP.

Sounder for Microwave-Based Applications Flight Model #3

The estimated cost of this item is \$TBP. The maximum available award fee is \$TBP. Total estimated cost and maximum award fee are \$TBP.

Sounder for Microwave-Based Applications Flight Model #4

The estimated cost of this item is \$TBP. The maximum available award fee is \$TBP. Total estimated cost and maximum award fee are \$TBP.

Note: Sections 2.6, 6.6.6, and 6.6.7 of Attachment A, Statement of Work shall be addressed with task orders issued under this contract. This clause does not cover task orders issued under this contract.

(End of clause)

1852.216-74 ESTIMATED COST AND FIXED FEE (DEC 1991)

The estimated cost of this contract is **to be negotiated by task order** exclusive of the fixed fee of **to be negotiated by task order**. The total estimated cost and fixed fee is **to be negotiated by task order**.

Note: Sections 2.6, 6.6.6, and 6.6.7 of Attachment A, Statement of Work shall be addressed with task orders issued under this contract. This clause exclusively covers task orders issued under this contract. This clause shall be exempt from all Earned Value Management System requirements.

(End of clause)

PART I – THE SCHEDULE
SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS

1852.232-81 CONTRACT FUNDING. (JUN 1990)

(a) For purposes of payment of cost, exclusive of fee, in accordance with the Limitation of Funds clause, the total amount allotted by the Government to this contract is \$TBD. This allotment is for contract performance and covers the following estimated period of performance: <see individual line items>

(b) An additional amount of \$TBD is obligated under this contract for payment of fee.

Sounder for Microwave-Based Applications Flight Model #1

(a) For purposes of payment of cost, exclusive of fee, in accordance with the Limitation of Funds clause, the total amount allotted by the Government to this item is \$TBD. This allotment is for contract performance and covers the following estimated period of performance: TBD.

(b) An additional amount of \$TBD is obligated under this item for payment of fee.

Sounder for Microwave-Based Applications Flight Model #2

(a) For purposes of payment of cost, exclusive of fee, in accordance with the Limitation of Funds clause, the total amount allotted by the Government to this item is \$TBD. This allotment is for contract performance and covers the following estimated period of performance: TBD.

(b) An additional amount of \$TBD is obligated under this item for payment of fee.

Sounder for Microwave-Based Applications Flight Model #3

(a) For purposes of payment of cost, exclusive of fee, in accordance with the Limitation of Funds clause, the total amount allotted by the Government to this item is \$TBD. This allotment is for contract performance and covers the following estimated period of performance: TBD.

(b) An additional amount of \$TBD is obligated under this item for payment of fee.

Sounder for Microwave-Based Applications Flight Model #4

(a) For purposes of payment of cost, exclusive of fee, in accordance with the Limitation of Funds clause, the total amount allotted by the Government to this item is \$TBD. This allotment is for contract performance and covers the following estimated period of performance: TBD.

(b) An additional amount of \$TBD is obligated under this item for payment of fee.

Task Order Requirements

(a) For purposes of payment of cost, exclusive of fee, in accordance with the Limitation of Funds clause, the total amount allotted by the Government to this item is \$TBD. This allotment is for contract performance and covers the following estimated period of performance: TBD.

(b) An additional amount of \$TBD is obligated under this item for payment of fee.

PART I – THE SCHEDULE
SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS

Note: Sections 2.6, 6.6.6, and 6.6.7 of Attachment A, Statement of Work shall be addressed with task orders issued under this contract. This section exclusively covers task orders issued under this contract. This section shall be exempt from all Earned Value Management System requirements.

(End of clause)

GSFC 52.216-90 MINIMUM/MAXIMUM AMOUNT OF SUPPLIES OR SERVICES (COST REIMBURSEMENT). (MAR 2022)

- (a) The minimum amount of supplies or services that shall be ordered during the effective period of this contract is **\$500,000.00**. The maximum amount of supplies or services that may be ordered during the effective period of this contract is **\$40,900,000**. All orders placed under this contract will be applied to the minimum and maximum specified in this paragraph.
- (b) The minimum amount is reached when the sum of the dollar amounts of all ordered supplies or services, except for any adjustments made pursuant to the Limitation of Cost or Limitation of Funds clause, equals or exceeds the minimum amount stated in paragraph (a).
- (c) The maximum amount is reached when the sum of the dollar amounts of all ordered supplies or services, except for any adjustments made pursuant to the Limitation of Cost or Limitation of Funds clause, equals the maximum amount stated in paragraph (a).
- (d) The maximum amount, if reached, precludes the issuance of further orders for supplies or services under this contract. However, reaching the maximum amount does not preclude adjustments to the dollar amounts of existing placed orders, for actions that are within the scope of the placed orders, and which are made pursuant to existing contract authority, such as the Changes clause.

Note: Sections 2.6, 6.6.6, and 6.6.7 of Attachment A, Statement of Work shall be addressed with task orders issued under this contract. This clause exclusively covers task orders issued under this contract. This clause shall be exempt from all Earned Value Management System requirements.

(End of clause)

GSFC 52.216-91 SUPPLEMENTAL TASK ORDERING PROCEDURES (COST REIMBURSEMENT). (APR 2022)

- (a) When the Government issues a request for a “task plan” to the Contractor in accordance with the Clause entitled “Task Ordering Procedure” of this contract, the Contractor shall prepare its estimate of the labor hours, labor categories, indirect costs, and other direct costs required to perform the task order requirements. The Contractor shall use only those

PART I – THE SCHEDULE
SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS

appropriate labor and indirect cost rates, which may be less than but shall not exceed the rates found in **Attachment K**, to calculate the proposed estimated costs for all task orders issued in accordance with the “Task Ordering Procedure” clause of this contract.

(b) RESERVED

(c) The Government and Contractor agree that the fixed fee percentage specified in **Attachment K** shall be used to calculate the fixed fee dollars on all task orders issued in accordance with the “Task Ordering Procedure” clause of this contract.

Note: Sections 2.6, 6.6.6, and 6.6.7 of Attachment A, Statement of Work shall be addressed with task orders issued under this contract. This clause exclusively covers task orders issued under this contract. This clause shall be exempt from all Earned Value Management System requirements.

(End of clause)

GSFC 52.211-90 SUPPLIES AND/OR SERVICES TO BE PROVIDED. (APR 2023)

The Contractor shall provide all resources (except as may be expressly stated in the contract as furnished by the Government) necessary to deliver and/or perform the items below in accordance with the Statement of Work (SOW), incorporated as Attachment A, task orders issued, and any other documents invoked by the contract terms and conditions.

Item	Description	Reference	Schedule	Delivery Method/Addresses
1	Services and Deliverables in accordance with Attachment A, SOW – Core Services	As Defined in Section J, Attachment A, SOW	As Defined in Attachment A, SOW	As Defined in Attachment A, SOW
2	Sounder for Microwave-Based Applications (SMBA) Flight Model 1	As Defined in Section J, Attachment A, SOW	Delivery Date of September 15, 2030	As Defined in Attachment A, SOW

PART I – THE SCHEDULE
SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS

3	SMBA Flight Model 1 Post-Observatory Commissioning On-Orbit Operations Task Support Requirements	As Defined in Individual Task Orders Issued	Through last SMBA Flight Model Launch + 18 months	As specified by individual task orders
4	SMBA Flight Model 2	As Defined in Section J, Attachment A, SOW	Delivery Date of September 15, 2031	As Defined in Attachment A, SOW
5	SMBA Flight Model 2 Post-Observatory Commissioning On-Orbit Operations Task Support Requirements	As Defined in Individual Task Orders Issued	Through last SMBA Flight Model Launch + 18 months	As specified by individual task orders
6	SMBA Flight Model 3	As Defined in Section J, Attachment A, SOW	Delivery Date of September 15, 2032	As Defined in Attachment A, SOW
7	SMBA Flight Model 3 Post-Observatory Commissioning On-Orbit Operations Task Support Requirements	As Defined in Individual Task Orders Issued	Through last SMBA Flight Model Launch + 18 months	As specified by individual task orders
8	SMBA Flight Model 4	As Defined in Section J, Attachment A, SOW	Delivery Date of September 15, 2033	As Defined in Attachment A, SOW

PART I – THE SCHEDULE
SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS

9	SMBA Flight Model 4 Post-Observatory Commissioning On-Orbit Operations Task Support Requirements	As Defined in Individual Task Orders Issued	Through last SMBA Flight Model Launch + 18 months	As specified by individual task orders
10	Option 1 (if exercised) – SMBA Flight Model 5	As Defined in Section J, Attachment A, SOW	Delivery Date of September 15, 2034	As Defined in Attachment A, SOW
11	Option 1 (if exercised) – SMBA Flight Model 5 Post-Observatory Commissioning On-Orbit Operations Task Support Requirements	As Defined in Individual Task Orders Issued	Through last SMBA Flight Model Launch + 18 months	As specified by individual task orders
12	Option 1 (if exercised) – SMBA Flight Model 6	As Defined in Section J, Attachment A, SOW	Delivery Date of September 15, 2035	As Defined in Attachment A, SOW
13	Option 1 (if exercised) – SMBA Flight Model 6 Post-Observatory Commissioning On-Orbit Operations Task Support Requirements	As Defined in Individual Task Orders Issued	Through last SMBA Flight Model Launch + 18 months	As specified by individual task orders
14	Option 1 (if exercised) –	As Defined in Section J,	Delivery Date of September 15, 2036	As Defined in Attachment A, SOW

PART I – THE SCHEDULE
SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS

	SMBA Flight Model 7	Attachment A, SOW		
15	Option 1 (if exercised) – SMBA Flight Model 7 Post-Observatory Commissioning On-Orbit Operations Task Support Requirements	As Defined in Individual Task Orders Issued	Through last SMBA Flight Model Launch + 18 months	As specified by individual task orders
16	Option 1 (if exercised) – SMBA Flight Model 8	As Defined in Section J, Attachment A, SOW	Delivery Date of September 15, 2037	As Defined in Attachment A, SOW
17	Option 1 (if exercised) – SMBA Flight Model 8 Post-Observatory Commissioning On-Orbit Operations Task Support Requirements	As Defined in Individual Task Orders Issued	Through last SMBA Flight Model Launch + 18 months	As specified by individual task orders
18	Documentation in accordance with Attachment N Applicable Documents Tables, Contract Data Requirements List	Section J Attachment N, Applicable Documents Tables, Contract Data Requirements List	As required by Attachment N, Applicable Documents Tables, Contract Data Requirements List	As required by Attachment N, Applicable Documents Tables, Contract Data Requirements List
19	Services and Deliverables in accordance with	As Defined in Individual Task Orders Issued	As Specified in Individual Task Orders Issued	As Specified in Individual Task Orders Issued

PART I – THE SCHEDULE
SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS

	Task Orders Issued	Attachment A, SOW, Sections 2.6, 6.6.6, and 6.6.7		
20	Task Plans	Section B GSFC 52.216-91 Section I NFS 1852.216-80	As Required in Clause NFS 1852.216-80	As specified by individual task orders
21	Reports of Work	Section H NFS 1852.235-73 Alternate II	As Required in Clauses NFS 1852.235-73 Alternate II	As specified in clauses
22	NASA Financial Management Reports	Section G GSFC 52.242-90 NFS 1852.242-73 Section J Attachment B	Monthly and Quarterly in accordance with Attachment B	Electronic Format/ Contracting Officer (CO), Contracting Officer's Representative (COR), Resource Analyst (RA), Regional Finance Office
23	Material Inspection and Receiving Reports (MIRR) (DD Form 250)	Section E NFS 1852.246-72 GSFC 52.246-94	At Time of Delivery	Hard Copy/CO, COR, and Receiving & Inspection
24	Foreign Travel Requests and Foreign Travel Reports	Section G NFS 1852.242-71 Section J	Foreign Travel Requests–30 days in Advance of Travel Foreign Travel Reports–Due within	As specified in CO's travel approval

PART I – THE SCHEDULE
SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS

		Attachment H	10 business days of the completion of travel.	
25	Requests for Government Property	Section G NFS 1852.245-70	30 Days Prior to Acquire Date	Electronic Format/CO
26	Financial Report of NASA Property in the Custody of Contractors (NF 1018)	Section G NFS 1852.245-73	Annual Report by October 15th and Final Report	NF 1018 Electronic Submission System (NESS)
27	Supplemental Financial Report of NASA Property in the Custody of Contractors	Section G GSFC 52.245-99	Monthly By the 21st of each Month and Final Report	Contractor-Held Asset Tracking System (CHATS) at https://chats.nasa.gov
28	Physical Inventory of Capital Personal Property Reporting	Section G NFS 1852.245-78	Within 10 Days of Annual Physical Inventory	Property Administrator
29	Reporting of Inventions	Section G NFS 1852.227-72 NFS 1852.227-70 Section I FAR 52.227-11	Interim Reports Every 12 Months (or sooner to preserve Patent Rights) and Final Report within 3 Months after Contract Completion	Electronic or Hard Copy Format/New Technology Representative or Patent Representative
30	Small Business Subcontracting Plan Reporting	Section H GSFC 52.219-90	ISR–Semi-Annual	Electronic Format/ Electronic Subcontract Reporting

PART I – THE SCHEDULE
SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS

		Section I NFS 1852.219-75	(April 30th and October 30th) and Final SSR–Annual (October 30th)	System (eSRS) http://www.esrs.gov
31	Safety & Health Plan	Section H FAR 52.236-13-- Alternate I as modified by NFS 1823.7001(d)(1)	30 Days After Contract Award	Electronic Format/CO
32	Safety & Health Reporting	Section H NFS 1852.223-70 NFS 1852.223-75 GSFC 52.223-91	Monthly/Quarterly Reports and As Required	NASA Mishap Information System (NMIS)
33	Personal Identity Verification (PIV) Documentation and Reporting	Section H GSFC 52.204-99	10th Day of the Month and As Required	Electronic Format and Hard Copy/COR & Code 240
34	Supply Chain Visibility (SCV) Reporting	Section J Attachment C, Data Requirements Document (DRD) 3	In accordance with Attachment C, DRD 3	Electronic Format/CO
35	Cyber Supply Chain Risk Management (C-SCRM) Plan	Section J Attachment C, DRD 2	In accordance with Attachment C, DRD 2	In accordance with Attachment C, DRD 2
36	Certificate of Insurance	Section I	As Specified by FAR 52.228-7	Electronic Format/CO

PART I – THE SCHEDULE
SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS

		FAR 52.228-7 NFS 1852.228-75		
37	Subcontract Notification	Section I FAR 52.244-2	30 Days Prior to Subcontract Award Date	Electronic or Hard Copy Format/CO
38	Security Requirements for Unclassified IT Resources	Section I 1852.204-76 (Deviation) Section J Attachment C, DRD 2	As specified by 1852.204-76 (Deviation) and Attachment C, DRD 2	As specified in clause deviation and DRD
39	FASCSA Reporting	Section I 52.204-30	As specified by FAR 52.204-30	As specified by FAR 52.204-30

NOTE: Unless otherwise specified, “day” means “calendar day”.

NOTE: Transportation Classification: The contractor shall comply with Section D clause 1852.211-70 PACKAGING, HANDLING, AND TRANSPORTATION. Items 2, 4, 6, 8, 10, 12, 14, 16 and any additional item labeled SMBA Flight Model shall be considered Class I. All other deliverables, unless specified (electronic format, etc.), are considered Class IV and shall be shipped via the most advantageous commercial transportation means considered to be in the best interest of the Government.

(End of clause)

GSFC 52.217-91 OPTION FOR INCREASED QUANTITY. (SEP 2013)

In accordance with the Option for Increased Quantity--Separately Priced Line Item clause of this contract, the Government may increase the quantity of items as follows:

The Government shall maintain the right to exercise **Option 1** (inclusive of all Option 1 line items in the table below) prior to September 14, 2030.

PART I – THE SCHEDULE
SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS

Option	Description	Qty	[Delivery Date and Launch Readiness Date]	Amount	
1	SMBA Flight Model 5	1	Within Section B, Clause GSFC 52.211-90, Item 10, Insert: “Delivery Date of September 15, 2034” Within Section H, Clause 52.243-91, Insert: “SMBA Flight Model 5 Launch Date of September 15, 2038”	Estimated Cost	\$TBP
				Maximum Available Award Fee	\$TBP
				Total CPAF	\$TBP
1	SMBA Flight Model 6	1	Within Section B, Clause GSFC 52.211-90, Item 12, Insert: “Delivery Date of September 15, 2035” Within Section H, Clause 52.243-91, Insert: “SMBA Flight Model 6 Launch Date of September 15, 2039”	Estimated Cost	\$TBP
				Maximum Available Award Fee	\$TBP
				Total CPAF	\$TBP
1	SMBA Flight Model 7	1	Within Section B, Clause GSFC 52.211-90, Item 14, Insert: “Delivery Date of September 15, 2036” Within Section H, Clause 52.243-91, Insert: “SMBA Flight Model 7 Launch Date of September 15, 2041”	Estimated Cost	\$TBP
				Maximum Available Award Fee	\$TBP
				Total CPAF	\$TBP
1	SMBA Flight Model 8	1	Within Section B, Clause GSFC 52.211-90, Item 16, Insert: “Delivery Date of September 15, 2037” Within Section H, Clause 52.243-91, Insert: “SMBA Flight Model 8 Launch Date of September 15, 2042”	Estimated Cost	\$TBP
				Maximum Available Award Fee	\$TBP
				Total CPAF	\$TBP

PART I – THE SCHEDULE
SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS

This option may be exercised by the Contracting Officer by written notice to the Contractor within the time period specified in this clause and FAR clause 52.217-7, "Option for Increased Quantity--Separately Priced Line Item" of this contract.

(End of clause)

GSFC 52.232-94 ESTIMATED COST INCREASES. (DEC 2005)

(a) The Contractor shall notify the Contracting Officer in writing when the Contractor has reason to believe that the total cost for performance of this contract, or any individual task order, exclusive of any fee, will be either greater or substantially less than the total estimated cost stated in this contract or in the task order. Notification shall not be delayed pending preparation of a proposal.

(b) A proposal is required to support a request for an increase in the estimated cost of the contract or the task order. The proposal should be submitted as soon as possible after the above notification but no later than 115 days before the incurred costs are expected to exceed the estimated cost. This will allow adequate time for the Government to evaluate the proposal and to mutually establish any increase in estimated cost with the Contractor.

(c)(1) The proposal shall be submitted in the following format unless some other format is directed or approved by the Contracting Officer:

Incurred costs to date

Projected cost to completion

Total cost at completion

Current negotiated estimated cost

Requested increase in estimated cost

(2) The "projected cost to completion" shall consist of the following "other than cost or pricing data" unless the Contracting Officer requests or approves the submittal of a greater or lesser amount of information:

(i) Elements of cost with supporting detail for estimated direct labor hours, direct and indirect rates, materials and subcontracts, and other elements.

(ii) Supporting explanation for the increases and projections, sufficient for the Government to understand the reasons for the increased estimated cost.

(End of clause)

PART I – THE SCHEDULE
SECTION C - DESCRIPTION/SPECIFICATIONS/STATEMENT OF WORK

GSFC 52.211-91 SCOPE OF WORK. (FEB 2016)

The Contractor shall provide the personnel, materials, and facilities, except as otherwise specified in this contract, necessary to perform the work and to furnish the items specified in the Section B clause 52.211-90 SUPPLIES AND/OR SERVICES TO BE PROVIDED in accordance with the Statement of Work, Attachment A, task orders, and all other referenced requirements.

The Contractor shall provide all the personnel, materials, and facilities, except otherwise specified in this contract, necessary to perform all requirements within the Section J clause GSFC 52.211-101 LIST OF ATTACHMENTS.

(End of clause)

GSFC 52.227-90 LIMITED RIGHTS DATA OR RESTRICTED COMPUTER SOFTWARE. (MAR 2008)

In accordance with the delivery requirements of this contract, all software data rights shall be delivered in accordance with the Rights in Data – General clause, specified elsewhere in this contract, except for the following:

NONE

(End of clause)

PART I – THE SCHEDULE
SECTION D - PACKAGING AND MARKING

Clauses incorporated by reference:

NASA FAR SUPPLEMENT (48 CFR CHAPTER 18) CLAUSES:

1852.211-70 PACKAGING, HANDLING, AND TRANSPORTATION. (SEP 2005)

(End of by reference clauses)

**1852.245-74 IDENTIFICATION AND MARKING OF GOVERNMENT EQUIPMENT.
(JAN 2011)**

(a) The Contractor shall identify all equipment to be delivered to the Government using NASA Technical Handbook (NASA-HDBK) 6003, Application of Data Matrix Identification Symbols to Aerospace Parts Using Direct Part Marking Methods/Techniques, and NASA Standard (NASA-STD) 6002, Applying Data Matrix Identification Symbols on Aerospace Parts or through the use of commercial marking techniques that: (1) are sufficiently durable to remain intact through the typical lifespan of the property: and, (2) contain the data and data format required by the standards. This requirement includes deliverable equipment listed in the schedule and other equipment when no longer required for contract performance and NASA directs physical transfer to NASA or a third party. The Contractor shall identify property in both machine and human readable form unless the use of a machine readable-only format is approved by the NASA Industrial Property Officer.

(b) Equipment shall be marked in a location that will be human readable, without disassembly or movement of the equipment, when the items are placed in service unless such placement would have a deleterious effect on safety or on the item's operation.

(c) Concurrent with equipment delivery or transfer, the Contractor shall provide the following data in an electronic spreadsheet format:

- (1) Item Description.
- (2) Unique Identification Number (License Tag).
- (3) Unit Price.
- (4) An explanation of the data used to make the unique identification number.

(d) For equipment no longer needed for contract performance and physically transferred under paragraph (a) of this clause, the following additional data is required:

PART I – THE SCHEDULE
SECTION D - PACKAGING AND MARKING

(1) Date originally placed in service.

(2) Item condition.

(e) The data required in paragraphs (c) and (d) of this clause shall be delivered to the NASA center receiving activity listed below:

Goddard Space Flight Center
Building 35, Code 279
Greenbelt, MD 20771

(f) The contractor shall include the substance of this clause, including this paragraph (f), in all subcontracts that require delivery of equipment.

(End of clause)

PART I – THE SCHEDULE
SECTION E - INSPECTION AND ACCEPTANCE

Clauses incorporated by reference:

FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1):

52.246-8 INSPECTION OF RESEARCH AND DEVELOPMENT - COST-REIMBURSEMENT. (MAY 2001)

(End of by reference clauses)

52.246-11 HIGHER-LEVEL CONTRACT QUALITY REQUIREMENT. (DEC 2014)

(a) The Contractor shall comply with the higher-level quality standard(s) listed below.

As defined in Attachment N, Applicable Documents Tables, Instrument Mission Assurance Requirements (NS1-SMA-REQ-0002)

(b) The Contractor shall include applicable requirements of the higher-level quality standard(s) listed in paragraph (a) of this clause and the requirement to flow down such standards, as applicable, to lower-tier subcontracts, in-

(1) Any subcontract for critical and complex items (see [46.203\(b\)](#) and (c)); or

(2) When the technical requirements of a subcontract require-

(i) Control of such things as design, work operations, in-process control, testing, and inspection; or

(ii) Attention to such factors as organization, planning, work instructions, documentation control, and advanced metrology.

(End of clause)

1852.246-71 GOVERNMENT CONTRACT QUALITY ASSURANCE FUNCTIONS. (OCT 1988)

In accordance with the inspection clause of this contract, the Government intends to perform quality assurance functions in accordance with Attachment N, Applicable Documents Tables, Instrument Mission Assurance Requirements (NS1-SMA-REQ-0002).

PART I – THE SCHEDULE
SECTION E - INSPECTION AND ACCEPTANCE

(End of clause)

1852.246-72 MATERIAL INSPECTION AND RECEIVING REPORT. (APR 2015)

(a) At the time of each delivery to the Government under this contract, the Contractor shall prepare and furnish a Material Inspection and Receiving Report (DD Form 250 series). The form(s) shall be prepared and distributed as follows:

(1) Via mail and marked "Advance Copy", one copy each to the Contracting Officer, the Contracting Officer's Representative (if designated in the contract), and to the cognizant Administrative Contracting Officer, if any.

(2) Via mail, the original and 1 copy (unfolded) to the shipment address (delivery point) specified in Section F of this contract. Mark the exterior of the envelope "CONTAINS DD FORM 250". This must arrive prior to the shipment.

(3) With shipment in waterproof envelope (one copy) for the consignee.

(4) If the shipment address is not directly to the Goddard Space Flight Center (Greenbelt) or Goddard Space Flight Center (Wallops) central receiving areas, then one copy of the DD Form 250 must be provided (via mail) to one of the following addresses depending upon whether this contract is with GSFC Greenbelt or GSFC Wallops:

Receiving and Inspection (Code 279), Goddard Space Flight Center, Greenbelt, MD 20771.

Receiving and Inspection (Bldg. F16), Wallops Flight Facility, Wallops Island VA 23337.

(b) The Contractor shall prepare the DD Form 250 in accordance with NASA FAR Supplement 1846.6. The Contractor shall enclose the copies of the DD Form 250 in the package or seal them in a waterproof envelope, which shall be securely attached to the exterior of the package in the most protected location.

(c) When more than one package is involved in a shipment, the Contractor shall list on the DD Form 250, as additional information, the quantity of packages and the package numbers. The Contractor shall forward the DD Form 250 with the lowest numbered package of the shipment and print the words "CONTAINS DD FORM 250" on the package.

(End of clause)

GSFC 52.246-93 ACCEPTANCE -- LOCATION(S). (APR 2022)

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SECTION E - INSPECTION AND ACCEPTANCE

The Contracting Officer or authorized representative will accomplish acceptance at the following location(s):

Deliverable Item No.	Location	Event/Milestone	Authorized Representative
1	As Defined in Attachment A, SOW	As Defined in Attachment A, SOW	Contracting Officer or Contracting Officer's Representative
2, 4, 6, 8, 10, 12, 14, 16	Spacecraft Contractor Facility	Post-Spacecraft Integration Instrument Checkout	Contracting Officer or Contracting Officer's Representative
3, 5, 7, 9, 11, 13, 15, 17	As Defined in Attachment A, SOW and Individual Task Order	As Defined in Attachment A, SOW and Individual Task Order	Contracting Officer or Contracting Officer's Representative
18	NASA Goddard Space Flight Center (GSFC)	As Defined in Attachment N, Applicable Documents Tables, Contract Data Requirements List	Contracting Officer or Contracting Officer's Representative
19-39	NASA GSFC	As required by each applicable Contract clause or Individual Task Order	Contracting Officer or Contracting Officer's Representative

The Contracting Officer reserves the right to designate other Government agents as authorized representatives. The Contractor will be notified by a written notice or by a copy of the delegation letter if other agents are authorized.

(End of clause)

GSFC 52.246-94 MATERIAL INSPECTION AND RECEIVING REPORT NOT REQUIRED. (APR 1989)

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NASA FAR Supplement clause 1852.246-72 of this contract requires the furnishing of a Material Inspection and Receiving Report (MIRR) (DD Form 250 series) at the time of each delivery under this contract. However, a MIRR is not required for the following deliverable items:

All items except for Items 2, 4, 6, 8, 10, 12, 14, 16 identified in Section B, Clause GSFC 52.211-90 SUPPLIES AND/OR SERVICES TO BE PROVIDED. (APR 2023).

(End of clause)

GSFC 52.246-102 INSPECTION SYSTEM RECORDS. (APR 2013)

The Contractor shall maintain records evidencing inspections in accordance with the Inspection clause of this contract for six (6) years after delivery of all items and/or completion of all services called for by the contract.

(End of clause)

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SECTION F - DELIVERIES OR PERFORMANCE

Clauses incorporated by reference:

FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1):

52.242-15 STOP-WORK ORDER. (AUG 1989) ALTERNATE I (APR 1984)

(End of by reference clauses)

**GSFC 52.217-92 PERIOD OF PERFORMANCE/EFFECTIVE ORDERING PERIOD
(JAN 2014)**

The effective ordering period of this contract shall be from the contract effective date to the last SMBA Flight Model Launch + 18 months.

Note: Sections 2.6, 6.6.6, and 6.6.7 of Attachment A, Statement of Work shall be addressed with task orders issued under this contract. This clause exclusively covers task orders issued under this contract. This clause shall be exempt from all Earned Value Management System requirements.

(End of clause)

1852.247-72 ADVANCE NOTICE OF SHIPMENT. (OCT 1988)

14 work days prior to shipping Items 2, 4, 6, 8, 10, 12, 14, 16 identified in Section B, Clause GSFC 52.211-90 SUPPLIES AND/OR SERVICES TO BE PROVIDED. (APR 2023), the Contractor shall furnish the anticipated shipment date, bill of lading number (if applicable), and carrier identity to the designated COR and to the Contracting Officer.

(End of clause)

GSFC 52.247-95 SHIPPING INSTRUCTIONS--NON-CENTRAL RECEIVING. (FEB 2016)

Shipment of the items required under this contract shall be to:

Item Number Address Marked For

Item	Description	Qty	Address	Marked for
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PART I – THE SCHEDULE
SECTION F - DELIVERIES OR PERFORMANCE

1	Deliverables in accordance with Attachment A, SOW – Core Services	As Defined in Attachment A, SOW	As Defined in Attachment A, SOW	Code 473
2	SMBA Flight Model 1	1	Spacecraft Contractor Facility	Code 473
4	SMBA Flight Model 2	1	Spacecraft Contractor Facility	Code 473
6	SMBA Flight Model 3	1	Spacecraft Contractor Facility	Code 473
8	SMBA Flight Model 4	1	Spacecraft Contractor Facility	Code 473
10	Option 1 (if exercised) – SMBA Flight Model 5	1	Spacecraft Contractor Facility	Code 473
12	Option 1 (if exercised) – SMBA Flight Model 6 (if exercised)	1	Spacecraft Contractor Facility	Code 473
14	Option 1 (if exercised) – SMBA Flight Model 7 (if exercised)	1	Spacecraft Contractor Facility	Code 473
16	Option 1 (if exercised) – SMBA Flight Model 8 (if exercised)	1	Spacecraft Contractor Facility	Code 473

Compliance with this clause is necessary to assure verification of delivery and acceptance and prompt payment.

If any of the above shipping addresses are to the Goddard Space Flight Center, Greenbelt, Maryland, delivery personnel must first stop at Receiving Officer Building 35 to provide a copy of the receiving report (DD 250) to Receiving personnel before making delivery to the on-site

PART I – THE SCHEDULE
SECTION F - DELIVERIES OR PERFORMANCE

location(s) specified above. If this is a fixed price type contract, failure to provide the DD 250 to Receiving may result in reduction or non-payment by the Government of any interest penalty under the Prompt Payment Act.

(End of clause)

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Clauses incorporated by reference:

NASA FAR SUPPLEMENT (48 CFR CHAPTER 18) CLAUSES:

1852.216-75 PAYMENT OF FIXED FEE (DEC 1988)

1852.223-71 AUTHORIZATION FOR RADIO FREQUENCY USE. (APR 2015)

1852.227-70 NEW TECHNOLOGY—OTHER THAN A SMALL BUSINESS FIRM OR
NONPROFIT ORGANIZATION. (APR 2015)

1852.227-72 DESIGNATION OF NEW TECHNOLOGY REPRESENTATIVE AND PATENT
REPRESENTATIVE. (APR 2015)

1852.227-86 COMMERCIAL COMPUTER SOFTWARE LICENSE. (APR 2015)

1852.242-71 TRAVEL OUTSIDE OF THE UNITED STATES. (DEC 1988)

1852.242-73 NASA CONTRACTOR FINANCIAL MANAGEMENT REPORTING. (NOV
2004)

1852.245-70 CONTRACTOR REQUESTS FOR GOVERNMENT-FURNISHED PROPERTY.
(AUG 2015)

1852.245-75 PROPERTY MANAGEMENT CHANGES. (JAN 2011)

1852.245-78 PHYSICAL INVENTORY OF CAPITAL PERSONAL PROPERTY. (AUG 2015)

(End of by reference clauses)

1852.216-77 AWARD FEE FOR END ITEM CONTRACTS. (AUG 2016)

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SECTION G - CONTRACT ADMINISTRATION DATA

(a) The contractor can earn award fee, or base fee, if any, from a minimum of zero dollars to the maximum stated in NASA FAR Supplement clause 1852.216-85, “Estimated Cost and Award Fee” in this contract. All award fee evaluations, with the exception of the last evaluation, will be interim evaluations. At the last evaluation, which is final, the Contractor's performance for the entire contract will be evaluated to determine total earned award fee. No award fee or base fee will be paid to the Contractor if the final award fee evaluation is “poor/unsatisfactory.”

(b) Beginning 6* months after the effective date of this contract, the Government will evaluate the Contractor's interim performance every 6* months to monitor Contractor performance prior to contract completion and to provide feedback to the Contractor. The evaluation will be performed in accordance with the Performance Evaluation Plan to this contract. The Contractor may submit a self-evaluation of performance for each period under consideration. These self-evaluations will be considered by the Government in its evaluation. The Government will advise the Contractor in writing of the evaluation results. The plan may be revised unilaterally by the Government prior to the beginning of any rating period to redirect emphasis.

(c)(1) Base fee, if applicable, will be paid in monthly installments based on the percent of completion of the work as determined by the Contracting Officer.

(2) Interim award fee payments will be made to the Contractor based on each interim evaluation. The amount of the interim award fee payment is limited to the lesser of the interim evaluation score or 80 percent of the fee allocated to that period less any provisional payments made during the period. All interim award fee payments will be superseded by the final award fee determination.

(3) Provisional award fee payments will be made under this contract pending each interim evaluation. If applicable, provisional award fee payments will be made to the Contractor on a monthly basis. The amount of award fee which will be provisionally paid in each evaluation period is limited to 80 percent of the prior interim evaluation score, except for the first evaluation period which is limited to 80 percent of the available award fee for that evaluation period (see NFS 1816.405-276). Provisional award fee payments made each evaluation period will be superseded by the interim award fee evaluation for that period. If provisional payments made exceed the interim evaluation score, the Contractor will either credit the next payment voucher for the amount of such overpayment or refund the difference to the Government, as directed by the Contracting Officer. If the Government determines that (i) the total amount of provisional fee payments will apparently *substantially* exceed the anticipated final evaluation score, or (ii) the prior interim evaluation is “poor/unsatisfactory,” the Contracting Officer will direct the suspension or reduction of the future payments and/or request a prompt refund of excess payments as appropriate. Written notification of the determination will be provided to the Contractor with a copy to the Deputy Chief Financial Officer (Finance).

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(4) All interim (and provisional, if applicable) fee payments will be superseded by the fee determination made in the final award fee evaluation. The Government will then pay the Contractor, or the Contractor will refund to the Government the difference between the final award fee determination and the cumulative interim (and provisional, if applicable) fee payments. If the final award fee evaluation is “poor/unsatisfactory”, any base fee paid will be refunded to the Government.

(5) Payment of base fee, if applicable, will be made based on submission of an invoice by the Contractor. Payment of award fee will be made by the NASA Shared Services Center based on the receipt of the fee voucher submitted by the Contractor in accordance with Section G, clause 1852.232-80 SUBMISSION OF VOUCHERS FOR PAYMENT.

(d) The Contracting Officer may direct the withholding of interim award fee payments until a reserve is set aside in an amount that the Contracting Officer considers necessary to protect the Government's interest relative to an orderly and timely closeout of the contract. This reserve shall not exceed 15 percent of the contracts total potential award fee or \$100,000, whichever is less.

(e) Award fee determinations are unilateral decisions made solely at the discretion of the Government.

* [A period of time greater or lesser than 6 months may be substituted in accordance with 1816.405-272(a).]

Note 1: This clause does not cover task orders issued under this contract which are under a Fixed Fee line item.

Note 2: This clause uses language that presumes a single end item deliverable and single final award fee evaluation. This contract contains up to eight end item deliverables (four end item deliverables with an option for an additional four end item deliverables) that each have separate award fee values.

Within this clause: 1. The terms “interim”, “last”, and “final” evaluation shall apply discretely to each individual SMBA instrument and its associated award fee amount in clause 1852.216-85 ESTIMATED COST AND AWARD FEE; 2. The phrase “entire contract” shall be defined as “entire SMBA Flight Model 1 effort”, “entire SMBA Flight Model 2 effort”, “entire SMBA Flight Model 3 effort”, “entire SMBA Flight Model 4 effort”, “entire SMBA Flight Model 5 effort”, “entire SMBA Flight Model 6 effort”, “entire SMBA Flight Model 7 effort”, and “entire SMBA Flight Model 8 effort”, as appropriate; and 3. The phrase “final award fee evaluation” and “contract completion” shall occur at Satellite pre-ship review or Satellite pre-storage review, whichever is earlier.

Note 3: Within this clause, the payment and payment process associated with each “final award fee evaluation” shall be superseded by Section G, clause AWARD FEE – OPERATIONAL ON-ORBIT PERFORMANCE EVALUATION AND PAYBACK PROCESS FOR SMBA FLIGHT

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MODEL 1 AND FLIGHT MODEL 5 or clause AWARD FEE – OPERATIONAL ON-ORBIT PERFORMANCE EVALUATION AND PAYBACK PROCESS FOR SMBA FLIGHT MODEL 2, FLIGHT MODEL 3, FLIGHT MODEL 4, FLIGHT MODEL 6. FLIGHT MODEL 7, FLIGHT MODEL 8

(End of clause)

AWARD FEE – OPERATIONAL ON-ORBIT PERFORMANCE EVALUATION AND PAYBACK PROCESS FOR SMBA FLIGHT MODEL 1 AND FLIGHT MODEL 5

This clause describes the evaluation procedures and establishes the repayment process (in the event of degraded or failed performance) for the On-Orbit Performance Evaluations of the SMBA Flight Model 1 and Flight Model 5. In accordance with Section G, clause 1852.216-77 AWARD FEE FOR END ITEM CONTRACTS, upon completion of each SMBA Instrument's final award fee evaluation, the associated payment shall be subject to this clause.

The final award fee evaluation for each SMBA Instrument shall determine: a) the final end-item award fee score; b) the amount of final end item award fee earned for pre-on-orbit performance which is not subject to repayment terms (30% of the final end item award fee earned); and c) the amount of award fee provisionally paid that is subject to on-orbit performance yet to be measured (70% of the final end item award fee earned). The procedures described below pertain only to the 70% award fee provisionally paid that is subject to on-orbit evaluation and potential fee repayment.

On-orbit evaluations are made based upon operational on-orbit performance, which begins 6 months after launch of the SMBA Instrument. The measured Noise Equivalent Differential Temperature (NEDT) values shall be as computed by the operational Sensor Data Records (SDR) algorithm, and the evaluations are contingent upon the instrument mounting interface temperature being maintained by the spacecraft within the limits specified in the Interface Control Documents (ICD). Operational on-orbit performance is evaluated against the following evaluation criteria (note: A failed channel or loss of channel shall be defined as NEDT greater than or equal to 2x specification value. A channel that does not meet requirements shall be defined as NEDT greater than specification value, but less than 2x specification value):

Fully Operational – no reduction in fee (No instrument function failures)

Criteria: All frequency bands meet requirements.

Slightly Degraded – 15% reduction in fee (Minor performance degradation)

Criteria: Any frequency band does not meet requirements.

Degraded – 40% reduction in fee (Significant performance degradation).

Criteria: Loss of 30% or more of the output channels in any frequency band.

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Severely Degraded – 75% reduction in fee (Significant loss of capability).

Criteria: Loss of 20% or more of the output channels in the temperature frequency band (50-60 GHz and 114-119 GHz) or loss of 20% or more of the output channels in the water vapor frequency band (165-184 GHz).

Failed – 100% reduction in fee (No useable data; no data)

Criteria: Loss of 40% or more of output channels in the temperature frequency band (50-60 GHz)

Any reductions in on-orbit fee for degraded/failed performance classification shall be prorated for the amount of time during the period in which the instrument was in that classification(s). Using an example from the table below: for Period L + 1.5 years, the instrument was in fully operational status 50% of the period and slightly degraded condition 50% of the period. Therefore, the repayment for Period L + 1.5 years is $5.25\% \times 50\% = 2.625\%$.

Provisionally paid on-orbit fee will be finalized with each on-orbit evaluation period. In the event of a launch failure or other catastrophic failure during the first period of on-orbit performance for which the Contractor is not responsible, either in whole or in part, the associated on-orbit fee for the instrument will be finalized at that time and considered earned in full. In the event of a catastrophic failure for which the Contractor is not responsible, either in whole or in part, after the first on-orbit evaluation fee period, the FDO shall determine what portion, if any, of the on-orbit fee shall be finalized based upon previous on-orbit performance evaluation(s) and any other data that indicates what the future performance would have been. In the event of a catastrophic failure for which the Contractor is in part responsible, but not wholly responsible, the FDO shall determine what portion, if any, of the on-orbit performance fee shall be finalized. However, if the instrument fails to perform at all and the instrument contractor is 100% responsible, the Contractor shall refund the entire amount of the provisionally paid on-orbit performance award fee, but keep the total amount of the pre-on-orbit award fee earned at the final award fee evaluation. If the instrument fails completely during any period after the first on-orbit evaluation period and the instrument Contractor is 100% responsible, the Contractor will again get to keep the total pre-on-orbit performance award fee earned that was paid upon the final award fee evaluation plus the amount of all on-orbit performance fee determinations finalized in each on-orbit evaluation period prior to the period in which the failure occurred. The Government has the unilateral right to determine when the instrument has failed completely with no potential for recovery in a subsequent period, and can therefore require payback for all unevaluated periods when such a determination is made.

Each on-orbit evaluation is considered to be a final evaluation. The Government will notify the Contractor in writing of the on-orbit performance assessment after the conclusion of each evaluation period, and indicate the amount of fee, if any, that is to be repaid. The Contractor shall pay back to the Government any provisional paid award fee for on-orbit performance that was not earned for that period.

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The table below indicates the specific portions of the total on-orbit fee pool associated with each on-orbit evaluation, and the payback percentages in the event of degraded/failed performance:

Percentages below reflect repayment amount (as a percentage of the total on-orbit pool) in the event that the specific degraded/failed condition(s) occurs:						
Evaluation Period (L=Launch)	Portion of On-Orbit Pool evaluated	Fully Operational	Slightly Degraded	Degraded	Severely Degraded	Total Mission Loss
L+1.5 years	50%	0%	5.25%	14.00%	26.25%	35%
L+2.5 years	20%	0%	4.50%	12.00%	22.50%	30%
L+3.5 years	20%	0%	3.75%	10.00%	18.75%	25%
L+5 years	10%	0%	1.50%	4.00%	7.50%	10%
Total	100%	0%	15%	40%	75%	100%

(End of text)

AWARD FEE – OPERATIONAL ON-ORBIT PERFORMANCE EVALUATION AND PAYBACK PROCESS FOR SMBA FLIGHT MODEL 2, FLIGHT MODEL 3, FLIGHT MODEL 4, FLIGHT MODEL 6, FLIGHT MODEL 7, FLIGHT MODEL 8

This clause describes the evaluation procedures and establishes the repayment process (in the event of degraded or failed performance) for the On-Orbit Performance Evaluations of the SMBA Flight Model 2, Flight Model 3, Flight Model 4, Flight Model 6, Flight Model 7, and Flight Model 8 only. In accordance with Section G, clause 1852.216-77 AWARD FEE FOR END ITEM CONTRACTS, upon completion of each SMBA Instrument's final award fee evaluation, the associated payment shall be subject to this clause.

The final award fee evaluation for each SMBA Instrument shall determine: a) the final end-item award fee score; b) the amount of final end item award fee earned for pre-on-orbit performance which is not subject to repayment terms (70% of the final end item award fee earned); and c) the amount of award fee provisionally paid that is subject to on-orbit performance yet to be measured (30% of the final end item award fee earned). The procedures described below pertain only to the 30% award fee provisionally paid that is subject to on-orbit evaluation and potential fee repayment.

On-orbit evaluations are made based upon operational on-orbit performance, which begins 6 months after launch of the SMBA Instrument. The measured Noise Equivalent Differential Temperature (NEDT) values shall be as computed by the operational Sensor Data Records (SDR) algorithm, and the evaluations are contingent upon the instrument mounting interface temperature being maintained by the spacecraft within the limits specified in the Interface Control Documents (ICD). Operational on-orbit performance is evaluated against the following evaluation criteria (note: A failed channel or loss of channel shall be defined as NEDT greater

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than or equal to 2x specification value. A channel that does not meet requirements shall be defined as NEDT greater than specification value, but less than 2x specification value):

Fully Operational – no reduction in fee (No instrument function failures)

Criteria: All frequency bands meet requirements.

Slightly Degraded – 15% reduction in fee (Minor performance degradation)

Criteria: Any frequency band does not meet requirements.

Degraded – 40% reduction in fee (Significant performance degradation).

Criteria: Loss of 30% or more of the output channels in any frequency band.

Severely Degraded – 75% reduction in fee (Significant loss of capability).

Criteria: Loss of 20% or more of the output channels in the temperature frequency band (50-60 GHz and 114-119 GHz) or loss of 20% or more of the output channels in the water vapor frequency band (165-184 GHz).

Failed – 100% reduction in fee (No useable data; no data)

Criteria: Loss of 40% or more of output channels in the temperature frequency band (50-60 GHz)

Any reductions in on-orbit fee for degraded/failed performance classification shall be prorated for the amount of time during the period in which the instrument was in that classification(s). Using an example from the table below: for Period L + 1.5 years, the instrument was in fully operational status 50% of the period and slightly degraded condition 50% of the period. Therefore, the repayment for Period L + 1.5 years is $5.25\% \times 50\% = 2.625\%$.

Provisionally paid on-orbit fee will be finalized with each on-orbit evaluation period. In the event of a launch failure or other catastrophic failure during the first period of on-orbit performance for which the Contractor is not responsible, either in whole or in part, the associated on-orbit fee for the instrument will be finalized at that time and considered earned in full. In the event of a catastrophic failure for which the Contractor is not responsible, either in whole or in part, after the first on-orbit evaluation fee period, the FDO shall determine what portion, if any, of the on-orbit fee shall be finalized based upon previous on-orbit performance evaluation(s) and any other data that indicates what the future performance would have been. In the event of a catastrophic failure for which the Contractor is in part responsible, but not wholly responsible, the FDO shall determine what portion, if any, of the on-orbit performance fee shall be finalized. However, if the instrument fails to perform at all and the instrument contractor is 100% responsible, the Contractor shall refund the entire amount of the provisionally paid on-orbit performance award fee, but keep the total amount of the pre-on-orbit award fee earned at the final award fee evaluation. If the instrument fails completely during any period after the first on-orbit evaluation period and the instrument Contractor is 100% responsible, the Contractor will again get to keep the total pre-on-orbit performance award fee earned that was paid upon the final award fee evaluation plus the amount of all on-orbit performance fee determinations

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finalized in each on-orbit evaluation period prior to the period in which the failure occurred. The Government has the unilateral right to determine when the instrument has failed completely with no potential for recovery in a subsequent period, and can therefore require payback for all unevaluated periods when such a determination is made.

Each on-orbit evaluation is considered to be a final evaluation. The Government will notify the Contractor in writing of the on-orbit performance assessment after the conclusion of each evaluation period, and indicate the amount of fee, if any, that is to be repaid. The Contractor shall pay back to the Government any provisional paid award fee for on-orbit performance that was not earned for that period.

The table below indicates the specific portions of the total on-orbit fee pool associated with each on-orbit evaluation, and the payback percentages in the event of degraded/failed performance:

Percentages below reflect repayment amount (as a percentage of the total on-orbit pool) in the event that the specific degraded/failed condition(s) occurs:						
Evaluation Period (L=Launch)	Portion of On-Orbit Pool evaluated	Fully Operational	Slightly Degraded	Degraded	Severely Degraded	Total Mission Loss
L+1.5 years	10%	0%	5.25%	14.00%	26.25%	35%
L+2.5 years	20%	0%	4.50%	12.00%	22.50%	30%
L+3.5 years	20%	0%	3.75%	10.00%	18.75%	25%
L+5 years	50%	0%	1.50%	4.00%	7.50%	10%
Total	100%	0%	15%	40%	75%	100%

(End of text)

1852.232-80 SUBMISSION OF VOUCHERS FOR PAYMENT. (APR 2018)

(a) The designated payment office is the NASA Shared Services Center (NSSC) located at FMD Accounts Payable, Bldg. 1111, Jerry Hlass Road, Stennis Space Center, MS 39529.

(b) Except for classified vouchers, the Contractor shall submit all vouchers and invoices using the steps described at NSSC's Vendor Payment information Web site at: <https://www.nssc.nasa.gov/vendorpayment>. Please contact the NSSC Customer Contact Center at 1-877-NSSC123 (1-877-677-2123) with any additional questions or comments.

(c) *Payment requests.*

(1) The payment periods are stipulated in the payment clause(s) contained in this contract.

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(2) Vouchers submitted under cost type contracts and invoices submitted under fixed-price contracts shall include the items delineated in FAR 32.905(b) supported by relevant back-up documentation. Back-up documentation shall include at a minimum, the following information:

(i) *Vouchers.*

(A) Breakdown of billed labor costs and associated contractor generated supporting documentation for billed direct labor costs to include rates used and number of hours incurred.

(B) Breakdown of billed other direct costs (ODCs) and associated contractor generated supporting documentation for billed ODCs.

(C) Indirect rate(s) used to calculate the amount of billed indirect expenses.

(D) Progress reports, as required.

(ii) *Invoices.*

(A) Description of goods and services delivered as part of the contract's terms and conditions, including the dates of delivery/performance.

(B) Progress reports, as required.

(C) Date goods and services were performed.

(iii) *Fee vouchers.*

(A) Listing of all provisionally-billed fee by period or date earned since contract award.

(B) A reconciliation of all billed and earned fee.

(C) A clear explanation of the fee calculations.

(d) *Non-electronic payment requests.* The Contractor may submit a non-electronic voucher/invoice using the steps for non-electronic payment requests described at <https://www.nssc.nasa.gov/vendorpayment>, when any of the following conditions are met:

(1) The Contracting Officer administering the contract for payment has determined, in writing, that electronic submission would be unduly burdensome to the Contractor.

(2) The contract includes provisions allowing the contractor to submit vouchers or invoices using the steps for non-electronic payment. In such instances the Contractor agrees to submit non-electronic payment requests using the method or methods specified in Section G of the contract.

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(e) Improper vouchers/invoices. The NSSC Payment Office will notify the contractor of any apparent error, defect, or impropriety in a voucher/invoice within seven calendar days of receipt by the NSSC Payment Office. Inquiries regarding requests for payment should be directed to the NSSC as specified in paragraph (b) of this section.

(f) *Other payment clauses.* In addition to the requirements of this clause, the Contractor shall meet the requirements of the appropriate payment clauses in this contract when submitting payment requests.

(g) In the event that amounts are withheld from payment in accordance with provisions of this contract, a separate payment request for the amount withheld will be required before payment for that amount may be made.

(End of clause)

1852.245-73 FINANCIAL REPORTING OF NASA PROPERTY IN THE CUSTODY OF CONTRACTORS. (JAN 2017)

(a) The Contractor shall submit annually a NASA Form (NF) 1018, NASA Property in the Custody of Contractors, in accordance with this clause, the instructions on the form and NFS subpart 1845.71, and any supplemental instructions for the current reporting period issued by NASA.

(b)(1) Subcontractor use of NF 1018 is not required by this clause; however, the Contractor shall include data on property in the possession of subcontractors in the annual NF 1018.

(2) The Contractor shall mail the original signed NF 1018 directly to the cognizant NASA Center Industrial Property Officer and a copy to the cognizant NASA Center Deputy Chief Financial Officer, Finance, unless the Contractor uses the NF 1018 Electronic Submission System (NESS) for report preparation and submission.

(3) One copy shall be submitted (through the Department of Defense (DOD) Property Administrator if contract administration has been delegated to DOD) to the following address: Goddard Space Flight Center, Supply and Equipment Management Branch, Code 273, Greenbelt, MD 20771, unless the Contractor uses the NF 1018 Electronic Submission System (NESS) for report preparation and submission.

(c)(1) The annual reporting period shall be from October 1 of each year through September 30 of the following year. The report shall be submitted in time to be received by October 31st. The information contained in these reports is entered into the NASA accounting system to reflect current asset values for agency financial statement purposes. Therefore, it is essential that required reports be received no later than October 31st.

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(2) Some activity may be estimated for the month in which the report is submitted, if necessary, to ensure the NF 1018 is received when due. However, contractors' procedures must document the process for developing these estimates based on planned activity such as planned purchases or NASA Form 533 (NF 533) Contractor Financial Management Report cost estimates. It should be supported and documented by historical experience or other corroborating evidence, and be retained in accordance with FAR Subpart 4.7, Contractor Records Retention. Contractors shall validate the reasonableness of the estimates and associated methodology by comparing them to the actual activity once that data is available, and adjust them accordingly. In addition, differences between the estimated cost and actual cost must be adjusted during the next reporting period. Contractors shall have formal policies and procedures, which address the validation of NF 1018 data, including data from subcontractors, and the identification and timely reporting of errors. The objective of this validation is to ensure that information reported is accurate and in compliance with the NASA FAR Supplement. If errors are discovered on NF 1018 after submission, the contractor shall contact the cognizant NASA Center Industrial Property Officer (IPO) within 30 days after discovery of the error to discuss corrective action.

(3) In addition to an annual report, if at any time during performance of the contract, NASA-owned property in the custody of the contractor has a value of \$10 million or more, the contractor shall also submit a report no later than the 21st of each month in accordance with the requirements of paragraph (c)(2) of this clause.

(4) The Contracting Officer may, in NASA's interest, withhold payment until a reserve not exceeding \$25,000 or 5 percent of the amount of the contract, whichever is less, has been set aside, if the Contractor fails to submit annual NF 1018 reports in accordance with NFS subpart 1845.71, any monthly report in accordance with (c)(3) of this clause, and any supplemental instructions for the current reporting period issued by NASA. Such reserve shall be withheld until the Contracting Officer has determined that NASA has received the required reports. The withholding of any amount or the subsequent payment thereof shall not be construed as a waiver of any Government right.

(d) A final report shall be submitted within 30 days after disposition of all property subject to reporting when the contract performance period is complete in accordance with paragraph (b)(1) through (3) of this clause.

(End of clause)

1852.245-76 LIST OF GOVERNMENT PROPERTY FURNISHED PURSUANT TO FAR 52.245-1. (JAN 2011)

For performance of work under this contract, the Government will make available Government property identified below or in Attachment I, List of Government Furnished Property, to this contract on a no charge-for-use basis pursuant to the clause at FAR 52.245-1, Government Property, as incorporated in this contract. The Contractor shall use this property in the

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performance of this contract at the Contractor's facility and at other location(s) as may be approved by the Contracting Officer. Under FAR 52.245-1, the Contractor is accountable for the identified property.

(End of clause)

GSFC 52.242-90 FINANCIAL MANAGEMENT REPORTING. (JUN 2014)

(a) Requirements. This clause provides the supplemental instructions referred to in NASA FAR Supplement (NFS) clause 1852.242-73. The NFS clause and NASA Procedural Requirements (NPR) 9501.2E, "NASA Contractor Financial Management Reporting", establish report due dates and other financial management reporting requirements. NPR 9501.2E permits withholding of payment for noncompliance.

(b) Supplemental instructions. (1) Monthly (NF 533M) reports are required. Quarterly (NF 533Q) reports are required. The reporting structure shall be in accordance with Attachment B, Financial Management Reporting Requirements, of Section J of this contract.

(2) As stated in NPR 9501.2E, NASA strongly encourages electronic contractor cost reporting. The preferred formats are Excel and Adobe. Contact the Contracting Officer for any E-Mail addresses that are not provided or which become noncurrent.

Distribution shall be as follows:

Bruce Tsai, Contracting Officer, Code 171

E-Mail: Bruce.B.Tsai@nasa.gov

Jessica Knizhnik, Contracting Officer's Representative, Code 473

E-Mail: Jessica.Knizhnik@nasa.gov

Tonya Eckert, Resources Analyst, Code 155

E-Mail: Tonya.Eckert@nasa.gov

Regional Finance Office Cost Team, Code 155.2

E-Mail: GSFC-rfocateam@lists.nasa.gov

Administrative Contracting Officer (if delegated)

(c) Web site. NPR 9501.2E, "NASA Contractor Financial Management Reporting":

<http://nodis3.gsfc.nasa.gov/displayDir.cfm?t=NPR&c=9501&s=2E>

(End of clause)

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GSFC 52.245-94 INVENTORY OF GOVERNMENT OWNED PROPERTY--SPECIAL PROCEDURES FOR FLIGHT QUALIFIED INVENTORY. (DEC 2007)

- (a) The Contractor shall ensure that flight qualified assemblies and parts that are residual inventory under this contract are properly stored in a secure area that is certified for electrostatic discharge (ESD) handling. The parts shall be handled in accordance with electrostatic discharge (ESD) standards and procedures. The Contractor shall also maintain a system to ensure that the associated heritage, test, and qualification documentation is available and traceable to such individual items of inventory.
 - (b) In accordance with the “Physical inventory” required in FAR clause 52.245-1(f)(iv), the Contractor shall identify any hardware, components or parts suitable for space flight or at any time such inventory is excess to the needs of this contract.
 - (c) Compliance with this clause is required until:
 - (1) The Government exercises its right under the Government Property clause of this contract and under FAR 45.6 to require delivery of any such inventory or the transfer of such inventory to another Government contract. [Flight qualified assemblies or parts remaining in residual inventory shall remain subject to this clause]; or
 - (2) The Contractor and the Government agree to, partly or completely, discontinue the requirements of this clause for specific items of flight qualified assemblies and parts; or.
 - (3) The period stated in this contract for the Contractor to maintain inspection records under the Inspection clause of this contract has expired.
 - (d) In the event of (c)(1) above, the delivered or transferred flight qualified inventory shall be accompanied by all data and records regarding the flight certification of each of item(s) comprising the flight qualified inventory for which the Government's right is exercised.
 - (e) When flight qualified inventory is no longer subject to this clause because of (c)(1), (c)(2) or (c)(3) of this clause, the designated flight qualified inventory item(s), shall subsequently be managed no more stringently than other government property in accordance with FAR 52.245-1.
- (End of clause)

GSFC 52.245-99 SUPPLEMENTAL FINANCIAL REPORTING OF NASA PROPERTY IN THE CUSTODY OF CONTRACTORS (JUN 2019)

- (a) In addition to the annual 1018 reporting required under clause NFS 1852.245-73 of this contract, the Contractor shall submit monthly property financial reports as described below if, at either award or any time during contract performance, the cumulative amount of NASA property is \$10 million or more.

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(1) Monthly property financial reports shall be submitted including item-level supporting data for all items acquired/fabricated/modified where the total acquisition cost of the item is \$500,000 or more, in the contractor's or its subcontractors' possession. This data shall be submitted for all items in the property classifications of real property, equipment, special test equipment, special tooling, and agency peculiar property.

(2) Monthly data shall also be submitted for items of any acquisition cost in the classifications of materials and contract work-in-process (WIP). Specifically, itemized monthly data is required for materials and WIP line items when the estimated total acquisition cost of any item at completion will be \$500,000 or more.

(b) The monthly reports shall be electronically submitted using the Contractor-Held Asset Tracking System (CHATS) at <https://chats.nasa.gov> using the format described in the CHATS user's manual.

(c) Acquisition costs shall be developed using actual costs to the greatest extent possible, especially costs directly related to fabrication such as labor and materials. Supporting documentation shall be maintained and available for all amounts reported, including any amounts developed using estimating techniques.

(d) All adjustments shall be thoroughly explained and directly related to a specific Government Fiscal Year (GFY). If the GFY cannot be determined, the default shall be the previous GFY.

(e) Work Breakdown Structures (WBS) shall be provided for all Contractor acquired property (CAP), WIP, and any new materials acquired. The format shall be a five digit numerical level. (i.e., 803-10). If the WBS is not identifiable, contact the NASA GSFC Property Office for further guidance, as provided in paragraph (f)(4) below.

(f)(1) The data required for the monthly submission is due the 21st day after the close of the month.

e.g., August 21 for the month ending July 31

September 21 for the month ending August 31

October 21 for the month ending September 30

(2) The monthly property financial reports required by this clause are separate from, and in addition to the annual NF 1018 reports.

(3) Both the NF 1018 report data and the September monthly report data are as of September 30. Corrections in monthly report data shall be handled as adjustments in the next monthly report after discovery of the error. (e.g., Errors in the September monthly report shall be reported as adjustments in the October monthly report. The NF 1018 shall reflect the corrected numbers and the contractor shall provide a note regarding the corrected monthly report error under Comments in the NF 1018.) Errors in the NF1018 found after the November 30 submission shall be reported

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as adjustments in the NF 1018 for the next reporting year, unless immediate correction and resubmission are directed by NASA.

(4) Questions may be directed to the following individuals of the NASA GSFC Property Office:

Angela King, (301) 286-3543, email angela.c.king@nasa.gov

Timothy Kelly (301) 286-8819, email: timothy.e.kelly@nasa.gov

(End of clause)

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Clauses incorporated by reference:

NASA FAR SUPPLEMENT (48 CFR CHAPTER 18) CLAUSES:

1852.208-81 RESTRICTIONS ON PRINTING AND DUPLICATING. (NOV 2004)

1852.223-70 SAFETY AND HEALTH MEASURES AND MISHAP REPORTING. (DEC 2015)

1852.223-75 MAJOR BREACH OF SAFETY OR SECURITY. (FEB 2002)

1852.228-78 CROSS-WAIVER OF LIABILITY FOR SCIENCE OR SPACE EXPLORATION
ACTIVITIES UNRELATED TO THE INTERNATIONAL SPACE STATION. (OCT 2012)

1852.235-73 FINAL SCIENTIFIC AND TECHNICAL REPORTS. (DEC 2006)

1852.244-70 GEOGRAPHIC PARTICIPATION IN THE AEROSPACE PROGRAM. (APR
1985)

(End of by reference clauses)

**GSFC 52.204-99 CONTRACTOR PERSONNEL—IDENTIFICATION, ONSITE
REPORTING, AND CHECKOUT PROCEDURES (NOV 2021)**

(a) In accordance with FAR 52.204-9, Personal Identity Verification of Contractor Personnel, the Contractor shall follow the procedures in NASA Procedural Requirements (NPR) 1600.4, for each contract employee (prime and subcontractor) who will have physical access to a NASA-controlled facility (also referred to as “onsite”). The Contractor must apply for permanent NASA/GSFC PIV cards for those contract employees who will be employed by the Contractor onsite for at least six months. GSFC Protective Services will consider permanent PIV cards for other employees of the Contractor on a case-by-case basis, such as employees that are not resident onsite, but must frequently visit. In the future, upon written notice from the Contracting Officer, the Contractor shall follow the steps outlined in NPR 1600.4 for each offsite contract employee (prime and subcontractor) who require remote access to a NASA information system for contract performance.

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(b) The Contractor shall notify GSFC Protective Services, Code 240, Attention: Badging Supervisor, and the Contracting Officer's Representative (COR) of the contractor's designated PIV Requester within 15 calendar days after award of this contract. The NASA maintained PIV system (Identify and Access Management – IdMAX) contains work and home location and contact information for personnel that have permanent NASA PIV cards. The Contractor may contact the Badging Supervisor, Tel 301-286-2306 for assistance regarding IdMAX.

(c) Each contract employee shall provide to the Contractor's designated PIV Requester the basic identifying information required for a PIV Request to be initiated in IdMAX. The PIV Request must be approved by the PIV Sponsor (COR or the Contracting Officer). The COR will resolve any housing or access issues and review the request for accuracy and completeness. Requests that are approved by the PIV Sponsor will be forwarded to GSFC Protective Services, Code 240, PIV Authorization, Badge enrollment, and Badge issuance.

(d) The Contractor shall submit an annotated PIV Report each month. The GSFC Badging Supervisor will furnish a PIV print-out to the Contractor no later than the end of each month. The Contractor shall annotate this provided report monthly to correct and update the information as follows:

- (1) Draw a line through the names of employees who are no longer employed by the contractor or that no longer work onsite under the contract; and
- (2) Make handwritten changes to any other incorrect data.

The annotated PIV Report shall be separately submitted to GSFC Protective Services, Code 240, Attention: Badging Supervisor, and to the COR by the 10th calendar day of the month.

For the final PIV Report under the contract, the GSFC Badging Supervisor will furnish a PIV print-out to the Contractor no later than two weeks prior to the end of the contract. The Contractor shall submit its annotated final PIV Report no later than three (3) days prior to the end of the contract.

If this is a follow-on contract, at the end of the phase-in period (if any)/start of the basic contract period, GSFC Protective Services will provide the Contractor a copy of the final PIV Report from the previous contract. The Contractor shall review the list and redline it as necessary to reflect its employees requiring PIV cards. The redlined list shall be provided GSFC Protective Services within 30 days after the start of the contract.

(e) The Contractor shall ensure that all personnel who have NASA/GSFC issued PIV cards, keys or other property who leave its employment or that no longer work onsite, process out through GSFC Protective Services, Code 240 and complete the GSFC form 17-26A, which shall be signed off and maintained by the contract Program Manager once completed. Employees must return all GSFC issued identification and any Government property no later than the last day of their employment or the last day they work onsite under this contract. The Contractor shall establish appropriate procedures and controls to ensure this is accomplished. In addition, it is the

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responsibility of the contractor to notify the government of any termination/removal that occurs when the PIV has not been turned in to or received by the government. Failure to comply may result in the exercise of Government rights to limit and control access to Government premises, including denial of access and invalidation of NASA issued PIV cards and identification.

(End of clause)

1852.225-70 EXPORT LICENSES. (FEB 2000)

(a) The Contractor shall comply with all U.S. export control laws and regulations, including the International Traffic in Arms Regulations (ITAR), 22 CFR parts 120-130, and the Export Administration Regulations (EAR), 15 CFR parts 730-799, in the performance of this contract. In the absence of available license exemptions/exceptions, the Contractor shall be responsible for obtaining the appropriate licenses or other approvals, if required, for exports of hardware, technical data, and software, or for the provision of technical assistance.

(b) The Contractor shall be responsible for obtaining export licenses, if required, before utilizing foreign persons in the performance of this contract, including instances where the work is to be performed on-site at Goddard Space Flight Center, where the foreign person will have access to export-controlled technical data or software.

(c) The Contractor shall be responsible for all regulatory record keeping requirements associated with the use of licenses and license exemptions/exceptions.

(d) The Contractor shall be responsible for ensuring that the provisions of this clause apply to its subcontractors.

(End of clause)

GSFC 52.211-100 CONTRACTOR PROPOSED ENHANCEMENTS. (SEP 2013)

The Contractor shall provide the enhancements that are described in Attachment L. These enhancements, which are over and above the requirements required by the contract terms and conditions, Statement of Work and other contract attachments, were proposed by the Contractor in the proposal submitted in response to the Request for Proposal (RFP) 80GSFC25R7005 for the Sounder for Microwave-Based Applications. The incorporation of these enhancements does not relieve the Contractor from the responsibilities of meeting all other contract terms and conditions and requirements in the Statement of Work and other contract attachments. The Contractor shall perform these enhancements on all work performed, unless specifically waived by the Contracting Officer in writing.

(End of clause)

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GSFC 52.219-90 SMALL BUSINESS SUBCONTRACTING PLAN AND REPORTS. (NOV 2021)

a. Subcontracting Plan (Contractor)

FAR clause 52.219-9, "Small Business Subcontracting Plan", is included in this contract. The agreed to Subcontracting Plan required by the clause is included as an attachment to the contract.

b. Subcontracting Plan (Subcontractors)

In accordance with FAR clause 52.219-9 Small Business Subcontracting Plan, the Contractor must require that certain subcontractors adopt a plan similar to the Plan agreed to between the Contractor and the Government.

c. Individual Subcontract Reports (ISRs)

The Contractor shall prepare and submit their Individual Subcontract Reports (ISRs) (formerly known as the Standard Form 294), in accordance with the instructions listed in the Electronic Subcontract Reporting System (eSRS), available at <http://esrs.gov>.

ISRs must be submitted electronically in eSRS on a semi-annual basis. This report must be received no later than April 30 and October 30 each year for the reporting periods ending March 31 and September 30, respectively. Reports are required when due, regardless of whether there has been any subcontracting activity since the inception of the contract or since the last reporting period.

A final ISR must be submitted after contract completion. The final ISR submittal must be received no later than the due date for what would have been the next semi-annual report.

d. Summary Subcontract Reports (SSRs)

The Contractor shall prepare and submit Summary Subcontract Reports (SSRs) (formerly known as the Standard Form 295), in accordance with the instructions listed in the eSRS, available at <http://esrs.gov> and in accordance with FAR clause 52.219-9 Small Business Subcontracting Plan of this contract.

The SSRs must be submitted electronically in eSRS on an annual basis. This report must be submitted no later than October 30 each year for the twelve month period ending September 30.

e. Subcontractor Reporting

FAR clause 52.219-9 Small Business Subcontracting Plan requires that the Contractor ensure that ISR and SSR reports are submitted by those subcontractors that have been required to adopt a Subcontracting Plan under the terms of the clause. These subcontractor reports must be submitted as required by paragraphs (c) and (d) above. The reports may be submitted through the Contractor or submitted directly. Regardless, the Contractor is responsible for ensuring proper and timely submittal of the required reports.

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(End of clause)

GSFC 52.223-91 SAFETY AND HEALTH ADDITIONAL REQUIREMENTS. (NOV 2019)

In addition to compliance with all Federal, state, and local laws as required by paragraph (b) of NFS clause 1852.223-70, the Contractor shall comply with the following:

(a) Incident Reporting: The immediate notification and prompt reporting requirement included in paragraph (d) of NFS clause 1852.223-70 shall be to Goddard Space Flight Center Safety Division, Code 360, Telephone 301-356-3224 and to the Contracting Officer (CO). This verbal notification should be confirmed in writing via E-Mail to the CO and GSFC-OccSafetyOffice@mail.nasa.gov and entered into the NASA Mishap Information System (NMIS) within 24 hours. This notification is also required for any unsafe or environmentally hazardous condition associated with Government-owned property that is provided or made available for the performance of the contract.

(End of clause)

52.236-13 ACCIDENT PREVENTION (1991) ALTERNATE I (NOV 1991) AS MODIFIED BY NFS 1823.7001(d)(1)

(a) The Contractor shall provide and maintain work environments and procedures which will-

- (1) Safeguard the public and Government personnel, property, materials, supplies, and equipment exposed to Contractor operations and activities;
- (2) Avoid interruptions of Government operations and delays in project completion dates; and
- (3) Control costs in the performance of this contract.

(b) For these purposes on contracts for construction or dismantling, demolition, or removal of improvements, the Contractor shall-

- (1) Provide appropriate safety barricades, signs, and signal lights;
- (2) Comply with the standards issued by the Secretary of Labor at 29 CFR Part 1926 and 29 CFR Part 1910 ; and
- (3) Ensure that any additional measures the Contracting Officer determines to be reasonably necessary for the purposes are taken.

(c) If this contract is for construction or dismantling, demolition or removal of improvements with any Department of Defense agency or component, the Contractor shall comply with all pertinent provisions of the latest version of U.S. Army Corps of Engineers Safety and Health Requirements Manual, EM 385-1-1, in effect on the date of the solicitation.

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(d) Whenever the Contracting Officer becomes aware of any noncompliance with these requirements or any condition which poses a serious or imminent danger to the health or safety of the public or Government personnel, the Contracting Officer shall notify the Contractor orally, with written confirmation, and request immediate initiation of corrective action. This notice, when delivered to the Contractor or the Contractor's representative at the work site, shall be deemed sufficient notice of the noncompliance and that corrective action is required. After receiving the notice, the Contractor shall immediately take corrective action. If the Contractor fails or refuses to promptly take corrective action, the Contracting Officer may issue an order stopping all or part of the work until satisfactory corrective action has been taken. The Contractor shall not be entitled to any equitable adjustment of the contract price or extension of the performance schedule on any stop work order issued under this clause.

(e) The Contractor shall insert this clause, including this paragraph (e), with appropriate changes in the designation of the parties, in subcontracts.

(f) Before commencing the work, the Contractor shall-

(1) Submit a written Safety and Health Plan for implementing this clause within 30 days after contract award. The plan shall include an analysis of the significant hazards to life, limb, and property inherent in contract work performance and a plan for controlling these hazards.

(2) Meet with representatives of the Contracting Officer to discuss and develop a mutual understanding relative to administration of the overall safety program.

(3) The contractor may commence work prior to approval of the Safety and Health Plan. However, the Government reserves the right to reject and require resubmittal should the plan fail to adequately address the items in paragraph (f)(1).

(End of clause)

GSFC 52.243-90 ADDITIONAL LAUNCH SUPPORT. (OCT 1988)

This contract requires the Contractor to perform effort related to the launch of spacecraft. In the event that the Contractor completes performance of the effort required within the period specified but prior to the actual launch, the Contractor shall continue to furnish such additional effort as may be required and ordered by the Contracting Officer, until the actual launch. Within 30 calendar days after receipt of the order for additional effort, the Contractor shall submit a formal proposal for equitable adjustment, for the effort called for in the order, to the Contracting Officer in accordance with the procedures set forth in the Changes clause of this contract. An equitable adjustment will be made only if the delay in the launch is not due to failure of the contractor to meet the terms of this contract.

(End of clause)

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GSFC 52.243-91 LAUNCH DELAYS. (APR 2022)

The delivery schedule and/or period of performance of this contract is based upon a Sounder for Microwave-Based Applications (SMBA) Flight Model 1 launch date of September 15, 2032; SMBA Flight Model 2 launch date of September 15, 2033; SMBA Flight Model 3 launch date of September 15, 2035; and SMBA Flight Model 4 launch date of September 15, 2036. If the Government exercises Option 1, the delivery schedule and/or period of performance of this contract is also based upon a SMBA Flight Model 5 launch date of September 15, 2038; SMBA Flight Model 6 launch date of September 15, 2039; SMBA Flight Model 7 launch date of September 15, 2041; and SMBA Flight Model 8 launch date of September 15, 2042.

In the event of a Government directed delay of the launch date, the Contracting Officer may inform the Contractor, in writing, of the revised launch date, and allow the Contractor to submit a proposal for the effect of this delay on the cost, delivery schedule, or other terms of the contract. This may result in an equitable adjustment to the estimated cost, fee(s), if any, and delivery schedule or period of performance. Failure to agree to an adjustment shall be considered as a dispute under the Disputes clause. However, nothing in this clause shall excuse the Contractor from proceeding with the contract as extended.

(End of clause)

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Clauses incorporated by reference:

FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1):

52.202-1 DEFINITIONS. (JUN 2020)

52.203-3 GRATUITIES. (APR 1984)

52.203-5 COVENANT AGAINST CONTINGENT FEES. (MAY 2014)

52.203-6 RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT. (JUN 2020)

52.203-7 ANTI-KICKBACK PROCEDURES. (JUN 2020)

52.203-8 CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY. (MAY 2014)

52.203-10 PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY. (MAY 2014)

52.203-12 LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS. (JUN 2020)

52.203-13 CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT. (NOV 2021)

52.203-14 DISPLAY OF HOTLINE POSTER(S). (NOV 2021)

Paragraph (b)(3) insert: Inspector General Hotline Posters may be obtained from <https://oig.nasa.gov/hotline.html>

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52.203-19 PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS. (JAN 2017)

52.204-10 REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS. (JUN 2020)

52.204-13 SYSTEM FOR AWARD MANAGEMENT MAINTENANCE. (OCT 2018)

52.204-18 COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE. (AUG 2020)

52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS. (DEC 2014)

52.204-23 PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB COVERED ENTITIES. (DEC 2023)

52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT. (NOV 2021)

52.204-27 PROHIBITION ON A BYTEDANCE COVERED APPLICATION. (JUN 2023)

52.209-6 PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT. (JAN 2025)

52.209-9 UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS. (OCT 2018)

52.209-10 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS. (NOV 2015)

52.210-1 MARKET RESEARCH. (NOV 2021)

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52.211-5 MATERIAL REQUIREMENTS. (AUG 2000)

52.211-15 DEFENSE PRIORITY AND ALLOCATION REQUIREMENTS. (APR 2008)

52.215-2 AUDIT AND RECORDS - NEGOTIATION. (JUN 2020)

52.215-8 ORDER OF PRECEDENCE - UNIFORM CONTRACT FORMAT. (OCT 1997)

52.215-11 PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA -
MODIFICATIONS. (JUN 2020)

52.215-13 SUBCONTRACTOR CERTIFIED COST OR PRICING DATA - MODIFICATIONS.
(JUN 2020)

52.215-14 INTEGRITY OF UNIT PRICES. (NOV 2021)

52.215-15 PENSION ADJUSTMENTS AND ASSET REVERSIONS. (OCT 2010)

52.215-18 REVERSION OR ADJUSTMENT OF PLANS FOR POSTRETIREMENT
BENEFITS (PRB) OTHER THAN PENSIONS. (JUL 2005)

52.215-19 NOTIFICATION OF OWNERSHIP CHANGES. (OCT 1997)

52.215-21 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA
OTHER THAN CERTIFIED COST OR PRICING DATA - MODIFICATIONS. (NOV 2021)

52.215-23 LIMITATIONS ON PASS-THROUGH CHARGES. (JUN 2020)

52.216-7 ALLOWABLE COST AND PAYMENT. (AUG 2018)

Paragraph (a)(3) insert: 30th

52.216-8 FIXED FEE (JUN 2011)

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52.217-7 OPTION FOR INCREASED QUANTITY-SEPARATELY PRICED LINE ITEM.
(MAR 1989)

Insert: within "60 days."

52.219-4 NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL
BUSINESS CONCERNS. (OCT 2022)

Note: Optional fill-in for offerors under Paragraph (b)

52.219-8 UTILIZATION OF SMALL BUSINESS CONCERNS. (JAN 2025)

52.219-9 SMALL BUSINESS SUBCONTRACTING PLAN. (JAN 2025) ALTERNATE II
(NOV 2016)

52.219-16 LIQUIDATED DAMAGES - SUBCONTRACTING PLAN. (SEP 2021)

52.219-28 POST-AWARD SMALL BUSINESS PROGRAM REREPRESENTATION. (JAN
2025)

52.222-2 PAYMENT FOR OVERTIME PREMIUMS. (JUL 1990)

Paragraph (a) insert: \$0

52.222-3 CONVICT LABOR. (JUN 2003)

52.222-4 CONTRACT WORK HOURS AND SAFETY STANDARDS - OVERTIME
COMPENSATION. (MAY 2018)

52.222-19 CHILD LABOR—COOPERATION WITH AUTHORITIES AND REMEDIES. (JAN
2025)

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52.222-20 CONTRACTS FOR MATERIALS, SUPPLIES, ARTICLES, AND EQUIPMENT.
(JUN 2020)

52.222-35 EQUAL OPPORTUNITY FOR VETERANS. (JUN 2020)

52.222-36 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES. (JUN 2020)

52.222-37 EMPLOYMENT REPORTS ON VETERANS. (JUN 2020)

52.222-40 NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR
RELATIONS ACT. (DEC 2010)

52.222-50 COMBATING TRAFFICKING IN PERSONS. (NOV 2021)

52.222-54 EMPLOYMENT ELIGIBILITY VERIFICATION. (JAN 2025)

52.223-5 POLLUTION PREVENTION AND RIGHT-TO-KNOW INFORMATION. (MAY
2024)

52.225-1 BUY AMERICAN - SUPPLIES. (OCT 2022)

52.225-8 DUTY-FREE ENTRY. (OCT 2010)

52.225-13 RESTRICTIONS ON CERTAIN FOREIGN PURCHASES. (FEB 2021)

52.226-7 DRUG-FREE WORKPLACE. (MAY 2024)

52.226-8 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING
WHILE DRIVING. (MAY 2024)

52.227-1 AUTHORIZATION AND CONSENT. (JUN 2020) ALTERNATE I (APR 1984)

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52.227-2 NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT. (JUN 2020)

52.227-11 PATENT RIGHTS - OWNERSHIP BY THE CONTRACTOR. (MAY 2014) AS MODIFIED BY NFS 1852.227-11

52.227-16 ADDITIONAL DATA REQUIREMENTS. (JUN 1987)

52.227-21 TECHNICAL DATA DECLARATION, REVISION, AND WITHHOLDING OF PAYMENT - MAJOR SYSTEMS. (MAY 2014)

52.227-23 RIGHTS TO PROPOSAL DATA (TECHNICAL). (JUN 1987)

Insert: Except for data contained on pages “TBP”; and technical data contained in the proposal dated “TBP”

52.228-7 INSURANCE - LIABILITY TO THIRD PERSONS. (MAR 1996)

52.230-2 COST ACCOUNTING STANDARDS. (JUN 2020)

52.230-6 ADMINISTRATION OF COST ACCOUNTING STANDARDS. (JUN 2010)

52.232-9 LIMITATION ON WITHHOLDING OF PAYMENTS. (APR 1984)

52.232-17 INTEREST. (MAY 2014)

52.232-22 LIMITATION OF FUNDS. (APR 1984)

52.232-23 ASSIGNMENT OF CLAIMS. (MAY 2014)

52.232-25 PROMPT PAYMENT. (JAN 2017)

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52.232-33 PAYMENT BY ELECTRONIC FUNDS TRANSFER - SYSTEM FOR AWARD MANAGEMENT. (OCT 2018)

52.232-39 UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS. (JUN 2013)

52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS. (MAR 2023)

52.233-1 DISPUTES. (MAY 2014) ALTERNATE I (DEC 1991)

52.233-3 PROTEST AFTER AWARD (AUG 1996) ALTERNATE I (JUN 1985)

52.233-4 APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM. (OCT 2004)

52.239-1 PRIVACY OR SECURITY SAFEGUARDS. (AUG 1996)

52.240-1 PROHIBITION ON UNMANNED AIRCRAFT SYSTEMS MANUFACTURED OR ASSEMBLED BY AMERICAN SECURITY DRONE ACT-COVERED FOREIGN ENTITIES. (NOV 2024)

52.242-1 NOTICE OF INTENT TO DISALLOW COSTS. (APR 1984)

52.242-3 PENALTIES FOR UNALLOWABLE COSTS. (DEC 2022)

52.242-4 CERTIFICATION OF FINAL INDIRECT COSTS. (JAN 1997)

52.242-5 PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS. (JAN 2017)

52.242-13 BANKRUPTCY. (JUL 1995)

52.243-2 CHANGES - COST-REIMBURSEMENT. (AUG 1987) ALTERNATE V (APR 1984)

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52.243-6 CHANGE ORDER ACCOUNTING. (APR 1984)

52.243-7 NOTIFICATION OF CHANGES. (JAN 2017)

52.244-2 SUBCONTRACTS. (JUN 2020)

Paragraph (d) insert: None

Paragraph (j) insert: TBD

52.244-5 COMPETITION IN SUBCONTRACTING. (AUG 2024)

52.245-1 GOVERNMENT PROPERTY. (SEP 2021)

52.245-9 USE AND CHARGES. (APR 2012)

52.246-24 LIMITATION OF LIABILITY - HIGH-VALUE ITEMS. (FEB 1997)

52.246-26 REPORTING NONCONFORMING ITEMS. (AUG 2024)

52.247-1 COMMERCIAL BILL OF LADING NOTATIONS. (FEB 2006)

Paragraph (a) insert: Transportation is for the NASA/Goddard Space Flight Center and the actual total transportation charges paid to the carrier(s) by the consignor or consignee are assignable to, and shall be reimbursed by, the Government.

Paragraph (b) insert: Transportation is for the NASA/Goddard Space Flight Center and the actual total transportation charges paid to the carrier(s) by the consignor or consignee shall be reimbursed by the Government, pursuant to cost-reimbursement contract No. TBD. This may be confirmed by contacting the Contracting Officer.

52.247-63 PREFERENCE FOR U.S.-FLAG AIR CARRIERS. (JAN 2025)

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52.247-64 PREFERENCE FOR PRIVATELY OWNED U.S.-FLAG COMMERCIAL VESSELS.
(NOV 2021)

52.248-1 VALUE ENGINEERING. (JUN 2020)

52.249-6 TERMINATION (COST-REIMBURSEMENT). (MAY 2004)

52.249-14 EXCUSABLE DELAYS. (APR 1984)

52.251-1 GOVERNMENT SUPPLY SOURCES. (APR 2012)

52.253-1 COMPUTER GENERATED FORMS. (JAN 1991)

NASA FAR SUPPLEMENT (48 CFR CHAPTER 18) CLAUSES:

1852.203-70 DISPLAY OF INSPECTOR GENERAL HOTLINE POSTERS. (JUN 2001)

1852.203-71 REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS.
(JUL 2023)

1852.215-84 OMBUDSMAN. (NOV 2023)

1852.216-89 ASSIGNMENT AND RELEASE FORMS. (AUG 2016)

1852.219-75 INDIVIDUAL SUBCONTRACTING REPORTS. (APR 2015)

1852.219-77 NASA MENTOR-PROTÉGÉ PROGRAM. (OCT 2023)

1852.219-79 MENTOR REQUIREMENTS AND EVALUATION. (OCT 2023)

1852.228-75 MINIMUM INSURANCE COVERAGE. (OCT 1988)

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1852.235-70 CENTER FOR AEROSPACE INFORMATION. (DEC 2006)

1852.237-72 ACCESS TO SENSITIVE INFORMATION. (JUN 2005)

1852.237-73 RELEASE OF SENSITIVE INFORMATION. (JUN 2005)

1852.242-78 EMERGENCY MEDICAL SERVICES AND EVACUATION. (APRIL 2001)

1852.246-74 CONTRACTOR COUNTERFEIT ELECTRONIC PART DETECTION AND AVOIDANCE. (OCT 2023)

(End of by reference clauses)

52.204-21 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS. (NOV 2021)

(a) *Definitions.* As used in this clause—

Covered contractor information system means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

Federal contract information means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government, but not including information provided by the Government to the public (such as on public websites) or simple transactional information, such as necessary to process payments.

Information means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information ([44 U.S.C. 3502](#)).

Safeguarding means measures or controls that are prescribed to protect information systems.

(b) Safeguarding requirements and procedures.

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(1) The Contractor shall apply the following basic safeguarding requirements and procedures to protect covered contractor information systems. Requirements and procedures for basic safeguarding of covered contractor information systems shall include, at a minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

(iv) Control information posted or processed on publicly accessible information systems.

(v) Identify information system users, processes acting on behalf of users, or devices.

(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.

(vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.

(viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.

(ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.

(x) Monitor, control, and protect organizational communications (*i.e.*, information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.

(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.

(xii) Identify, report, and correct information and information system flaws in a timely manner.

(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.

(xiv) Update malicious code protection mechanisms when new releases are available.

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(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) *Other requirements.* This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal agencies and departments relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) *Subcontracts.* The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products or commercial services, other than commercially available off-the-shelf items), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of clause)

**52.204-30 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS—
PROHIBITION. (DEC 2023)**

(a) *Definitions.* As used in this clause—

Covered article, as defined in 41 U.S.C. 4713(k), means—

(1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;

(2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);

(3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring the removal of covered articles from executive agency information systems or the exclusion of one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201–1.303(d) and (e):

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(1) The Secretary of Homeland Security may issue FASCSA orders applicable to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders applicable to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders applicable to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

- (1) The Office of the Director of National Intelligence;
 - (2) The Central Intelligence Agency;
 - (3) The National Security Agency;
 - (4) The Defense Intelligence Agency;
 - (5) The National Geospatial-Intelligence Agency;
 - (6) The National Reconnaissance Office;
 - (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
 - (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
 - (9) The Bureau of Intelligence and Research of the Department of State;
 - (10) The Office of Intelligence and Analysis of the Department of the Treasury;
 - (11) The Office of Intelligence and Analysis of the Department of Homeland Security;
- or
- (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

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(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of any covered articles, or any products or services produced or provided by a source. This applies when the covered article or the source is subject to an applicable FASCSA order. A reasonable inquiry excludes the need to include an internal or third-party audit.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

(b) *Prohibition.* (1) Unless an applicable waiver has been issued by the issuing official, Contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA orders as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase “FASCSA order” in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders identified in paragraph (b)(1).

(3) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resultant contract.

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(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 4.2304(c)). However, see paragraph (c) of this clause.

(5)(i) If the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification, then the Contractor shall disclose the following:

(A) Name of the product or service provided to the Government;

(B) Name of the covered article or source subject to a FASCSA order;

(C) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied or supplies the covered article or the product or service to the Offeror;

(D) Brand;

(E) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(F) Item description;

(G) Reason why the applicable covered article or the product or service is being provided or used;

(ii) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (b)(5)(i) to determine if any waiver is warranted. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise covered by a FASCSA order and to instead pursue other appropriate action.

(c) *Notice and reporting requirement.* (1) During contract performance, the Contractor shall review *SAM.gov* at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (b) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance.

(3)(i) The Contractor shall submit a report to the contracting office as identified in paragraph (c)(3)(ii) of this clause, if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s) identified in paragraph (b) of this clause, or a new FASCSA order identified in paragraph (c)(2) of this clause. For indefinite delivery contracts, the Contractor shall

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report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(ii) If a report is required to be submitted to a contracting office under (c)(3)(i) of this clause, the Contractor shall submit the report as follows:

(A) If a Department of Defense contracting office, the Contractor shall report to the website at *https://dibnet.dod.mil*.

(B) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(4) The Contractor shall report the following information for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order, pursuant to paragraph (c)(3)(i) of this clause:

(i) Within 3 business days from the date of such identification or notification:

(A) Contract number;

(B) Order number(s), if applicable;

(C) Name of the product or service provided to the Government or used during performance of the contract;

(D) Name of the covered article or source subject to a FASCSA order;

(E) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Contractor;

(F) Brand;

(G) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(H) Item description; and

(I) Any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (c)(4)(i) of this clause:

(A) Any further available information about mitigation actions undertaken or recommended.

(B) In addition, the Contractor shall describe the efforts it undertook to prevent submission or use of the covered article or the product or service produced or provided

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by a source subject to an applicable FASCSA order, and any additional efforts that will be incorporated to prevent future submission or use of the covered article or the product or service produced or provided by a source that is subject to an applicable FASCSA order.

(d) *Removal.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that is subject to an applicable FASCSA order.

(e) *Subcontracts.* (1) The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (c)(1) of this clause, in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products and commercial services.

(2) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the contract and any subcontracts and other contractual instruments under the contract. The Contractor or higher-tier subcontractor shall notify their subcontractors, and suppliers under other contractual instruments, that the FASCSA orders in the solicitation that are not in SAM apply to the contract and all subcontracts.

(End of clause)

52.216-19 ORDER LIMITATIONS. (OCT 1995)

- (a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than **\$0**, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.
- (b) *Maximum order.* The Contractor is not obligated to honor -
 - (1) Any order for a single item in excess of **\$10,000,000.00**;
 - (2) Any order for a combination of items in excess of **\$10,000,000.00**; or
 - (3) A series of orders from the same ordering office within **10** days that together call for quantities exceeding the limitation in subparagraph (1) or (2) above.
- (c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) above.
- (d) Notwithstanding paragraphs (b) and (c) above, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within **5** days after issuance, with written notice stating

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the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

Note: Sections 2.6, 6.6.6, and 6.6.7 of Attachment A, Statement of Work shall be addressed with task orders issued under this contract. This clause exclusively covers task orders issued under this contract. This clause shall be exempt from all Earned Value Management System requirements.

(End of clause)

52.216-22 INDEFINITE QUANTITY. (OCT 1995)

- (a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.
- (b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the *maximum*. The Government shall order at least the quantity of supplies or services designated in the Schedule as the *minimum*.
- (c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.
- (d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after **0 years from the end of the effective ordering period**.

Note: Sections 2.6, 6.6.6, and 6.6.7 of Attachment A, Statement of Work shall be addressed with task orders issued under this contract. This clause exclusively covers task orders issued under this contract. This clause shall be exempt from all Earned Value Management System requirements.

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(End of clause)

52.244-6 SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (JAN 2025) (DEVIATION FEB 2025)

(a) *Definitions.* As used in this clause—

Commercial product, commercial service and commercially available off-the-shelf item have the meanings contained in Federal Acquisition Regulation (FAR) [2.101](#).

Subcontract includes a transfer of commercial products or commercial services between divisions, subsidiaries, or affiliates of the Contractor or subcontractor at any tier.

(b) To the maximum extent practicable, the Contractor shall incorporate, and require its subcontractors at all tiers to incorporate, commercial products, commercial services, or non-developmental items as components of items to be supplied under this contract.

(c)

(1) The Contractor shall insert the following clauses in subcontracts for commercial products or commercial services:

(i) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509), if the subcontract exceeds the threshold specified in FAR [3.1004](#)(a) on the date of subcontract award, and has a performance period of more than 120 days. In altering this clause to identify the appropriate parties, all disclosures of violation of the civil False Claims Act or of Federal criminal law shall be directed to the agency Office of the Inspector General, with a copy to the Contracting Officer.

(ii) [52.203-15](#), Whistleblower Protections Under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5), if the subcontract is funded under the Recovery Act.

(iii) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900](#)(a).

(iv) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017).

(v) [52.204-21](#), Basic Safeguarding of Covered Contractor Information Systems (Nov 2021) , other than subcontracts for commercially available off-the-shelf items, if flow down is required in accordance with paragraph (c) of FAR clause [52.204-21](#).

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(vi) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(vii) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(viii) [52.204-27](#), Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(ix)

(A) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (DEC 2023) ([Pub. L. 115–390](#), title II).

(B) Alternate I (DEC 2023) of [52.204-30](#).

(x) [52.219-8](#), Utilization of Small Business Concerns (JAN 2025) ([15 U.S.C.637](#)(d)(2) and (3)), if the subcontract offers further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702](#)(a) on the date of subcontract award, the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.

(xi) Reserved

(xii) Reserved

(xiii) [52.222-35](#), Equal Opportunity for Veterans (JUN 2020) (38 U.S.C.4212(a));

(xiv) [52.222-36](#), Equal Opportunity for Workers with Disabilities (JUN 2020)(29 U.S.C.793).

(xv) [52.222-37](#), Employment Reports on Veterans (JUN 2020) (38 U.S.C.4212).

(xvi) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496), if flow down is required in accordance with paragraph (f) of FAR clause 52.222-40.

(xvii)

(A) [52.222-50](#), Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

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(B) Alternate I (MAR 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).

(xviii) [52.222-55](#), Minimum Wages for Contractor Workers under Executive Order 14026 (JAN 2022), if flow down is required in accordance with paragraph (k) of FAR clause [52.222-55](#).

(xix) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706), if flow down is required in accordance with paragraph (m) of FAR clause [52.222-62](#).

(xx)

(A) [52.224-3](#), Privacy Training (JAN 2017) ([5 U.S.C. 552a](#)) if flow down is required in accordance with [52.224-3](#)(f).

(B) Alternate I (JAN 2017) of [52.224-3](#), if flow down is required in accordance with [52.224-3](#)(f) and the agency specifies that only its agency-provided training is acceptable).

(xxi) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxii) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) , if flow down is required in accordance with paragraph (c) of FAR clause [52.232-40](#).

(xxiii) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxiv) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) ([46 U.S.C. 55305](#) and 10 U.S.C.2631), if flow down is required in accordance with paragraph (d) of FAR clause [52.247-64](#).

(2) While not required, the Contractor may flow down to subcontracts for commercial products or commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(d) The Contractor shall include the terms of this clause, including this paragraph (d), in subcontracts awarded under this contract.

(End of clause)

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52.247-67 SUBMISSION OF TRANSPORTATION DOCUMENTS FOR AUDIT. (FEB 2006)

(a) The Contractor shall submit to the address identified below, for prepayment audit, transportation documents on which the United States will assume freight charges that were paid -

(1) By the Contractor under a cost-reimbursement contract; and

(2) By a first-tier subcontractor under a cost-reimbursement subcontract thereunder.

(b) Cost-reimbursement Contractors shall only submit for audit those bills of lading with freight shipment charges exceeding \$100. Bills under \$100 shall be retained on-site by the Contractor and made available for on-site audits. This exception only applies to freight shipment bills and is not intended to apply to bills and invoices for any other transportation services.

(c) Contractors shall submit the above referenced transportation documents to -

NASA Goddard Space Flight Center
 Contracting Officer, Code 171
 Greenbelt, MD 20771

(End of clause)

52.252-2 CLAUSES INCORPORATED BY REFERENCE. (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

Federal Acquisition Regulation (FAR) Clauses:

<http://www.acquisition.gov/FAR>

NASA FAR Supplement (NFS) Clauses:

<https://www.hq.nasa.gov/office/procurement/regs/NFS.pdf>

(End of clause)

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES. (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the clause.

(b) The use in this solicitation or contract of any National Aeronautics and Space Administration Regulation (48 CFR Chapter 18) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

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(End of clause)

1852.204-76 SECURITY REQUIREMENTS FOR UNCLASSIFIED INFORMATION TECHNOLOGY RESOURCES (SEP 2024) (DEVIATION)

(a) The contractor shall protect the confidentiality, integrity, and availability of NASA Electronic Information and IT resources and protect NASA Electronic Information from unauthorized disclosure.

(b) This clause is applicable to all NASA contractors and sub-contractors that process, manage, access, or store unclassified electronic information, to include Sensitive But Unclassified (SBU) information or Controlled Unclassified Information (CUI), for NASA in support of NASA's missions, programs, projects and/or institutional requirements. Applicable requirements, regulations, policies, and guidelines are identified in the contract. [The NASA data requirements description \(DRD\), “Security Requirements for Unclassified Information Technology Resources,”](#) defines specific implementation requirements for this clause. For policy information considered sensitive, the documents will be identified as such in the contract and made available through the Contracting Officer.

(c) *Definitions.*

(1) IT resources means any hardware or software or interconnected system or subsystem of equipment, that is used to process, manage, access, or store electronic information.

(2) NASA Electronic Information is any data (as defined in the Rights in Data clause of this contract) or information (including information incidental to contract administration, such as financial, administrative, cost or pricing, or management information) that is processed, managed, accessed or stored on an IT system(s) in the performance of a NASA contract.

(3) Federal information system (FIS). The term "Federal information system" means an information system used or operated by an executive agency, by a contractor of an executive agency, or by another organization on behalf of an executive agency (40 U.S.C. §11331).

(4) Information System Security Plan (i.e., System Security Plan, IT Security Plan, or Security Plan) A formal document that provides an overview of the security requirements for an information system and describes the security controls in place or planned for meeting those requirements.

(d) Contractors that process, store, or transmit federal information or operate information systems on behalf of the federal government shall meet the same security and privacy requirements as federal agencies. The contractor shall develop and submit an Information System Security Plan when operating a FIS or maintains or collects information for the purpose of processing, storing, or transmitting Federal information, and those activities are not incidental to providing a service or product to the Government. Such FIS plans are to be

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accomplished in accordance with the current version of NASA Procedural Requirements (NPR) 2810.1 Security of Information and Information Systems. The security plan and Authorization to Operate (ATO) shall be in place before any system may operate in the NASA environment. When the contractor does not operate a FIS but receives, process, transmits, or stores NASA information in performance of the contract, the contractor shall attest to the ability to secure NASA information within its own IT/information system.

(e) The contractor shall afford Government access to the Contractor's and subcontractors' facilities, installations, operations, documentation, databases, and personnel used in performance of the contract. Access shall be provided to the extent required to carry out a program of IT inspection (to include vulnerability testing), investigation and audit to safeguard against threats and hazards to the integrity, availability, and confidentiality of NASA Electronic Information or to the function of IT systems operated on behalf of NASA, and to preserve evidence of computer crime. The contractor shall report immediately upon notification any incident involving NASA information on nonfederal (contractor) systems.

(f) The contractor shall provide the name and contact information for the contractor's IT Security point of contact during phase in of the contract. Contractor employees requiring physical access to NASA facilities or electronic access to NASA systems shall complete the NASA Cybersecurity and Privacy Awareness Training.

(g) The contractor shall insert this clause, including this paragraph in all subcontracts that process, manage, access or store NASA Electronic Information in support of the mission of the Agency.

(End of clause)

1852.216-80 TASK ORDERING PROCEDURE. (OCT 1996)

(a) Only the Contracting Officer may issue task orders to the Contractor, providing specific authorization or direction to perform work within the scope of the contract and as specified in the schedule. The Contractor may incur costs under this contract in performance of task orders and task order modifications issued in accordance with this clause. No other costs are authorized unless otherwise specified in the contract or expressly authorized by the Contracting Officer.

(b) Prior to issuing a task order, the Contracting Officer shall provide the Contractor with the following date:

(1) A functional description of the work identifying the objectives or results desired from the contemplated task order.

(2) Proposed performance standards to be used as criteria for determining whether the work requirements have been met.

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(3) A request for a task plan from the Contractor to include the technical approach, period of performance, appropriate cost information, and any other information required to determine the reasonableness of the Contractor's proposal.

(c) Within 7 calendar days after receipt of the Contracting Officer's request, the Contractor shall submit a task plan conforming to the request.

(d) After review and any necessary discussions, the Contracting Officer may issue a task order to the Contractor containing, as a minimum, the following:

(1) Date of the order.

(2) Contract number and order number.

(3) Functional description of the work identifying the objectives or results desired from the task order, including special instructions or other information necessary for performance of the task.

(4) Performance standards, and where appropriate, quality assurance standards.

(5) Maximum dollar amount authorized (cost and fee or price). This includes allocation of award fee among award fee periods, if applicable.

(6) Any other resources (travel, materials, equipment, facilities, etc.) authorized.

(7) Delivery/performance schedule including start and end dates.

(8) If contract funding is by individual task order, accounting and appropriation data.

(e) The Contractor shall provide acknowledgement of receipt to the Contracting Officer within 3 calendar days after receipt of the task order.

(f) If time constraints do not permit issuance of a fully defined task order in accordance with the procedures described in paragraphs (a) through (d), a task order which includes a ceiling price may be issued.

(g) The Contracting officer may amend tasks in the same manner in which they are issued.

(h) In the event of a conflict between the requirements of the task order and the Contractor's approved task plan, the task order shall prevail.

Note: Sections 2.6, 6.6.6, and 6.6.7 of Attachment A, Statement of Work shall be addressed with task orders issued under this contract. This clause exclusively covers task orders issued under this contract. This clause shall be exempt from all Earned Value Management System requirements.

(End of clause)

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**1852.225-71 RESTRICTION ON FUNDING ACTIVITY WITH CHINA (FEB 2012)
 (DEVIATION)**

(a) Definition - "China" or "Chinese-owned company" means the People's Republic of China, any company owned by the People's Republic of China or any company incorporated under the laws of the People's Republic of China.

(b) Public Laws 112-10, Section 1340(a) and 112-55, Section 539, restrict NASA from contracting to participate, collaborate, coordinate bilaterally in any way with China or a Chinese-owned company using funds appropriated on or after April 25, 2011. Contracts for commercial and non developmental items are exempted from the prohibition because they constitute purchase of goods or services that would not involve participation, collaboration, or coordination between the parties.

(c) This contract may use restricted funding that was appropriated on or after April 25, 2011. The contractor shall not contract with China or Chinese-owned companies for any effort related to this contract except for acquisition of commercial and non-developmental items. If the contractor anticipates making an award to China or Chinese-owned companies, the contractor must contact the contracting officer to determine if funding on this contract can be used for that purpose.

(d) Subcontracts - The contractor shall include the substance of this clause in all subcontracts made hereunder.

(End of clause)

1852.234-2 EARNED VALUE MANAGEMENT SYSTEM. (NOV 2015) (DEVIATION)

(a) In the performance of this contract, the Contractor shall use -

(1) An Earned Value Management System (EVMS) that has been determined by the Cognizant Federal Agency to be compliant with the EVMS guidelines specified in the American National Standards Institute (ANSI)/Electronic Industries Alliance (EIA) - 748 Standard, Industry Guidelines for Earned Value Management Systems (current version at the time of award) to manage this contract; and

(2) Earned Value Management (EVM) procedures that provide for generation of timely, accurate, reliable, and traceable information for the Contract Performance Report (CPR) and the Integrated Master Schedule (IMS) required by the data requirements descriptions in the contract.

(b) If, at the time of award, the Contractor's EVMS has not been determined by the Cognizant Federal Agency to be compliant with the EVMS guidelines, or the Contractor does not have an existing EVMS that is compliant with the guidelines in the ANSI/EIA-748 Standard

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(current version at the time of award), the Contractor shall apply the system to the contract and shall take timely action to implement its plan to obtain compliance/validation. The Contractor shall follow and implement the approved compliance/validation plan in a timely fashion. The Government will conduct a Compliance Review to assess the contractor's compliance with its plan, and if the Contractor does not follow the approved implementation schedule or correct all resulting system deficiencies identified as a result of the compliance review within a reasonable time, the Contracting Officer may take remedial action, that may include, but is not limited to, a reduction in fee.

(c) The Government will conduct Integrated Baseline Reviews (IBRs). Such reviews shall be scheduled and conducted as early as practicable, and if a pre-award IBR has not been conducted, a post-award IBR should be conducted within 180 calendar days after contract award, or the exercise of significant contract options, or within 60 calendar days after distribution of a supplemental agreement that implements a significant funding realignment or effects a significant change in contractual requirements (e.g., incorporation of major modifications). The objective of IBRs is for the Government and the Contractor to jointly assess the Contractor's baseline to be used for performance measurement to ensure complete coverage of the statement of work, logical scheduling of the work activities, adequate resourcing, and identification of inherent risks. See the NASA IBR Handbook (<http://evm.nasa.gov/handbooks.html>) for guidance.

(d) Unless a waiver is granted by the Cognizant Federal Agency, Contractor proposed EVMS changes require approval of the Cognizant Federal Agency prior to implementation. The Cognizant Federal Agency shall advise the Contractor of the acceptability of such changes within 30 calendar days after receipt of the notice of proposed changes from the Contractor. If the advance approval requirements are waived by the Cognizant Federal Agency, the Contractor shall disclose EVMS changes to the Cognizant Federal Agency at least 14 calendar days prior to the effective date of implementation.

(e) The Contractor agrees to provide access to all pertinent records and data requested by the Contracting Officer or a duly authorized representative. Access is to permit Government surveillance to ensure that the Contractor's EVMS complies, and continues to comply, with the EVMS guidelines referenced in paragraph (a) of this clause, and to demonstrate -

(1) Proper implementation of the procedures generating the cost and schedule information being used to satisfy the contract data requirements;

(2) Continuing application of the accepted company procedures in satisfying the CPR required by the contract through recurring program/project and contract surveillance; and

(3) Implementation of any corrective actions identified during the surveillance process.

(f) The Contractor shall be responsible for ensuring that its subcontractors, identified below, comply with the EVMS requirements of this clause as follows:

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(1) For subcontracts with an estimated dollar value of \$100M or more, the following subcontractors shall comply with the requirements of this clause.

TBD

(2) For subcontracts with an estimated dollar value of less than \$100M, the following subcontractors shall comply with the requirements of this clause except for the requirement in paragraph (b), if applicable, to obtain compliance/validation.

TBD

(g) If the contractor identifies a need to deviate from the agreed baseline by working against an Over Target Baseline (OTB) or Over Target Schedule (OTS), the contractor shall submit to the Contracting Officer a request for approval to begin implementation of an OTB or OTS. This request shall include a top-level projection of cost and/or schedule growth, whether or not performance variances will be retained, and a schedule of implementation for the reprogramming adjustment. The Government will approve or deny the request within 30 calendar days after receipt of the request. Failure of the Government to respond within this 30-day period constitutes approval of the request. Approval of the deviation request does not constitute a change, or the basis for a change, to the negotiated cost or price of this contract, or the estimated cost of any undefinitized contract actions.

(End of clause)

**52.227-14 RIGHTS IN DATA-GENERAL (MAY 2014) —ALTERNATE II (DEC 2007)
 AND ALTERNATE III (DEC 2007) AS MODIFIED BY NASA FAR SUPPLEMENT
 1852.227-14 (APR 2015)**

(a) Definitions. As used in this clause—

“Computer database” or “database means” a collection of recorded information in a form capable of, and for the purpose of, being stored in, processed, and operated on by a computer. The term does not include computer software.

“Computer software”—

(1) Means

(i) Computer programs that comprise a series of instructions, rules, routines, or statements, regardless of the media in which recorded, that allow or cause a computer to perform a specific operation or series of operations; and

(ii) Recorded information comprising source code listings, design details, algorithms, processes, flow charts, formulas, and related material that would enable the computer program to be produced, created, or compiled.

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(2) Does not include computer databases or computer software documentation.

“Computer software documentation” means owner’s manuals, user’s manuals, installation instructions, operating instructions, and other similar items, regardless of storage medium, that explain the capabilities of the computer software or provide instructions for using the software.

“Data” means recorded information, regardless of form or the media on which it may be recorded. The term includes technical data and computer software. The term does not include information incidental to contract administration, such as financial, administrative, cost or pricing, or management information.

“Form, fit, and function data” means data relating to items, components, or processes that are sufficient to enable physical and functional interchangeability, and data identifying source, size, configuration, mating and attachment characteristics, functional characteristics, and performance requirements. For computer software it means data identifying source, functional characteristics, and performance requirements but specifically excludes the source code, algorithms, processes, formulas, and flow charts of the software.

“Limited rights” means the rights of the Government in limited rights data as set forth in the Limited Rights Notice of paragraph (g)(3) if included in this clause.

“Limited rights data” means data, other than computer software, that embody trade secrets or are commercial or financial and confidential or privileged, to the extent that such data pertain to items, components, or processes developed at private expense, including minor modifications.

“Restricted computer software” means computer software developed at private expense and that is a trade secret, is commercial or financial and confidential or privileged, or is copyrighted computer software, including minor modifications of the computer software.

“Restricted rights,” as used in this clause, means the rights of the Government in restricted computer software, as set forth in a Restricted Rights Notice of paragraph (g) if included in this clause, or as otherwise may be provided in a collateral agreement incorporated in and made part of this contract, including minor modifications of such computer software.

“Technical data” means recorded information (regardless of the form or method of the recording) of a scientific or technical nature (including computer databases and computer software documentation). This term does not include computer software or financial, administrative, cost or pricing, or management data or other information incidental to contract administration. The term includes recorded information of a scientific or technical nature that is included in computer databases (**See 41 U.S.C. 116**).

“Unlimited rights” means the rights of the Government to use, disclose, reproduce, prepare derivative works, distribute copies to the public, and perform publicly and display publicly, in any manner and for any purpose, and to have or permit others to do so.

(b) Allocation of rights.

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(1) Except as provided in paragraph (c) of this clause, the Government shall have unlimited rights in—

- (i) Data first produced in the performance of this contract;
- (ii) Form, fit, and function data delivered under this contract;
- (iii) Data delivered under this contract (except for restricted computer software) that constitute manuals or instructional and training material for installation, operation, or routine maintenance and repair of items, components, or processes delivered or furnished for use under this contract; and
- (iv) All other data delivered under this contract unless provided otherwise for limited rights data or restricted computer software in accordance with paragraph (g) of this clause.

(2) The Contractor shall have the right to—

- (i) Assert copyright in data first produced in the performance of this contract to the extent provided in paragraph (c)(1) of this clause;
- (ii) Use, release to others, reproduce, distribute, or publish any data first produced or specifically used by the Contractor in the performance of this contract, unless provided otherwise in paragraph (d) of this clause;
- (iii) Substantiate the use of, add, or correct limited rights, restricted rights, or copyright notices and to take other appropriate action, in accordance with paragraphs (e) and (f) of this clause; and
- (iv) Protect from unauthorized disclosure and use those data that are limited rights data or restricted computer software to the extent provided in paragraph (g) of this clause.

(c) Copyright—

(1) Data first produced in the performance of this contract.

(i) Unless provided otherwise in paragraph (d) of this clause, the Contractor may, without prior approval of the Contracting Officer, assert copyright in scientific and technical articles based on or containing data first produced in the performance of this contract and published in academic, technical or professional journals, symposia proceedings, or similar works. The prior, express written permission of the Contracting Officer is required to assert copyright in all other data first produced in the performance of this contract.

(ii) When authorized to assert copyright to the data, the Contractor shall affix the applicable copyright notices of **17 U.S.C. 401 or 402**, and an acknowledgment of Government sponsorship (including contract number).

(iii) For data other than computer software, the Contractor grants to the Government, and others acting on its behalf, a paid-up, nonexclusive, irrevocable, worldwide license in such copyrighted data to reproduce, prepare derivative works, distribute copies to the public, and perform publicly

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and display publicly by or on behalf of the Government. For computer software, the Contractor grants to the Government, and others acting on its behalf, a paid-up, nonexclusive, irrevocable, worldwide license in such copyrighted computer software to reproduce, prepare derivative works, and perform publicly and display publicly (but not to distribute copies to the public) by or on behalf of the Government.

(iv) The contractor shall mark each scientific and technical article based on or containing data first produced in the performance of this contract and submitted for publication in academic, technical or professional journals, symposia proceedings or similar works with a notice, similar in all material respects to the following, on the cover or first page of the article, reflecting the Government's non-exclusive worldwide license in the copyright.

GOVERNMENT RIGHTS NOTICE

This work was authored by employees of [insert the name of the Contractor] under Contract No. [insert contract number] with the National Aeronautics and Space Administration. The United States Government retains and the publisher, by accepting the article for publication, acknowledges that the United States Government retains a non-exclusive, paid-up, irrevocable, worldwide license to reproduce, prepare derivative works, distribute copies to the public, and perform publicly and display publicly, or allow others to do so, for United States Government purposes. All other rights are reserved by the copyright owner.

(End of Notice)

(2) Data not first produced in the performance of this contract. The Contractor shall not, without the prior written permission of the Contracting Officer, incorporate in data delivered under this contract any data not first produced in the performance of this contract unless the Contractor—

(i) Identifies the data; and

(ii) Grants to the Government, or acquires on its behalf, a license of the same scope as set forth in paragraph (c)(1) of this clause or, if such data are restricted computer software, the Government shall acquire a copyright license as set forth in paragraph (g)(4) of this clause (if included in this contract) or as otherwise provided in a collateral agreement incorporated in or made part of this contract.

(3) Removal of copyright notices. The Government will not remove any authorized copyright notices placed on data pursuant to this paragraph (c), and will include such notices on all reproductions of the data.

(d) Release, publication, and use of data. The Contractor shall have the right to use, release to others, reproduce, distribute, or publish any data first produced or specifically used by the Contractor in the performance of this contract, except—

(1) As prohibited by Federal law or regulation (e.g., export control or national security laws or regulations);

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(2) As expressly set forth in this contract; or

(3) If the Contractor receives or is given access to data necessary for the performance of this contract that contain restrictive markings, the Contractor shall treat the data in accordance with such markings unless specifically authorized otherwise in writing by the Contracting Officer.

(4)(i) The Contractor agrees not to assert claim to copyright, publish or release to others any computer software first produced in the performance of this contract unless the Contracting Officer authorizes through a contract modification.

(ii) The prohibition on "release to others", as set forth in (d)(4)(i), does not prohibit release to another Federal Agency for its use or its contractors' use, as long as any such release is consistent with any restrictive markings on the software. Any restrictive markings on the software shall take precedence over the aforementioned release. Any release to a Federal Agency shall limit use to the Federal Agency or its contractors for Government purposes only. Any other release shall require the Contracting Officer's prior written permission.

(iii) If the Government desires to obtain copyright in computer software first produced in the performance of this contract and permission has not been granted as set forth in paragraph (d)(4)(i) of this clause, the Contracting Officer may direct the contractor to assert, or authorize the assertion of, a claim to copyright in such data and to assign, or obtain the assignment of, such copyright to the Government or its designated assignee.

(e) Unauthorized marking of data.

(1) Notwithstanding any other provisions of this contract concerning inspection or acceptance, if any data delivered under this contract are marked with the notices specified in paragraph (g)(3) or (g) (4) if included in this clause, and use of the notices is not authorized by this clause, or if the data bears any other restrictive or limiting markings not authorized by this contract, the Contracting Officer may at any time either return the data to the Contractor, or cancel or ignore the markings. However, pursuant to **41 U.S.C. 4703**, the following procedures shall apply prior to canceling or ignoring the markings.

(i) The Contracting Officer will make written inquiry to the Contractor affording the Contractor 60 days from receipt of the inquiry to provide written justification to substantiate the propriety of the markings;

(ii) If the Contractor fails to respond or fails to provide written justification to substantiate the propriety of the markings within the 60-day period (or a longer time approved in writing by the Contracting Officer for good cause shown), the Government shall have the right to cancel or ignore the markings at any time after said period and the data will no longer be made subject to any disclosure prohibitions.

(iii) If the Contractor provides written justification to substantiate the propriety of the markings within the period set in paragraph (e)(1)(i) of this clause, the Contracting Officer will consider

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such written justification and determine whether or not the markings are to be canceled or ignored. If the Contracting Officer determines that the markings are authorized, the Contractor will be so notified in writing. If the Contracting Officer determines, with concurrence of the head of the contracting activity, that the markings are not authorized, the Contracting Officer will furnish the Contractor a written determination, which determination will become the final agency decision regarding the appropriateness of the markings unless the Contractor files suit in a court of competent jurisdiction within 90 days of receipt of the Contracting Officer's decision. The Government will continue to abide by the markings under this paragraph (e)(1)(iii) until final resolution of the matter either by the Contracting Officer's determination becoming final (in which instance the Government will thereafter have the right to cancel or ignore the markings at any time and the data will no longer be made subject to any disclosure prohibitions), or by final disposition of the matter by court decision if suit is filed.

(2) The time limits in the procedures set forth in paragraph (e)(1) of this clause may be modified in accordance with agency regulations implementing the Freedom of Information Act (**5 U.S.C. 552**) if necessary to respond to a request thereunder.

(3) Except to the extent the Government's action occurs as the result of final disposition of the matter by a court of competent jurisdiction, the Contractor is not precluded by paragraph (e) of the clause from bringing a claim, in accordance with the Disputes clause of this contract, that may arise as the result of the Government removing or ignoring authorized markings on data delivered under this contract.

(f) Omitted or incorrect markings.

(1) Data delivered to the Government without any restrictive markings shall be deemed to have been furnished with unlimited rights. The Government is not liable for the disclosure, use, or reproduction of such data.

(2) If the unmarked data has not been disclosed without restriction outside the Government, the Contractor may request, within 6 months (or a longer time approved by the Contracting Officer in writing for good cause shown) after delivery of the data, permission to have authorized notices placed on the data at the Contractor's expense. The Contracting Officer may agree to do so if the Contractor—

(i) Identifies the data to which the omitted notice is to be applied;

(ii) Demonstrates that the omission of the notice was inadvertent;

(iii) Establishes that the proposed notice is authorized; and

(iv) Acknowledges that the Government has no liability for the disclosure, use, or reproduction of any data made prior to the addition of the notice or resulting from the omission of the notice.

(3) If data has been marked with an incorrect notice, the Contracting Officer may—

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(i) Permit correction of the notice at the Contractor's expense if the Contractor identifies the data and demonstrates that the correct notice is authorized; or

(ii) Correct any incorrect notices.

(g) Protection of limited rights data and restricted computer software.

(1) The Contractor may withhold from delivery qualifying limited rights data or restricted computer software that are not data identified in paragraphs (b)(1)(i), (ii), and (iii) of this clause. As a condition to this withholding, the Contractor shall—

(i) Identify the data being withheld; and

(ii) Furnish form, fit, and function data instead.

(2) Limited rights data that are formatted as a computer database for delivery to the Government shall be treated as limited rights data and not restricted computer software.

(3) Notwithstanding paragraph (g)(1) of this clause, the contract may identify and specify the delivery of limited rights data, or the Contracting Officer may require by written request the delivery of limited rights data that has been withheld or would otherwise be entitled to be withheld. If delivery of that data is required, the Contractor shall affix the following "Limited Rights Notice" to the data and the Government will treat the data, subject to the provisions of paragraphs (e) and (f) of this clause, in accordance with the notice:

Limited Rights Notice (Dec 2007)

(a) These data are submitted with limited rights under Government Contract No. _____ (and subcontract _____, if appropriate). These data may be reproduced and used by the Government with the express limitation that they will not, without written permission of the Contractor, be used for purposes of manufacture nor disclosed outside the Government; except that the Government may disclose these data outside the Government for the following purposes, if any; provided that the Government makes such disclosure subject to prohibition against further use and disclosure:

(i) Use (except for manufacture) by support service contractors.

(ii) Evaluation by nongovernment evaluators.

(iii) Use (except for manufacture) by other contractors participating in the Government's program of which the specific contract is a part.

(iv) Emergency repair or overhaul work.

(v) Release to a foreign government, or its instrumentalities, if required to serve the interests of the U.S. Government, for information or evaluation, or for emergency repair or overhaul work by the foreign government.

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(vi) or any other legitimate government use

(b) This notice shall be marked on any reproduction of these data, in whole or in part.

(End of notice)

(4)(i) Notwithstanding paragraph (g)(1) of this clause, the contract may identify and specify the delivery of restricted computer software, or the Contracting Officer may require by written request the delivery of restricted computer software that has been withheld or would otherwise be entitled to be withheld. If delivery of that computer software is required, the Contractor shall affix the following “Restricted Rights Notice” to the computer software and the Government will treat the computer software, subject to paragraphs (e) and (f) of this clause, in accordance with the notice:

Restricted Rights Notice (Dec 2007)

(a) This computer software is submitted with restricted rights under Government Contract No. _____ (and subcontract _____, if appropriate). It may not be used, reproduced, or disclosed by the Government except as provided in paragraph (b) of this notice or as otherwise expressly stated in the contract.

(b) This computer software may be—

(1) Used or copied for use with the computer(s) for which it was acquired, including use at any Government installation to which the computer(s) may be transferred;

(2) Used or copied for use with a backup computer if any computer for which it was acquired is inoperative;

(3) Reproduced for safekeeping (archives) or backup purposes;

(4) Modified, adapted, or combined with other computer software, provided that the modified, adapted, or combined portions of the derivative software incorporating any of the delivered, restricted computer software shall be subject to the same restricted rights;

(5) Disclosed to and reproduced for use by support service Contractors or their subcontractors in accordance with paragraphs (b)(1) through (4) of this notice; and

(6) Used or copied for use with a replacement computer and other legitimate government use.

(c) Notwithstanding the foregoing, if this computer software is copyrighted computer software, it is licensed to the Government with the minimum rights set forth in paragraph (b) of this notice.

(d) Any other rights or limitations regarding the use, duplication, or disclosure of this computer software are to be expressly stated in, or incorporated in, the contract.

(e) This notice shall be marked on any reproduction of this computer software, in whole or in part.

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(End of notice)

(ii) Where it is impractical to include the Restricted Rights Notice on restricted computer software, the following short-form notice may be used instead:

Restricted Rights Notice Short Form (Jun 1987)

Use, reproduction, or disclosure is subject to restrictions set forth in Contract No. _____ (and subcontract, if appropriate) with _____ (name of Contractor and subcontractor).

(End of notice)

(iii) If restricted computer software is delivered with the copyright notice of **17 U.S.C. 401**, it will be presumed to be licensed to the Government without disclosure prohibitions, with the minimum rights set forth in paragraph (b) of this clause.

(h) Subcontracting. The Contractor shall obtain from its subcontractors all data and rights therein necessary to fulfill the Contractor's obligations to the Government under this contract. If a subcontractor refuses to accept terms affording the Government those rights, the Contractor shall promptly notify the Contracting Officer of the refusal and shall not proceed with the subcontract award without authorization in writing from the Contracting Officer.

(i) Relationship to patents or other rights. Nothing contained in this clause shall imply a license to the Government under any patent or be construed as affecting the scope of any license or other right otherwise granted to the Government.

(End of clause)

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GSFC 52.211-101 LIST OF ATTACHMENTS. (NOV 2022)

The following documents are attached hereto and made a part of this contract:

Attachment	Description	Date	No. of Pages (including the cover page)
A	Near Earth Orbit Network Sounder for Microwave-Based Applications Statement of Work (NS1-SMBA- SOW-0002), Revision –	December 20, 2024	74
B	Financial Management Reporting Requirements	June 2014	4
C	Non-Technical Contract Data Requirements List (including Data Requirements Documents)	October 28, 2021	7
D	Organizational Conflicts of Interest Avoidance Plan	TBP	TBP
E	Cyber Supply Chain Risk Management (C-SCRM) Plan	TBS in accordance with Attachment C, DRD 2	TBS in accordance with Attachment C, DRD 2
F	Safety and Health Plan	TBS***	TBS***
G	Small Business Subcontracting Plan	TBP	TBP
H	Requirements Statements List	November 30, 2022	5
I	List of Government Furnished Property	December 13, 2024	2
J	Contractor Work Breakdown Structure (CWBS)	December 2024	3
K	Direct Labor Rates, Indirect Rates, and Fixed Fee Matrices	TBP**	TBP**

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L	Contractor Proposed Enhancements	March 2015	TBP
M	Reserved		
N	Applicable Documents Tables	December 20, 2024	3

TBS = To Be Submitted

TBP = To Be Proposed

*TBS within 30 days of the contract effective date

**TBS with proposal

***TBS within 30 days of contract award

(End of clause)

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Clauses incorporated by reference:

FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1):

52.225-18 PLACE OF MANUFACTURE. (AUG 2018)

(End of by reference clauses)

52.204-8 ANNUAL REPRESENTATIONS AND CERTIFICATIONS. (JAN 2025)
(DEVIATION FEB 2025)

(a)(1) The North American Industry Classification System (NAICS) code for this acquisition is 334511.

(2) The small business size standard is 1,350 employees.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

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[] (i) Paragraph (d) applies.

[] (ii) Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless—

(A) The acquisition is to be made under the simplified acquisition procedures in Part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements—Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that—

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services—Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations—Representation.

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(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance—Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) Reserved

(xv) Reserved

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification (DEVIATION FEB 2025). This provision applies to solicitations that require the delivery or specify the use of biobased products

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in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts (DEVIATION FEB 2025).

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) Reserved

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan—Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran—Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

X (i) 52.204-17, Ownership or Control of Offeror.

X (ii) 52.204-20, Predecessor of Offeror.

X (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

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___ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Certification.

___ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Certification.

___ (vi) 52.227-6, Royalty Information.

___ (A) Basic.

___ (B) Alternate I.

X (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The Offeror has completed the annual representations and certifications electronically in SAM accessed through <https://www.sam.gov>. After reviewing the SAM information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

NOTICE: System updates may lag policy updates. SAM may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

(End of provision)

**52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS
AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT. (NOV 2021)**

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The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it “does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument” in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services - Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications- Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it “does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services” in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.* (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to -

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to -

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(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(d) *Representations.* The Offeror represents that -

(1) It [] will, [] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds “will” in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that -

It [] does, [] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds “does” in paragraph (d)(2) of this section.

(e) *Disclosures.* (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded “will” in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment -

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

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(ii) For covered services -

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded “does” in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment -

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services -

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

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**52.204-29 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS—
 REPRESENTATION AND DISCLOSURES. (DEC 2023)**

(a) *Definitions.* As used in this provision, *Covered article*, *FASCSA order*, *Intelligence community*, *National security system*, *Reasonable inquiry*, *Sensitive compartmented information*, *Sensitive compartmented information system*, and *Source* have the meaning provided in the clause 52.204–30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204–30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(c) *Procedures.* (1) The Offeror shall search for the phrase “FASCSA order” in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204–30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) *Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) *Disclosures.* The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

- (1) Name of the product or service provided to the Government;
- (2) Name of the covered article or source subject to a FASCSA order;

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(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description;

(7) Reason why the applicable covered article or the product or service is being provided or used;

(f) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of provision)

52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS. (OCT 2018)

(a) *Definitions.* As used in this provision -

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means -

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

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(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked “has” in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in -

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-12 CERTIFICATION REGARDING TAX MATTERS. (OCT 2020)

(a) This provision implements section 523 of Division B of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts.

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(b) If the Offeror is proposing a total contract price that will exceed \$5.5 million (including options), the Offeror shall certify that, to the best of its knowledge and belief, it -

(1) Has ☐ filed all Federal tax returns required during the three years preceding the certification;

(2) Has not ☐ been convicted of a criminal offense under the Internal Revenue Code of 1986; and

(3) Has not ☐, more than 90 days prior to certification, been notified of any unpaid Federal tax assessment for which the liability remains unsatisfied, unless the assessment is the subject of an installment agreement or offer in compromise that has been approved by the Internal Revenue Service and is not in default, or the assessment is the subject of a non-frivolous administrative or judicial proceeding.

(End of provision)

52.209-13 VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS - CERTIFICATION. (NOV 2021)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification. [Offeror shall check either (1) or (2).]*

____ (1) The Offeror certifies that -

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not

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adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

_____ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If there may have been such activity, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

- (i) An inability to certify compliance.
- (ii) An inability to conclude compliance.
- (iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the

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conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to *NDAA1290Cert@state.gov*. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless -

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has -

(i) Waived application under U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C.2593e(b).

(e) *Remedies*. The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

52.230-1 COST ACCOUNTING STANDARDS NOTICES AND CERTIFICATION. (JUN 2020)

Note: This notice does not apply to small businesses or foreign governments. This notice is in three parts, identified by Roman numerals I through III.

Offerors shall examine each part and provide the requested information in order to determine Cost Accounting Standards (CAS) requirements applicable to any resultant contract.

If the offeror is an educational institution, Part II does not apply unless the contemplated contract will be subject to full or modified CAS coverage pursuant to 48 CFR 9903.201-2(c)(5) or 9903.201-2(c)(6), respectively.

I. DISCLOSURE STATEMENT – COST ACCOUNTING PRACTICES AND CERTIFICATION

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(a) Any contract in excess of the lower CAS threshold specified in Federal Acquisition Regulation (FAR) 30.201-4(b) resulting from this solicitation will be subject to the requirements of the Cost Accounting Standards Board (48 CFR chapter 99), except for those contracts which are exempt as specified in 48 CFR 9903.201-1.

(b) Any offeror submitting a proposal which, if accepted, will result in a contract subject to the requirements of 48 CFR chapter 99 must, as a condition of contracting, submit a Disclosure Statement as required by 48 CFR 9903.202. When required, the Disclosure Statement must be submitted as a part of the offeror's proposal under this solicitation unless the offeror has already submitted a Disclosure Statement disclosing the practices used in connection with the pricing of this proposal. If an applicable Disclosure Statement has already been submitted, the offeror may satisfy the requirement for submission by providing the information requested in paragraph (c) of Part I of this provision.

CAUTION: In the absence of specific regulations or agreement, a practice disclosed in a Disclosure Statement shall not, by virtue of such disclosure, be deemed to be a proper, approved, or agreed-to practice for pricing proposals or accumulating and reporting contract performance cost data.

(c) Check the appropriate box below:

☐ (1) *Certificate of Concurrent Submission of Disclosure Statement.* The offeror hereby certifies that, as a part of the offer, copies of the Disclosure Statement have been submitted as follows: (i) original and one copy to the cognizant Administrative Contracting Officer (ACO) or cognizant Federal agency official authorized to act in that capacity (Federal official), as applicable, and (ii) one copy to the cognizant Federal auditor.

(Disclosure must be on Form No. CASB DS-1 or CASB DS-2, as applicable. Forms may be obtained from the cognizant ACO or Federal official.)

Date of Disclosure Statement:

Name and Address of Cognizant ACO or Federal Official Where Filed:

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the Disclosure Statement.

☐ (2) *Certificate of Previously Submitted Disclosure Statement.* The offeror hereby certifies that the required Disclosure Statement was filed as follows:

Date of Disclosure Statement:

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Name and Address of Cognizant ACO or Federal Official Where Filed:

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the applicable Disclosure Statement.

☐ (3) *Certificate of Monetary Exemption.* The offeror hereby certifies that the offeror, together with all divisions, subsidiaries, and affiliates under common control, did not receive net awards of negotiated prime contracts and subcontracts subject to CAS totaling \$50 million or more in the cost accounting period immediately preceding the period in which this proposal was submitted. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

☐ (4) *Certificate of Interim Exemption.* The offeror hereby certifies that (i) the offeror first exceeded the monetary exemption for disclosure, as defined in (3) of this subsection, in the cost accounting period immediately preceding the period in which this offer was submitted and (ii) in accordance with 48 CFR 9903.202-1, the offeror is not yet required to submit a Disclosure Statement. The offeror further certifies that if an award resulting from this proposal has not been made within 90 days after the end of that period, the offeror will immediately submit a revised certificate to the Contracting Officer, in the form specified under subparagraph (c)(1) or (c)(2) of Part I of this provision, as appropriate, to verify submission of a completed Disclosure Statement.

CAUTION: Offerors currently required to disclose because they were awarded a CAS-covered prime contract or subcontract of \$50 million or more in the current cost accounting period may not claim this exemption (4). Further, the exemption applies only in connection with proposals submitted before expiration of the 90-day period following the cost accounting period in which the monetary exemption was exceeded.

II. COST ACCOUNTING STANDARDS – ELIGIBILITY FOR MODIFIED CONTRACT COVERAGE

If the offeror is eligible to use the modified provisions of 48 CFR 9903.201-2(b) and elects to do so, the offeror shall indicate by checking the box below. Checking the box below shall mean that the resultant contract is subject to the Disclosure and Consistency of Cost Accounting Practices clause in lieu of the Cost Accounting Standards clause.

☐ The offeror hereby claims an exemption from the Cost Accounting Standards clause under the provisions of 48 CFR 9903.201-2(b) and certifies that the offeror is eligible for use of the Disclosure and Consistency of Cost Accounting Practices clause because during the cost

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accounting period immediately preceding the period in which this proposal was submitted, the offeror received less than \$50 million in awards of CAS-covered prime contracts and subcontracts. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

CAUTION: An offeror may not claim the above eligibility for modified contract coverage if this proposal is expected to result in the award of a CAS-covered contract of \$50 million or more or if, during its current cost accounting period, the offeror has been awarded a single CAS-covered prime contract or subcontract of \$50 million or more.

III. ADDITIONAL COST ACCOUNTING STANDARDS APPLICABLE TO EXISTING CONTRACTS

The offeror shall indicate below whether award of the contemplated contract would, in accordance with subparagraph (a)(3) of the Cost Accounting Standards clause, require a change in established cost accounting practices affecting existing contracts and subcontracts.

☐ Yes ☐ No

(End of provision)

52.230-7 PROPOSAL DISCLOSURE - COST ACCOUNTING PRACTICE CHANGES.
(APR 2005)

The offeror shall check “yes” below if the contract award will result in a required or unilateral change in cost accounting practice, including unilateral changes requested to be desirable changes.

Yes No

If the offeror checked “Yes” above, the offeror shall -

(1) Prepare the price proposal in response to the solicitation using the changed practice for the period of performance for which the practice will be used; and

(2) Submit a description of the changed cost accounting practice to the Contracting Officer and the Cognizant Federal Agency Official as pricing support for the proposal.

(End of provision)

1852.225-72 RESTRICTION ON FUNDING ACTIVITY WITH CHINA -
REPRESENTATION (FEB 2012) (DEVIATION)

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(a) Definition - "China" or "Chinese-owned" means the People's Republic of China, any company owned by the People's Republic of China or any company incorporated under the laws of the People's Republic of China.

(b) Public Laws 112-10, Section 1340(a) and 112-55, Section 536, restrict NASA from contracting to participate, collaborate, or coordinate bilaterally in any way with China or a Chinese-owned company with funds appropriated on or after April 25, 2011. Contracts for commercial and non-developmental items are excepted from the prohibition as they constitute purchase of goods or services that would not involve participation, collaboration, or coordination between the parties.

(c) Representation. By submission of its offer, the offeror represents that the offeror is not China or a Chinese-owned company.

(End of clause)

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Provisions incorporated by reference:

FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1):

52.204-7 SYSTEM FOR AWARD MANAGEMENT. (NOV 2024)

52.204-16 COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING. (AUG 2020)

52.204-22 ALTERNATIVE LINE ITEM PROPOSAL. (JAN 2017)

52.214-34 SUBMISSION OF OFFERS IN THE ENGLISH LANGUAGE. (APR 1991)

52.214-35 SUBMISSION OF OFFERS IN U.S. CURRENCY. (APR 1991)

52.215-1 INSTRUCTIONS TO OFFERORS - COMPETITIVE ACQUISITION. (NOV 2021)

52.215-16 FACILITIES CAPITAL COST OF MONEY. (JUN 2003)

52.215-20 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA
OTHER THAN CERTIFIED COST OR PRICING DATA. (NOV 2021) ALTERNATE IV (OCT
2010)

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52.215-22 LIMITATIONS ON PASS-THROUGH CHARGES - IDENTIFICATION OF SUBCONTRACT EFFORT. (OCT 2009)

52.222-56 CERTIFICATION REGARDING TRAFFICKING IN PERSONS COMPLIANCE PLAN. (OCT 2020)

NASA FAR SUPPLEMENT (48 CFR CHAPTER 18) PROVISIONS:

1852.227-71 REQUESTS FOR WAIVER OF RIGHTS TO INVENTIONS. (APR 2015)

1852.228-80 INSURANCE—IMMUNITY FROM TORT LIABILITY. (SEP 2000)

1852.233-70 PROTESTS TO NASA. (DEC 2015)

(End of by reference clauses)

52.211-14 NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE. (APR 2008)

Any contract awarded as a result of this solicitation will be ☐ DX rated order; ☒ DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR700), and the Contractor will be required to follow all of the requirements of this regulation.

52.216-1 TYPE OF CONTRACT. (APR 1984)

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The Government contemplates award of a Cost Plus Award Fee contract with Cost Plus Fixed Fee for Task Orders used to address Attachment A, Statement of Work, Sections 2.6, 6.6.6, and 6.6.7, resulting from this solicitation.

(End of provision)

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE. (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

Federal Acquisition Regulation (FAR) provisions:

<http://www.acquisition.gov/FAR>

NASA FAR Supplement (NFS) provisions:

<https://www.hq.nasa.gov/office/procurement/regs/NFS.pdf>

(End of provision)

52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS. (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR chapter 1) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the provision.

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(b) The use in this solicitation of any NASA FAR Supplement (48 CFR chapter 18) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of provision)

NOTICE OF POTENTIAL ORGANIZATIONAL CONFLICTS OF INTEREST (OCT 2021)

(a) The contracting officer (CO) has determined that this acquisition may give rise to an organizational conflict of interest (OCI). Accordingly, the attention of prospective offerors is invited to Federal Acquisition Regulation (FAR) Subpart 9.5 Organizational Conflicts of Interest. Offerors are required to submit an acceptable OCI Plan in accordance with the requirements of Data Requirements Description (DRD) 1, Organizational Conflict of Interest, within Attachment C, Non-Technical Contract Data Requirements List (including Data Requirements Documents).

(b) Paragraphs (b)(1) – (3) below contain brief descriptions of each type of potential OCI and the reason it creates a concern. The Government has identified specific actual or potential conflicts related to this contract in paragraph (c) below.

(1) Unequal Access to Information: An OCI due to “unequal access to information” is created when a contractor has access to nonpublic information that may provide the firm an unfair competitive advantage to compete against other companies, likely in the context of a later competition for a future Government contract.

(2) Biased Ground Rules: An OCI due to “biased ground rules” is created when a firm, as part of its performance of a Government contract, has in some sense set the ground rules for another Government contract by, for example, writing the statement of work or the specifications. In these “biased ground rules” cases, the primary concern is that the firm could skew the future competition, whether intentionally or not, in favor of itself. These situations may also involve concerns that a firm, by virtue of its special knowledge of the agency’s future requirements, would have an unfair advantage in the

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competition for those requirements. Thus, both principles of bias and unfair competitive advantage may be present under certain circumstances.

(3) Impaired Objectivity: An OCI due to “impaired objectivity” is created when a contractor, as part of its performance of a Government contract, has the opportunity to take action, or participate in contract activities, under circumstances where the contractor’s judgment or objectivity in performing the requirements may be impaired because the contractor’s actions might affect the interests of entities with which the contractor has a direct or indirect affiliation or a competitive posture. Under such circumstances, the contractor could positively impact its own interests or those of a related/affiliated company or could negatively impact the financial interests of a competitor entity. This conflict contains two elements – the use of subjective judgment by the contractor and a direct or indirect financial interest in the outcome of performance.

Contractor activities or actions having the potential to result in an impaired objectivity OCI include the following: participating in reviewing third-party proposals; other reviewing, evaluating, analyzing or testing of services, technology concepts, designs, prototypes, software or hardware of the contractor, an affiliate, or a third party; or making recommendations or decisions that could benefit same.

(c) The nature of the potential OCI(s) is:

- (1) Unequal Access to Information – There is a concern that the successful contractor or its proposed subcontractor(s), as part of their performance of a Government contract, obtains access to another contractor’s proprietary, business confidential, or financial data and/or non-public information, which may provide the firm an unfair competitive advantage in a future competition.
- (2) Biased Ground Rules – There is concern that the successful contractor will have input into external interfaces with the SMBA instrument which could directly impact future competitions for the associated Spacecraft, Ground System, and related requirements.

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(d) The proposed OCI Plan shall be consistent with all other areas of the proposal. The proposed OCI Plan is not page limited and shall be included as a separate proposal attachment.

(e) The proposed OCI Plan shall explicitly address mitigation including, but not limited to, the implementation of firewalls, from other Near Earth Orbit Network procurement activities.

(End of text)

1852.234-1 NOTICE OF EARNED VALUE MANAGEMENT SYSTEM. (NOV 2015)
(DEVIATION)

(a) The offeror shall provide documentation that its proposed Earned Value Management System (EVMS) complies with the EVMS guidelines in the American National Standards Institute (ANSI)/Electronic Industries Alliance (EIA)-748 Standard, Earned Value Management Systems (current version at time of solicitation).

(b) If the offeror proposes to use a system that currently does not meet the requirements of paragraph (a) of this provision, the offeror shall submit its comprehensive plan for compliance with the EVMS guidelines to the Government for approval.

(1) The plan shall -

(i) Describe the EVMS the offeror intends to use in performance of the contract;

(ii) Distinguish between the offeror's existing management system and modifications proposed to meet the EVMS guidelines in ANSI/EIA-748;

(iii) Provide a matrix that correlates each guideline in ANSI/EIA 748 (current version at time of solicitation) to the corresponding process in the offeror's written management procedures;

(iv) Describe the proposed procedure for application of the EVMS requirements to subcontractors;

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(v) Describe how the offeror will ensure EVMS compliance for each subcontractor subject to the flowdown requirement in paragraph (c) whose EVMS has not been recognized by the Cognizant Federal Agency as compliant according to paragraph (a);

(vi) Provide documentation describing the process and results, including Government participation, of any third-party or self-evaluation of the system's compliance with the EVMS guidelines; and

(vii) If the value of the offeror's proposal, including options, is \$100 million or more, provide a schedule of events leading up to formal validation and Government acceptance of the Contractor's EVMS. Guidance can be found in the] Department of Defense Earned Value Management Implementation Guide (<https://acc.dau.mil/CommunityBrowser.aspx?id=19557>) as well as in the National Defense Industrial Association (NDIA) Earned Value Management Systems Acceptance Guide (<http://www.ndia.org/divisions/divisions/procurement/pages/programsystemcommittee.aspx>).

(2) The offeror shall provide information and assistance as required by the Contracting Officer to support review of the plan.

(3) The Government will review the offeror's EVMS implementation plan prior to contract award.

(c) The offeror shall identify in its offer the major subcontractors, or major subcontracted effort if major subcontractors have not been selected, planned for application of the EVMS requirement. Prior to contract award, the offeror and NASA shall agree on the subcontractors, or subcontracted effort, subject to the EVMS requirement.

(d) The offeror shall incorporate its compliance evaluation factors for subcontractors into the plan required by paragraph (b) of this provision.

(End of provision)

1852.245-80 GOVERNMENT PROPERTY MANAGEMENT INFORMATION. (JAN 2011)

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(a) The offeror shall identify the industry leading or voluntary consensus standards, and/or the industry leading practices, that it intends to employ for the management of Government property under any contract awarded from this solicitation.

(b) The offeror shall provide the date of its last Government property control system analysis along with its overall status, a summary of findings and recommendations, the status of any recommended corrective actions, the name of the Government activity that performed the analysis, and the latest available contact information for that activity.

(c) The offeror shall identify any property it intends to use in performance of this contract from the list of available Government property in the provision at 1852.245-81, List of Available Government Property.

(d) The offeror shall identify all Government property in its possession, provided under other Government contracts that it intends to use in the performance of this contract. The offeror shall also identify: The contract that provided the property, the responsible Contracting Officer, the dates during which the property will be available for use (including the first, last, and all intervening months), and, for any property that will be used concurrently in performing two or more contracts, the amounts of the respective uses in sufficient detail to support prorating the rent, the amount of rent that would otherwise be charged in accordance with FAR 52.245-9, Use and Charges (June 2007), and the contact information for the responsible Government Contracting Officer. The offeror shall provide proof that such use was authorized by the responsible Contracting Officer.

(e) The offeror shall disclose cost accounting practices that allow for direct charging of commercially available equipment, when commercially available equipment is to be used in performance of the contract and the equipment is not a deliverable.

(f) The offeror shall identify, in list form, any equipment that it intends to acquire and directly charge to the Government under this contract. The list shall include a description, manufacturer, model number (when available), quantity required, and estimated unit cost. Equipment approved as part of the award need not be requested under NFS clause 1852.245-70,

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(g) The offeror shall disclose its intention to acquire any parts, supplies, materials or equipment, to fabricate an item of equipment for use under any contract resulting from this solicitation when that item of equipment:

Will be titled to the government under the provisions of the contract; is not included as a contract deliverable; and the Contractor intends to charge the costs of materials directly to the contract. The disclosure shall identify the end item or system and shall include all descriptive information, identification numbers (when available), quantities required and estimated costs.

(h) Existing Government property may be reviewed at the following locations, dates, and times: N/A

(End of provision)

1852.245-81 LIST OF AVAILABLE GOVERNMENT PROPERTY. (JAN 2011)

(a) The Government will make the following Government property available for use in performance of the contract resulting from this solicitation, on a no-charge-for-use basis in accordance with FAR 52.245-1, Government Property, included in this solicitation. The offeror shall notify the Government, as part of its proposal, of its intention to use or not use the property.

See Attachment I, List of Government Furnished Property.

(b) The Government will make the following Government property available for use in performance of the contract resulting from this solicitation, on a no-charge-for-use basis in accordance with FAR 52.245-2, Government Property Installation Operation Services, as included in this solicitation. The offeror shall notify the Government of its intention to use or not use the property.

None

(c) The selected Contractor will be responsible for costs associated with transportation, and installation of the property listed in this provision.

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(End of provision)

GSFC 52.215-201 PROPOSAL PREPARATION - GENERAL INSTRUCTIONS. (APR 2022)

It is NASA's intent, by providing the instructions set forth below, to solicit information that will demonstrate the Offeror's competence to successfully complete the requirements specified in the Statement of Work (SOW), Attachment A. Generally, the proposal should:

- Demonstrate understanding of the overall and specific requirements of the proposed contract.
- Convey the company's capabilities for transforming understanding into accomplishment.
- Provide proof in the form of experimentation, simulation or previous developments that the proposed approach is credible.
- Present in detail, the plans and methods for so doing.
- Present the costs associated with so doing.

In the event that other organizations are proposed as being involved in conducting this work, their relationships during the effort shall be explained and their proposed contributions shall be identified and integrated into each part of the proposal, as appropriate.

(a) PROPOSAL FORMAT AND ORGANIZATION

(1) Offerors shall submit proposals in four volumes as specified below:

Volume	Title
I	Offer Volume
II	Mission Suitability Volume
III	Cost Volume

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IV	Past Performance Volume
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(2) All pages of Volumes I, II, III, and IV shall be numbered and identified with the Offeror’s name, RFP number and date. Subsequent revisions, if requested, shall be similarly identified to show revision number and date. A table of contents shall be provided with figures and tables listed separately.

(3) Each proposal volume shall be submitted in a single searchable Adobe Portable Document Format (PDF) file (compatible with ADOBE Reader version DC or 2017), with appropriate bookmarks except for certain Mission Suitability items as specified in Volume II and Cost Volume Exhibits in Volume III. Offerors shall submit Mission Suitability items in Excel when specified. Offerors shall submit all Cost Volume Exhibits in Excel and the exhibits shall contain all formulas.

(4) The format for each proposal volume shall parallel, to the greatest extent possible, the format of the evaluation factors contained in Section L of this solicitation. The proposal content shall provide a basis for evaluation against the requirements of the solicitation. Each volume of the proposal shall specify the evaluation criteria being addressed, and contain a table of contents aligned with the RFP evaluation criteria. This table of contents is excluded from the page limitations contained in paragraph (b)(1) below.

(5) Information shall be precise, factual, detailed and complete. Offerors shall not assume that the evaluation team is aware of company abilities, capabilities, plans, facilities, organization or any other pertinent fact that is important to accomplishment of the work as specified in the SOW. The evaluation will be based primarily on the information presented in the written proposal. The proposal shall specifically address each listed evaluation factor and subfactor.

(b) PROPOSAL CONTENT AND PAGE LIMITATIONS

(1) The following table contains the page limitations for each portion of the proposal submitted in response to this solicitation. Additional instructions for each component of the proposal are located in the solicitation provision noted under the Reference heading.

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Proposal Component	Volume	Reference	Page Limitations
Offer Volume	I	GSFC 52.215-203 OFFER VOLUME. (APR 2022)	None
Mission Suitability Volume	II	GSFC 52.215-210 MISSION SUITABILITY PROPOSAL INSTRUCTIONS (COMPETITIVE). (MAY 2022)	105 Pages
Cover Page, Table of Contents Indices, Master Equipment List, Compliance Matrices (if/where applicable), Table of Expected NEDT for each channel in Excel Format, Integrated Master Schedule, and Small Business Utilization Subfactor			Excluded
Cost Volume	III	GSFC 52.215-221 COST VOLUME INSTRUCTIONS. (MAY 2022)	None

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Past Performance Volume	IV	GSFC 52.215-231 PAST PERFORMANCE VOLUME (HARDWARE). (MAR 2020)	Mixed
(a) Information from the Offeror			25 Pages*
(b) Cover Page, Indices, Table of Contents, List of those sent Past Performance Questionnaires, Small Business Subcontracting Plan History, Customer Evaluations, Termination/Descope information, and List of Acronyms			Excluded

*Prime Offeror and all Significant Subcontractors (page limitation is for the total component (Prime and Significant Subcontractors)).

(2) When page limitations apply to a volume or specific section, a page is defined as one side of a sheet, 8-1/2" x 11", with at least one inch margins on all sides, using not smaller than 12 point type Times New Roman font. Line spacing or the amount of vertical space between lines of text shall not be less than single line (Microsoft Office Word's default line spacing). Character spacing shall be "Normal", not "Expanded" or "Condensed." The margins may contain headers and footers, but shall not contain any proposal content to be evaluated. Electronic foldout pages count as an equivalent number of 8-1/2" x 11" pages. The metric standard format most closely approximating the described standard 8-1/2" x 11" size may also be used. The excel exhibits provided are formatted using 9-12 point type Arial font.

Diagrams, tables, artwork, and photographs may be reduced and, if necessary, run landscape to eliminate oversize pages. Text in Diagrams, schedules, charts, tables, artwork, and photographs

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shall be no smaller than 10 point type Times New Roman font. Diagrams, tables, artwork, and photographs shall not be used to circumvent the text size limitations of the proposal.

(3) Title pages, tabs, and tables of contents are excluded from the page counts specified in paragraph (1) of this provision (as well as other documents specified in table (b)(1) above). Proposal sections that do not have an associated page limit should be strictly limited to the information described as part of that section. Regardless of where it appears in the proposal, information construed as belonging in a page-limited section of the proposal will be so construed and count against that section's page limit.

(4) The Government intends to evaluate proposals and award contract(s) without discussions with Offerors (except clarifications as described in FAR 15.306(a)). Therefore, the Offeror's initial proposal should contain the Offeror's best terms from a cost or price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. If discussions are held and final proposal revisions are requested, the Government will specify separate page limitations in its request for that submission.

(5) Pages submitted in excess of the limitations specified in this provision will not be evaluated by the Government and will be handled in accordance with NFS 1815.204-70(b).

(End of provision)

**ELECTRONIC SUBMISSION OF PROPOSALS – PROPOSAL MARKING AND
DELIVERY THROUGH NASA'S EFSS BOX (NOV 2024)**

(a) The offeror shall submit its proposal via NASA's Enterprise File Sharing and Sync Box (EFSS Box), a FedRAMP Moderate certified platform. Electronic submissions shall not contain hidden formulas, tables, be locked, be password protected, or contain links to data not included in the electronic copy. All electronic submissions should be searchable and should not contain scanned documents, except those documents that must be provided in their native format (e.g., signature pages, prior award fee letters for past performance, DCAA/DCMA approval letters, as applicable). The offeror shall ensure documents are free from viruses and malware, as documents

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determined by NASA to contain a virus or malware will not be opened or evaluated.

Subcontractors may submit their required proposal information separately using the instructions in this provision. The offeror shall ensure subcontractor submissions are made no later than the date and time specified for proposal submission and comply with all solicitation instructions.

(b) Prior to the submission of proposal files, offerors interested in submitting a proposal in response to this solicitation should notify Bruce Tsai of their intent to submit a proposal at least 48 hours prior to the intended submission date, at the following email address: Bruce.B.Tsai@nasa.gov. The offeror shall courtesy copy (cc) Jerry Edmond at Jerry.Edmond-1@nasa.gov on this communication. Offerors, especially those that have not previously submitted a proposal utilizing NASA's EFSS Box, should coordinate the submission of a test file with Bruce Tsai no less than 5 days in advance of the proposal due date specified in the solicitation to allow time to work through any submission issues.

(c) The offeror shall submit all proposal files to:
<https://nasagov.app.box.com/f/e2c4300c1a3940b39644817f1a6c920f>.

The offeror shall follow instructions regarding proposal submission found at <https://www.hq.nasa.gov/office/procurement/other/EFSS-Box-Offeror-Proposal-Submission-Instructions.pdf>.

(d) Offerors should electronically submit their proposals not later than 12:00 p.m. Eastern Standard Time, one working day prior to the date specified for receipt of proposals, if offerors seek to coordinate with the contracting officer regarding the proposal's receipt. NASA is not required to verify proposal receipt prior to the submission deadline.

(e) Offerors are encouraged to include all individual proposal files within a single .zip file. Electronic file names shall be limited to letters, numbers, dashes, and single spaces, except for the period that is required before the file extension (e.g., .zip, .pdf), in order to successfully upload and download files from the EFSS Box system. The offeror shall not use special characters "/" or "\" in file names. The offeror shall sequentially number each file and clearly label the contents of the file and include the name of the offeror and subcontractor name (if

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applicable) in the individual file name. Examples of acceptable individual file names are as follows (not specific to this solicitation):

For Prime offeror Submissions:

- 1 - Prime offeror name - solicitation number-MS Volume.docx
- 3 - Prime offeror name - solicitation number - PP Volume.pdf
- 7 - Prime offeror name - solicitation number Cost-Price Volume.xlsx

For Subcontractor Submissions:

- 1 - Prime offeror name - Subcontractor Name-solicitation number-MS Volume.docx
- 3 - Prime offeror name - Subcontractor Name - solicitation number - PP Volume.pdf
- 7 - Prime offeror name - Subcontractor Name - solicitation number Cost-Price Volume.xlsx

Individual files cannot exceed 150GB per file. Submitted files shall not include password protection. Unless specifically authorized by the solicitation instructions, alternate proposal submissions shall not be submitted.

(f) Immediately after all files have been uploaded and the proposal has been submitted in its entirety, the offeror is requested to notify Bruce Tsai at the following email address: Bruce.B.Tsai@nasa.gov with a listing of all documents by filename that were submitted via EFSS Box. The offeror should courtesy copy (cc) Jerry Edmond at Jerry.Edmond-1@nasa.gov on this communication. If any problems are experienced with the EFSS Box system (e.g., login, file transfer), please contact Bruce Tsai and provide a cc copy to Jerry Edmond via e-mail as soon as possible.

(g) The offeror is responsible for ensuring its proposal reaches the Government office designated in the solicitation by the date and time specified in the solicitation. The Government is not responsible for any failure attributable to the transmission or receipt of documents. Please note that uploading documents via EFSS Box and the transmission of the files from the offeror to the Government may not be instantaneous. To ensure timely delivery, the offeror is encouraged

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to submit its proposal at least 24 hours prior to the due date specified in the solicitation. The electronic submission of the proposal shall contain all information required by the solicitation to be determined responsive.

(End of provision)

GSFC 52.215-203 OFFER VOLUME. (APR 2022)

This must be a separate volume.

(a) STANDARD FORM (SF) 33, OFFEROR FILL INS AND SECTION K

Blocks 12 through 18 of the SF 33 and the indicated Offeror required fill-ins in Sections B-K must be completed. The signed SF33 and the pages with the required fill-ins must be submitted. Annual representations and certifications shall be completed electronically via the System for Awards Management (SAM) web site accessed through <https://www.acquisition.gov>, in accordance with Section K provision FAR 52.204-8, Annual Representations and Certifications. The balance of the solicitation need not be returned unless the Offeror has made changes to other pages that will constitute part of the contract. Any such changes must be separately identified in the Summary of Exceptions. **All SF 33s require original or electronic signatures.**

(1) It is requested that Offerors indicate, in Block 12 of the SF 33, a proposal validity period of 210 days. However, in accordance with paragraph (d) of FAR provision 52.215-1, "Instructions to Offerors--Competitive Acquisitions," a different validity period may be proposed by the Offeror.

(2) Provide the names, phone numbers, and email addresses of persons to be contacted for clarification of questions of a technical nature and business nature. Identify any consultants and/or subcontractors used in writing this proposal (if any) and the extent to which their services will be available in the subsequent performance of this effort.

The contract schedule refers to TBD and TBP. They are defined as follows:

TBD = TO BE DETERMINED BY THE GOVERNMENT

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TBP = TO BE PROPOSED BY THE CONTRACTOR

(b) SUMMARY OF EXCEPTIONS

Include a statement of acceptance of the anticipated contract provisions and proposed contract schedule, or list all specific exceptions to the terms, conditions, and requirements of Sections A through J of this solicitation, to the Representations and Certifications (Section K) or to the information requested in Section L. Include the reason for the exception, new terms, conditions, and/or clauses, including any proposed benefit to the Government. This list must include all exception(s), deviation(s) and/or conditional assumptions taken.

Offerors are cautioned that exceptions or new terms, conditions, or clauses may result in a determination of proposal unacceptability (NFS 1815.305-70), may preclude award to an Offeror if award is made without discussions, or may otherwise affect an Offeror's competitive standing.

(c) ADDITIONAL INFORMATION TO BE FURNISHED

(1) Business Systems

State whether all business systems, including but not limited to accounting, property control, purchasing, estimating, and employee compensation, which require Government acceptance or approval (as applicable) are currently accepted/approved without condition.

Provide the date of acceptance/approval for each system and the cognizant contract administration office. Explain any existing conditional acceptances/approvals and the compliance status of any systems(s) for which acceptance or approval is currently withheld.

FAR 16.301-3 requires that a contractor's accounting system be adequate for determining costs applicable to the contract prior to the award of a cost-reimbursement contract. The Offeror shall provide evidence of an adequate accounting system as determined by the cognizant administrative office for accumulating and reporting incurred costs. If an Offeror is relying on the accounting system adequacy of a Joint Venture team member, sister company, or any other affiliated company's accounting system, they must specifically assert such an intended reliance for the performance of this contract and must demonstrate a convincing basis for using that system as a source for determining their own adequacy in this proposal volume. An adequate

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accounting system is not an evaluation criterion. It is a basic contract requirement with a pass/fail determination. A contract may only be awarded to the Offeror(s) who are determined to have an adequate accounting system.

Offerors who do not have an adequate accounting system determination shall provide evidence of any independent audit and system approvals as well as documented system ability to segregate and accrue costs by contract.

(2) Contract Administration

Furnish the information listed below:

- a. Cognizant Government audit agency with mailing address, email address, telephone number, and fax number.
- b. Cognizant Government inspection agency with mailing address, email address, telephone number, and fax number.
- c. Cognizant Government Administrative Contracting Officer by name with mailing address, email address, telephone number, and fax number.

(3) Responsibility Information

Provide information addressing all of the elements under FAR 9.104 to demonstrate responsibility (address the elements under this section that are not addressed in another proposal volume).

(4) Taxpayer Identification Number

Prime Offerors shall provide their Taxpayer Identification Number (TIN) (the number required by the Internal Revenue Service (IRS) to be used by the Offeror in reporting income tax and other returns).

(5) Government Property

Offerors shall have a system of internal controls to manage (control, use, preserve, protect, repair, and maintain) Government property in its possession. Section L of this solicitation

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contains NFS provisions 1852.245-80, “Government Property Management Information” and 1852.245-81, “List of Available Government Property.” The information regarding the Offeror’s Government property management procedures required by these two provisions shall be included in this volume. However, if an analysis of the Offeror’s property management policies, procedures, practices, and systems has not been previously performed by the Government, the Offeror shall describe their internal processes, systems, procedures, records, and methodologies to be employed to ensure effective and efficient control of Government property under this contract in accordance with the requirements specified in FAR 52.245-1, Government Property.

(6) Waiver of Rights to Inventions

This solicitation contains NFS clause 1852.227-70, “New Technology—Other than a Small Business Firm or Nonprofit Organization” and NFS provision 1852.227-71, “Request for Waiver to Rights to Inventions”. Any petitions for advance (prior to contract execution) waiver of rights to inventions should be included in this volume.

(7) Subcontractor Listing

The Offeror shall provide a summary listing (by name and address) of all subcontractors (regardless of dollar value) that have been identified throughout the Offeror’s proposal and the subcontract value associated with each entity.

(8) Earned Value Management System

In accordance with the Section L NFS provision 1852.234-1, Notice of Earned Value Management System (Deviation), Offerors shall provide documentation verifying compliance of their proposed Earned Value Management System (EVMS) with the American National Standards Institute/Electronics Industries Alliance (ANSI/EIA)–748 Standard in this volume. If the Offeror proposes to use a system that has not been determined to be in compliance with ANSI/EIA–748 Standard, the Offeror shall submit a comprehensive plan for compliance with these EVMS guidelines to the Government for approval. Offerors shall not be eliminated from consideration for contract award because they do not have an EVMS that complies with these guidelines.

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(9) Cost Accounting Standards

State whether the Cost Accounting Standards (CAS) Disclosure Statement represented in Section K FAR provision 52.230-1, Cost Accounting Standards Notices and Certifications, has been approved by the cognizant Administrative Contracting Officer, and provide the date of such approval. If your CAS Disclosure Statement is currently not approved or there are some existing CAS non-compliance findings, please provide detailed explanation of the CAS non-compliance issues, corrective action status, and any potential impact on this procurement. If the Offeror has not submitted a Disclosure Statement, but would fall under CAS compliance if awarded the resultant contract, then a CAS Disclosure Statement shall be submitted as part of your proposal in this volume. The Government will forward the Disclosure Statement to the cognizant contract administration office with its request for review of the submitted CAS Disclosure Statement.

(10) Safety and Health Plan

In accordance with FAR clause 52.236-13--Alternate I as modified by NFS 1823.7001(d)(1), Accident Prevention, within 30 days after contract award, the successful contractor shall submit for NASA approval a comprehensive Safety and Health Plan, which will be incorporated into the contract under the Section J Clause **GSFC 52.211-101 LIST OF ATTACHMENTS. (NOV 2022)** as **Attachment F**. The Contracting Officer and center safety and occupational health official(s) will review the plan for completeness and identify to the Contractor substantive weaknesses and omissions for necessary correction. Once the Contractor has corrected the substantive weaknesses and omissions, the Contracting Officer shall incorporate the approved plan into the contract as a compliance document.

NOTICE: System updates may lag policy updates. SAM may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

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FINANCIAL CAPABILITY ASSESSMENT (DEC 2024)

For purposes of the Government making a responsibility determination, the offeror shall submit the following Financial Capability Disclosure information as Enclosure 4, under Volume I, Offer Volume, in support of the Government's financial capability assessment.

The offeror shall demonstrate adequate financial resources to perform the prospective contract or demonstrate an ability to obtain the adequate financial resources, as required by FAR 9.104-1(a).

The offeror shall submit financial statements for the three most recent and complete fiscal years and the most recent interim accounting period if applicable.

The offeror shall provide the following statements for the offeror, and the offeror's parent corporation (if applicable):

- Annual Reports including audit opinions,
- Balance Sheets, Income Statements,
- Statements of Retained Earnings, and
- Statements of Cash Flows.

Offerors shall clearly label all financial statements as audited or un-audited and the date, if applicable, of any certification of the financial statements by the responsible company official; and clearly disclose and explain all off-balance sheet arrangements and related party transactions.

If the offeror is newly established company without financial statements, it shall provide historical tax returns and projected income statements, balance sheets and cash flows.

If a teaming arrangement, joint venture, or other business combination is contemplated, the offeror shall provide a copy of the teaming arrangement and shall disclose each participant's responsibility for financial management of the venture, funding requirements, limitation of liabilities, and any other information which describes the business arrangement.

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The offeror shall submit details of both internal and external funding mechanisms, including any proposed investments, letters of commitment from investors, and available lines of credit.

The offeror shall provide all bank term sheets or loan covenants agreements.

For offerors with parent or holding companies, the offeror shall include the parent company's or holding company's guarantee of all necessary and required resources including financing to assure the offeror's full, complete and satisfactory performance of the contract.

Finally, depending upon whether the offeror is privately or publicly-held, the offeror's Financial Capability Disclosure shall also include the following additional information to support the Government's financial responsibility determination:

Privately-Held:

1. Certificate or Articles of Incorporation and Bylaws, including all amendments.
2. Legal entity structure, function of all divisions, subsidiaries, or affiliated entities.
3. A management and organizational chart listing executives and officers.
4. List of all options, warrants and other rights to acquire equity securities.

Publicly or Privately-Held:

1. Schedule of insurance policies in effect covering property of the Company and any other insurance policies in force.
2. Comparison of planned corporate fiscal year budget to actual (summary and detail) for last fiscal year and current fiscal year to date.
3. Capital budget.

If the offeror proposes as a joint venture or consortium, the offeror shall provide a Financial Capability Disclosure for all principal member companies or organizations.

(End of Statement)

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GSFC 52.215-210 MISSION SUITABILITY PROPOSAL INSTRUCTIONS
(COMPETITIVE). (MAY 2022)

(a) The offeror's response to the requirements of this factor shall be submitted as a separate proposal volume.

(b) The volume shall be specific, detailed, and complete to clearly and fully demonstrate the offeror's understanding of the Mission Suitability subfactor requirements delineated in paragraph (d) below and the offeror's approach to effectively and efficiently accomplish those requirements, including full explanations of the techniques and procedures to be employed and the resources necessary to perform as proposed. Stating the offeror understands and will comply with the requirements, or paraphrasing the requirements is not acceptable. In addition, statements such as "standard procedures will be employed," or "well-known techniques will be used," are not acceptable. Information may not be incorporated by reference.

Enhancements:

Although the Government does not encourage/discourage enhancements to the contract's technical performance documents (e.g. Statement of Work, Specification, etc.), Offerors may choose to propose performance enhancements. In order for the Government to consider a proposed enhancement's value, the Offeror must clearly define the enhancement(s) in Contract Attachment L, "Contractor Proposed Enhancements," in performance work statement (PWS) language in accordance with the PWS instructions in Attachment L. In addition, the Offeror must describe the associated benefit(s) of the proposed enhancement(s) in its Mission Suitability Volume under the applicable Mission Suitability subfactor(s). The Offeror shall include Contract Attachment L as part of the model contract in the Contract Volume of the proposal. The Offeror may receive credit for the proposed enhancement(s) only to the extent of its description in Attachment L, and the associated benefits explained in its Mission Suitability Volume. Inconsistent statements about any enhancement(s) in an Offeror's proposal may result in a neutral or negative evaluation by the Government. Any enhancement(s) may result in a positive, neutral, or negative evaluation in spite of the Government's right to waive an enhancement(s) during contract performance in accordance with the GSFC 52.211-100, "Contractor Proposed Enhancements," clause in Section H of the contract. If the successful offer does not include any

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proposed enhancements, GSFC clause 52.211-100 and Attachment L will be removed from the resultant contract.

(c) The offeror shall provide, at the beginning of this volume using the table provided below, a detailed compliance matrix that cross-references the offeror's numbering structure and corresponding volume page number with all requirements associated with each subfactor delineated in paragraph (d) below. The offeror may utilize its own unique numbering structure provided the compliance matrix provides clear traceability to each of the subfactor requirements described below.

Solicitation Mission Suitability (MS) Volume Requirement	Solicitation Section L Numbering Nomenclature	Offeror MS Volume Numbering Nomenclature	Offeror MS Volume Page Number
Subfactor A Technical Approach	GSFC 52.215-210, A	Volume II	
Introduction to Technical Approach	GSFC 52.215-210, A1		
Systems Engineering	GSFC 52.215-210, A2		
System Performance	GSFC 52.215-210, A3		
Instrument Design	GSFC 52.215-210, A4		
Manufacturing, Integration and Test	GSFC 52.215-210, A5		

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Storage	GSFC 52.215-210, A6		
Spacecraft Integration and Test and Mission Operations Support	GSFC 52.215-210, A7		
Risk	GSFC 52.215-210, A8		
Subfactor B Management Approach	GSFC 52.215-210, B	Volume II	
Management Approach	GSFC 52.215-210, B1		
Schedule	GSFC 52.215-210, B2		
Subcontracting	GSFC 52.215-210, B3		
Management Structure	GSFC 52.215-210, B4		
Staffing	GSFC 52.215-210, B5		
Facilities	GSFC 52.215-210, B6		
Safety and Mission Assurance	GSFC 52.215-210, B7		

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Subfactor C Small Business Utilization (SBU)	GSFC 52.215-210, C	Volume II	
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(d) The offeror shall provide a detailed response to each of the following subfactor requirements utilizing the structure and order as provided below:

Subfactor A – Technical Approach

Subfactor B – Management Approach

Subfactor C – Small Business Utilization (SBU)

The paragraph numbering, formatting, and sub-paragraphs within the subfactors below should not be construed as any indication of priority, weighting or as any establishment of elements or lower level criteria. The paragraph numbering is only provided for clarity, traceability, and ease of reading between Mission Suitability Sections L and M.

Subfactor A – Technical Approach

A.1 Introduction to Technical Approach

The Offeror shall provide an overview of its integrated SMBA mission design solution.

A.2 Systems Engineering

The Offeror shall provide details of the instrument architecture, the instrument's overall layout and modularity, and overview of each instrument subsystem.

The Offeror shall describe the instrument systems engineering lifecycle and processes including engineering roles and responsibilities, technical authority, technical decision-making and direction, preparation and conduction of engineering peer reviews and trade studies.

The Offeror shall describe plans for flexibility, scalability, extensibility, and modularity so that the flight software, firmware, and hardware are minimally impacted if new features are added.

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The Offeror shall address performance and interface requirements in enough detail to demonstrate a clear and complete understanding of requirements and recognition of complexities and inherent problems associated with the objectives of this procurement. The Offeror shall describe the process for analyzing and decomposing requirements, flowing down to lower levels, demonstrating traceability, and defining the tracking method, verification, and validation process for the multiple builds.

The Offeror shall describe the advanced technology needed to meet the SMBA requirements. At a minimum, the Offeror shall address in detail the subsystem(s) which implement Radio Frequency Interference detection, hyperspectral capability, and intercalibration (as defined by NIST) as well as any incorporated novel technologies. The Offeror shall describe the SMBA Instrument Technology Readiness Level (TRL) and heritage, including all subsystems and any higher levels of assembly and substantiate the claims. The Offeror shall identify items with maturity below TRL6 and describe plans for the maturation of all technologies to TRL6 by PDR. The Offeror shall describe reliance on non-SMBA programs for TRL6 and flight qualification of SMBA items. The Offeror shall describe how risks associated with these technologies will be mitigated, including the back up plans, alternate sources, and/or performance impacts in case a particular technology does not become flight qualified (TRL8 or higher) in time for SMBA deliveries.

The Offeror shall describe its Engineering Development Program including its Engineering Test Unit (ETU) and any other prototype models. The Offeror shall describe how these models are used to achieve TRL6 for the SMBA instrument by PDR, how they will inform the Critical Design Review (CDR) design, how they will inform the manufacturing process, and how they will be used after Flight Model (FM) 1 delivery.

The Offeror shall describe which changes/updates are planned for each of the models in the Engineering Development Program.

The Offeror shall describe the approach in addressing mission life and reliability requirements.

The Offeror shall delineate Recurring Engineering (RE) and Non-Recurring Engineering (NRE) efforts and address obsolescence issues.

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The Offeror shall propose a Master Equipment List (MEL) in Excel format summarizing all major subsystem components to support validation of proposed mass estimates, proposed average power estimates, proposed peak power estimates, proposed volume, proposed data rate, design heritage, and cost.

A.3 System Performance

The Offeror shall provide an assessment of its proposed end-to-end SMBA instrument's compliance to the system performance requirements listed in the Performance Requirements Document (PRD). The assessment shall include detailed system budgets with margins/contingency identified separately for all design elements spanning the beginning of life through the end-of-life timeframes as well as analytical justification for how the proposed SMBA instrument meets or exceeds each PRD requirement.

The Offeror shall describe the collection of hyperspectral microwave radiometric data. The Offeror shall describe the temperature sensitivity (noise equivalent delta temperature, NEDT) for all channels to include the temperature and moisture sounding channels for both the hyperspectral and non-hyperspectral channels. The Offeror shall provide a table of expected NEDT for each channel in Excel format. The Offeror shall describe the method for calculating NEDT for all channels.

The Offeror shall describe which channels will be used for direct temperature sounding, direct moisture sounding, window channels, and for cloud, precipitation, and ice detection for direct all-sky assimilation and National Weather Program quality control.

The Offeror shall describe the Radio Frequency Interference (RFI) detection approach for all the RFI and hyperspectral bands identified in the PRD.

The Offeror shall describe the noise power spectral density of all radiometer channels relating quantities such as NEDT, front-end loss, 1/F noise, gain variations, and striping.

The Offeror shall discuss the spatial sampling performance including spatial sampling/oversampling, resolution, and coverage.

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The Offeror shall discuss instrument ground and on-orbit calibration methodology and characterization approach to meet requirements pre-launch and over the mission lifetime. The Offeror shall describe any on-board calibration hardware and associated methodology for all channels including concept of operations especially any necessary on-orbit maneuvers, recommended frequency of calibration activities during check-out, normal operations and anomaly resolution; calibration during repeatability tests of the on-board calibration and the determination of the long term repeatability and stability; calibration implementation and its effect on the accuracy and short term and long term stability; description of the plan to achieve National Institute of Standards and Technology traceability for calibration.

The Offeror shall provide a radiometric error budget showing allocation to instrument requirements, including traceability to calibration uncertainty and instrument radiometric stability.

The Offeror shall discuss their primary and backup calibration facilities and equipment used in calibrating the SMBA instrument

The Offeror shall describe how the SMBA design will provide Advanced Technology Microwave Sounder (ATMS) channel continuity.

The Offeror shall describe the proposed plan for performance verification during development, Integration and Test (I&T) (including environmental testing), end-to-end performance testing for mission simulations and post launch test (PLT).

The Offeror shall describe how the proposed instrument will be compatible with as many spacecraft busses as possible.

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A.4 Instrument Design

Mechanical Design:

The Offeror shall describe all physical elements, their composition, and their dimensions. The Offeror shall describe the interfaces and mounting to the spacecraft and other subsystems for the structure and mechanism components. The Offeror shall describe the modularity of the components for assembly, disassembly, and analysis.

The Offeror shall identify and describe all mechanisms aspects of the design that may cause degradation of the instrument performance over the mission lifetime. The Offeror shall discuss the control system stability, and sensitivity to the jitter.

The Offeror shall provide analysis to demonstrate compliance with momentum, torque, and disturbance requirements. Identify safety and uncertainty factors used in the analysis. The Offeror shall provide margins of safety.

The Offeror shall identify the subsystem-level approach to qualify mechanisms for I&T readiness, including test configurations or environments.

The Offeror shall provide a description of all Mechanical Ground Support Equipment (MGSE) including fixtures and protective covers used during I&T.

Scanning Method:

The Offeror shall provide a detailed description of the instrument scanning method.

Antenna and Receiver Design:

The Offeror shall provide a detailed description of the antenna, front-end components, and receiver design.

Thermal Design:

The Offeror shall describe the thermal design, including margins, constraints such as minimum and maximum operating temperatures, allowable temperature gradients, allowable temperature changes with time for all phases of the lifecycle

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Electrical Design/Communication & Data Handling (C&DH) Design:

The Offeror shall provide a description of the command, telemetry, and data handling system of the proposed design. The Offeror shall provide a description of the electrical subsystem including all harnessing. The Offeror shall show the instrument interface with the spacecraft power subsystem. The Offeror shall provide a detailed power budget for all instrument modes, including expected tolerances and margins. The Offeror shall describe hardware and software functions associated with C&DH sensor data. The Offeror shall discuss the approach to fault detection and correction, and recovery from Single Event Upsets (SEU).

Flight Software, Electrical Ground Support Equipment, and Ground Processing Development System Design:

The Offeror shall describe the design of the flight software including top level data flows, newly developed, modified, reused/unmodified code, and commercial off-the-shelf software for the estimated code size. The Offeror shall describe the processing environment, including coding and synthesis guidelines, for any modifiable software the Offeror shall discuss the compression of the science data. The Offeror shall discuss the operations concept for modifying the flight software on orbit. The Offeror shall discuss the approach to fault detection and correction.

The Offeror shall describe the software lifecycle/build milestones.

The Offeror shall describe the ground and flight processing algorithms, including top-level data flows. The Offeror shall discuss the concept of operations, the inputs, and the process for determining the pixel position and the corresponding kernel weights.

The Offeror shall provide a description of all Electrical Ground Support Equipment (EGSE) software, including top level data flows.

A.5 Manufacturing, Integration and Test Approach

The Offeror shall describe the SMBA Instrument and key subsystem manufacturing approach including Manufacturing Readiness Level.

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The Offeror shall identify the initial long-lead and advanced procurement materials, components, and/or subsystems that could be initiated upon authorization to proceed, pending Government approval. The Offeror shall identify the rationale behind those purchases.

The Offeror shall discuss how the spares program, as costed in the proposal, will mitigate risk. Provide an itemized list of spares. Indicate whether spares are fabricated or purchased. The Offeror shall describe the level of assembly of spares.

The Offeror shall describe its plan for fabricating and testing a full form, fit, and function flight-like ETU prior to CDR for SMBA FM1 and maintaining it through contract completion.

The Offeror shall clearly define which engineering development activities are to be accomplished as well as any products, analyses, tests, or reports that will be produced.

The Offeror shall describe unit, subsystem, and system level assembly flow, identifying the order of the assembly, integration. The Offeror shall discuss any testing or inspections performed during the assembly and integration process. The Offeror shall discuss its approach for accessibility, replaceability, and maintainability of the instrument in case of pre-launch anomalies. The Offeror shall describe in detail plans for the build, test, and delivery of the required copies of the instrument and how lessons learned on each build are incorporated into subsequent builds. The Offeror shall describe ground support equipment necessary to support multiple instruments.

The Offeror shall describe the approach if a configuration change needs to be made after thermal vacuum test, including: 1) the process and schedule for such change; 2) how disassembly and reassembly will be performed; and 3) what system level test(s) will be performed after the change.

The Offeror shall describe the contamination control plan for the instrument suite, any in-house contamination analysis tools, or equipment, and how it drives the facility plan for instrument development and test.

The Offeror shall discuss the flight qualification and the acceptance test program to be performed at the subsystem level, the approach for system, interface, and environmental requirements

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verification for each SMBA copy. The Offeror shall assume that no verification will occur at the Observatory level.

A.6 Storage

The Offeror shall describe its approach for storing SMBA instruments prior to Spacecraft Integration and Test.

The Offeror shall describe where the SMBA instruments and spares will be stored, which maintenance will be performed during the storage period, which tests will be performed during the storage period, and how the Offeror will ensure all instruments' system safety during the storage period.

A.7 Spacecraft Integration and Test and Mission Operations Support

The Offeror shall describe the necessary activities and support plans to checkout, integrate, and test the instrument with the spacecraft at the observatory level, including any special tests and equipment needed to support ambient and/or environmental testing.

The Offeror shall describe the approach for verifying all requirements during instrument testing (not observatory-level testing).

The Offeror shall describe how mission readiness testing and mission rehearsals, including launch simulations and rehearsals will be supported.

The Offeror shall describe the planned architecture of the Instrument Software Simulator and the Instrument Hardware Simulator and how they can be used to support End-to-End testing, operational products development, mission rehearsals, and mission operations.

The Offeror shall describe how the Mission Operations Team will be supported in the development of operational products (scripts, standard and contingency operations procedures), and how they will be trained.

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The Offeror shall detail the command and telemetry database development and validation process, instrument concept of operation development and list operational tools that may be needed to monitor on-orbit operations.

The Offeror shall identify what launch preparations and operations are needed to ensure the instrument suites are ready for launch.

The Offeror shall discuss their proposed Calibration Ground Support Equipment to include all hardware, software, and calibration targets for ambient and thermal vacuum testing.

The Offeror shall describe launch and early orbit operations for instrument checkout and on-orbit PLT, calibration, and check out.

A.8 Risk

The Offeror shall identify the most significant potential risks under this contract and describe the risk management techniques that will be used to manage identified risks during contract performance. Risk factors may be those inherent in the work or unique to the Offeror's chosen approach. General areas of possible risk that are of concern to NASA are technical, schedule, cost, security (including personnel, information technology), export control, environmental risks, and supply chain. The identification of risks is the responsibility of the Offeror. The Offeror's discussion of a risk factor should provide the Offeror's approach to managing the risk--the probability of the risk, impact and severity, and risk acceptance or mitigation. The Offeror shall indicate the projected event or milestone that will close the risk.

The Offeror shall describe the risk management process that will be used to manage risks during contract performance, including the probability of the risk, impact and severity of risk, and risk acceptance or risk mitigation solutions.

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Subfactor B – Management Approach

B.1 Management Approach

The Offeror's proposal shall describe in detail its overall management approach for the proposed activities. The Offeror's proposal shall describe the management methods that will be used in performing work on the contract and shall also describe plans for facilitating communication with Government personnel. The Offeror shall describe its vision for NASA Mission Risk Class C, as defined in NPR 8705.4, including its vision for the balance between Government informal insight and formal oversight of the Offeror's design, development, production, integration, test, post-delivery support, and post launch support.

B.2 Schedule

The Offeror shall prepare and submit with the proposal a time-phased activity and milestone Integrated Master Schedule depicting the critical elements/span of design, development, fabrication, assembly, alignment, and test, as well as significant procurement events to meet the contract delivery schedule. The Integrated Master Schedule shall identify interrelationships among phases, engineering development program activities (including the ETU), procurement activities (especially long lead items and specialized components), and supply chain management activities. The Integrated Master Schedule shall include detail down to at least the sub-system level, showing critical path(s), major design reviews, key decision dates, and the fabrication, assembly, integration, test, and delivery of each of the SMBA Flight Models. The Integrated Master Schedule shall include schedule slack and reserve amounts. The Offeror shall justify the viability of the schedule submitted, schedule confidence level, including comparison to schedules of other similar multi-instrument development efforts and programs greater than 10 years successfully completed by the contractor or other applicable analogs. The Offeror shall describe the approach for schedule control and reporting.

B.3 Subcontracting

The Offeror shall describe its strategy for using (or not using) significant subcontractors (based on the definition of significant subcontractor in the cost volume instructions). If significant subcontractors are proposed, identify their interfaces to your organizational structure and

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provide: 1) the basis for selection of the significant subcontractor, 2) the nature and extent of the work to be performed by the significant subcontractor, including split of responsibilities and the potential percentages of work to be performed, 3) the benefits of these arrangements to the Government, and 4) methods of management and reporting to GSFC of subcontractors' financial and technical plans and performance. The Offeror shall discuss its plans for addressing issues where multiple subcontractors may be involved in the development of a particular component or subsystem. Indicate alternate sources for major and critical subsystems/components that are purchased or that are provided by team members. The Offeror shall discuss its plans for addressing any problems (technical and programmatic) that arise as a result of the proposed subcontract strategy and organization structure or poor and/or non-performance of subcontracted portions of the contract. The Offeror shall discuss plans for supporting the Government involvement and surveillance of subcontracted portions of the effort.

B.4 Management Structure

The Offeror shall discuss the organizational structure, interrelationships of technical management, business management, and subcontract management. Include an organizational chart that identifies where this contract fits in the corporate structure. The Offeror shall provide an organizational chart for this contract identifying all managerial positions by title.

B.5 Staffing

The Offeror shall discuss the proposed program manager, other managers, staffing levels, personnel categories, hours and skill mix proposed under the contract and how the labor skill mix will be employed to accomplish the work. All discussions must be clear and concise and refer to the appropriate SOW activity. Additionally, provide any staffing reach-back or supplemental capabilities to minimize staffing disruptions throughout contract performance. The staffing approach shall include a discussion of how the staffing is adequate to conduct activities under the contract. The staffing approach shall also address any shared resources. Explain how the expertise (prime and subcontractors) will be obtained and maintained through the duration of the contract. Describe the staffing approach to ensure successful post-delivery support.

B.6 Facilities

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The Offeror shall discuss its proposed facilities to accommodate design, development, manufacturing, integration, testing, delivery, and storage of all instruments (including the ETU, instruments covered under the base contract, and instruments covered by options). The Offeror shall describe which (if any) antenna ranges, Electro Magnetic Interference (EMI) test facilities, vibration test facilities, thermal vacuum chambers, clean rooms, and other development, manufacturing, and test environments it will use. The Offeror shall discuss where these facilities are located, the facilities' capacity for accommodating SMBA instruments, when these facilities will be necessary, and how the Offeror will ensure their availability.

B.7 Safety and Mission Assurance

The Offeror shall describe its approach for meeting the mission assurance requirements defined in the Instrument Mission Assurance Requirements document. The Offeror shall identify its approach to ensuring safe, reliable, quality hardware and software designs as well as safe, reliable, quality hardware and software builds throughout the duration of the contract. Specifically, the Offeror shall describe its procedure(s) for continually monitoring, surveilling, identifying, and correcting deficiencies. The Offeror shall discuss why these procedure(s) will be successful for SMBA. The Offeror shall discuss plans for accomplishing the assurance and surveillance of subcontractors providing critical hardware components.

Subfactor C – Small Business Utilization (SBU)

All Offerors, except small businesses, shall complete the portion of the instructions under Small Business Subcontracting Plan. Small businesses are not required to submit Small Business Subcontracting Plans; however, small businesses shall indicate the amount of effort proposed to be done by a small business either at the prime level or at the first tier subcontract level.

All Offerors (small businesses and other than small businesses) shall respond to the Commitment to Small Business Program.

(A) Small Business Subcontracting Plan

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(1) This solicitation contains FAR clause 52.219-9 ALTERNATE II, “Small Business Subcontracting Plan”. The Plan described and required by the clause, including the associated subcontracting percentage goals and subcontracting dollars, shall be submitted with the proposal.

(2) The Contracting Officer’s assessment of appropriate subcontracting goals for this acquisition, expressed as a percent of the TOTAL CONTRACT VALUE (Basic and All Options Combined), is as follows:

Small Businesses (SB)	8.7%
Small Disadvantaged Business (SDB) Concerns	0.8%
Women-Owned Small Business (WOSB) Concerns	1.0%
Historically Black Colleges and Universities (HBCU)/ Minority Serving Institutions (MSI)	0.05%
HUBZone Small Business (HBZ) Concerns	0.1%
Veteran-Owned Small Business (VOSB) Concerns	0.6%
Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns	0.1%

(3) The numbers above reflect the Contracting Officer’s assessment of the appropriate subcontracting goals to be achieved at the completion of contract performance. When appropriate, an Offeror may discuss plans to phase-in small business concerns, explaining the rationale for the phase-in schedule. If the Offeror anticipates that it will not meet the proposed small business goals by the time the Offeror submits its first Individual Subcontracting Report (ISR) for this effort as required by FAR clause 52.219-9 ALTERNATE II, Small Business Subcontracting Plan, the Offeror should discuss its approach to include a timeline for meeting these goals and the associated rationale.

(4) Offerors are encouraged to propose goals that are equivalent to or greater than those that the Contracting Officer has recommended. However, Offerors shall perform their own independent

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assessments of the small business subcontracting opportunities and are encouraged to propose goals exceeding the recommended goals where practical.

(5) The Plan that the Offeror submits with its proposal shall be incorporated in Section J as Attachment G in the resulting contract. The requirements in the Plan shall flow down to first tier large business subcontracts expected to exceed \$700,000 (or \$1,500,000 for construction of a public facility). Although these first tier large business subcontractors are encouraged to meet or exceed the stated goals, NASA recognizes that the subcontracting opportunities available to these subcontractors may differ from the recommended goals in the solicitation based upon the nature of their respective performance requirements.

(6) Offerors are advised that a proposal will not be rejected solely because the Plan submitted does not meet the NASA recommended goals listed in paragraph (a) (2) above in terms of percent of the TOTAL CONTRACT VALUE (Basic and All Options Combined). NASA will consider the amount of work that the prime contractor plans to perform when determining whether a subcontracting plan is acceptable. Offerors shall discuss the rationale for any goal proposed that is less than the Contracting Officer's recommended goal in any category. In addition, the Offeror shall describe the efforts made to establish a goal for that category and what ongoing efforts, if any, the Offeror plans during contract performance to increase participation in that category.

(7) In addition to submitting a Small Business Subcontracting Plan in accordance with the Section I, FAR clause 52.219-9 Alternate II, Offerors shall complete **Exhibits 7A, 7B and 7C, SMALL BUSINESS SUBCONTRACTING PLAN GOALS**, which provide a breakdown of the Offeror's proposed goals, by small business category, expressed in terms of both a percent of the TOTAL CONTRACT VALUE and a percent of TOTAL PLANNED SUBCONTRACTS. Offerors shall show the proposed subcontracting goals for the basic contract requirement and each option separately.

(NOTE: FOR PURPOSES OF THE SMALL BUSINESS SUBCONTRACTING PLAN, THE PROPOSED GOALS SHALL BE STATED AS A **PERCENT OF TOTAL SUBCONTRACTS**, NOT AS A PERCENT OF THE TOTAL CONTRACT VALUE, REFER TO THE BELOW EXAMPLE)

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Example of Subcontracting Goals as expressed in both the Total Contract Value and Planned Subcontract Value for a Total Contract value of \$100M and planned subcontract value of \$50M.

	<i>Column A</i>	<i>Column B</i>	<i>Column C</i>
Category	Percent of Total Contract Value	Dollar Value	Percent of Subcontracting Value
Small Business (SB) Concerns	25 percent	\$25,000,000	50 percent
Other than Small Business Concerns	N/A	\$25,000,000	50 percent
Total Dollars to be Subcontracted	N/A	\$50,000,000	100 percent
<i>The following small business subcategories do not necessarily add up to the percentage and dollar amount in the “Small Business Concerns” category above, since some small businesses do not fall into any of the subcategories below, while others will fall into more than one subcategory below.</i>			
Small Disadvantaged Business (SBD) Concerns	5.5 percent	\$5,500,000	11 percent
Women-Owned Small Business (WOSB) Concerns	9 percent	\$9,000,000	18 percent
Historically Black Colleges and Universities (HBCU)/Minority Serving Institutions (MSI)	1.5 percent	\$1,500,000	3 percent

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HUBZone (HBZ) Small Business Concerns	1.5 percent	\$1,500,000	3 percent
Veteran-Owned Small Business (VOSB) Concerns	2.5 percent	\$2,500,000	5 percent
Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns	1.5 percent	\$1,500,000	3 percent

The Offeror proposes small business subcontracting goals as a percentage of the Total Contract Value in column A.

Then based on the \$100 million Total Contract Value, the resulting statement of dollars that the Offeror would include in the Subcontracting Plan, as required by paragraph (d)(2) of FAR clause 52.219-9 Alternate II, would be as indicated in column B.

However, the Small Business Subcontracting Plan shall also express goals as a percent of total planned subcontracts. Assuming total subcontracting of \$50M, the resulting percentage goals, expressed as a percent of total subcontract dollars would be stated in the Small Business Subcontracting Plan as required by paragraph (d)(1) of FAR clause 52.219-9 ALTERNATE II in column C.

(B) Commitment to the Small Business Program

(1) All Offerors must briefly describe the work that small businesses will perform to meet the stated requirements. Proposals shall also identify any work to be subcontracted that is considered “High Technology.” “High Technology” is defined as research and development efforts that are within or advance the state-of-the-art in technology discipline and are performed primarily by professional engineers, scientists, and highly skilled and trained technicians or specialists.

(2) If the subcontractor(s) is known, Offerors shall describe the work that each subcontractor will perform and specify the extent of commitment to use the subcontractor(s) (enforceable vs. non-

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enforceable commitments). (Small Business Offerors shall provide this information to the extent that subcontracting opportunities exist in their approach to performing the requirement.)

(3) All Offerors shall provide information demonstrating the extent of commitment to utilize small business concerns and to support their development. Information provided shall include a brief description of established or planned procedures and organizational structure for Small Business outreach, assistance, counseling, market research and Small Business identification, and relevant purchasing procedures. (For Other than Small Business Offerors, this information shall conform to applicable portions of the submitted Small Business Subcontracting Plan. Small Business Offerors shall provide this information to the extent subcontracting opportunities exist in their approach to performing the requirement.)

(4) The NASA Mentor-Protégé Program is designed to incentivize NASA large prime contractors to assist a Small Disadvantaged Business, a Women-Owned Small Business, a HUBZone Small Business, a Veteran-Owned or Service-Disabled Veteran-Owned Small Business, or Historically Black College and University/Minority Serving Institution in enhancing their capabilities to perform NASA contracts and subcontracts, foster the establishment of long-term business relationships between these entities and NASA large prime contractors, and increase the overall number of these entities that receive NASA contract and subcontract awards. Provide a description of the prime's planned participation in the NASA Mentor Protégé Program.

(e) Offerors shall ensure the information submitted in this volume is consistent with information submitted in other volumes, as applicable.

(End of text)

GSFC 52.215-221 COST VOLUME INSTRUCTIONS. (MAY 2022)

The Federal Acquisition Regulation (FAR) requires Contracting Officers to purchase supplies and services from responsible sources at fair and reasonable prices. It is expected that adequate price competition will be obtained under this solicitation so that submission of certified cost or pricing data is not required pursuant to FAR 52.215-20, Requirements for Certified Cost or

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Pricing Data and Data Other Than Certified Cost or Pricing Data--Alternate IV. The term "data other than certified cost or pricing data" is defined at FAR 2.101.

(a) Instructions

An important prerequisite for the award of the contract is that Prime Offerors or Joint Venture (JV) Entities must have an accounting system that has been determined adequate by the cognizant administrative office for accumulating and reporting incurred costs prior to contract award. If an Offeror is relying on the accounting system adequacy of a Joint Venture team member, partner, sister company, or any other affiliated company's accounting system, they must specifically assert (in the submitted Offer Volume) such an intended reliance for the performance of the contract and must demonstrate a convincing basis for using that system as a source for determining their own adequacy. All JV partners in a JV are combined to form a "JV Entity."

While these proposals are not required to be cost certified, they are to be in sufficient detail to allow direct and indirect rate verification and audit of selected costs. The Cost Volume proposal should be prepared in a manner consistent with your current accounting system.

The contract resulting from this solicitation is potentially subject to Cost Accounting Standards (CAS) compliance, unless the Offeror qualifies for a CAS exemption. Offerors shall determine CAS applicability (full or modified CAS coverage) for its proposing business unit based on applicability criteria. If full CAS coverage applies to the Offeror and it has not submitted a Disclosure Statement that has been deemed adequate by its cognizant contract administration entity (typically DCMA), then a Disclosure Statement shall be prepared in support of the Offeror's proposal. While CAS Disclosure Statements are not evaluated by NASA, their evaluation must be coordinated between NASA and the cognizant contract administration entity; as such, the CAS Disclosure Statement shall be submitted to NASA with the proposal in the Offer Volume.

The required format for other than certified cost or pricing data is for evaluation purposes. The cost for any resultant contract will be awarded on the basis of the successful Offeror's normal estimating and/or accounting system or the system set forth in the CAS Disclosure Statement required by Public Law 100-679, if applicable. If the Offeror's estimating and/or accounting

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practice differs from the required Cost Volume proposal format, the costs should be computed in accordance with the Offeror's normal accounting and estimating procedures and provide your rationale for the format adjustments.

Direct labor must be estimated on the basis of productive effort. Productive effort is the estimated number of hours required to perform the work. Vacations, holidays, sick leave, and any other paid absences shall not be cited as direct labor, but shall be separately identified and priced or included in indirect costs.

Final monetary extensions in the Cost Volume proposal should be expressed as the closest whole dollar amount, with cents omitted.

Duty charges, if any, shall be included in the cost, regardless of whether or not duty free certificates are obtained.

A "subcontract" is any contract, purchase order, material order, interorganizational transfer, etc. that is a direct cost to this acquisition. The Offeror shall provide sufficient detail to support and explain all costs proposed. For the purposes of the Cost Volume, a Significant Subcontractor is defined as any subcontractor whose estimated value exceeds 10% of the proposed Contract Value. All values are inclusive of fee.

Offerors shall identify the subcontractors who are considered significant. A proposed Significant Subcontractor shall complete **Exhibits 1 through 4** and provide the same supporting information that is requested from the Prime Offeror. Prospective Significant Subcontractors may submit proprietary cost data, under separate cover, directly to the Government no later than the date and time specified in the instructions for receipt of proposals for this RFP.

In addition, the Offeror shall identify the contract type (e.g, FFP, T&M, CPFF, etc...) for all Significant and Non-Significant subcontractors. Offerors shall provide a copy of each subcontractor's Cost/Price Volume/Quote (significant and non-significant) to enable the Government to verify the proposed subcontractor's costs against the Offeror's proposal.

Per FAR 15.404-3(b), Offerors and all subcontractors are instructed to "conduct appropriate cost or price analyses to establish the reasonableness of proposed subcontract prices" and "include the

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results of these analyses in the price proposal.” The proposal shall provide details and a discussion of all adjustments made to the subcontractor’s Price/Cost proposal, including any adjustments based on technical findings, rate adjustments, and fee adjustments. The proposal shall provide a discussion on the use or non-use of any adjustments based on Offeror history with the subcontractor.

All pricing and estimating techniques shall be clearly explained in detail (projections, rates, ratios, percentages, factors, etc.) and shall support the proposed costs in such a manner that audit, computation, and verification can be accomplished. All past actuals shall show the periods of time and costs in detail when used as a basis for estimating the proposed costs.

In order to establish the reasonableness and realism of the proposed costs, and the extent to which costs reflect performance addressed in the Mission Suitability Volume proposal, each Offeror, including proposed Significant Subcontractors, shall submit the required other than certified cost or pricing data (exhibits and supporting narrative) set forth in this provision. These data requirements differ by Prime Offeror, JV Entity, JV partner, Significant Subcontractors, and Non-Significant Subcontractors as indicated in Section (b) below.

(b) Cost Volume Proposal Format

(1) WORK BREAKDOWN STRUCTURE

The Work Breakdown Structure (WBS) that shall be used for Cost Volume proposal purposes is specified in contract, Section J, clause GSFC 52.211-101 LIST OF ATTACHMENTS, Attachment J, Contractor Work Breakdown Structure.

(2) PRIME OFFEROR OR JV ENTITY AND SIGNIFICANT SUBCONTRACTOR DIRECT AND INDIRECT RATES

Exhibit 1 Summarizes direct and indirect rates and pools. The following are the requirements for supporting documentation.

Direct Labor: Offerors shall provide supporting documentation for all unburdened direct labor rates. For unburdened direct labor rates, examples of supporting documentation are: 1) Forward Pricing Rate Agreement (if applicable), current Forward Pricing Rate Submission/Proposal, 2)

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payroll records, and 3) salary surveys. If salary surveys are provided as supporting documentation, the Offeror shall identify and provide a copy of such surveys. Offerors shall also include any calculations made to derive the proposed direct labor rate from the salary survey. Failure to provide supporting documentation for the unburdened direct labor rates may result in the Government adjusting the proposed price by utilizing in its evaluation the higher of the proposed unburdened direct labor rate and readily available market data.

The Offeror shall also identify in its price schedule all non-exempt labor categories and provide sufficient supporting data for the Government to evaluate and verify that these categories comply with the current Department of Labor wage determinations. This includes the location and wage determination number used in calculating the rate.

Indirect Rates: Offerors shall provide the basis and supporting documentation for all indirect rates. Offerors are required to provide their current Forward Pricing Rate Agreement (FPRA) with DCMA/DCAA (if applicable). If an Offeror does not have a current FPRA, it shall provide its current Forward Pricing Rate Submission/Proposal submitted to DCMA/DCAA if applicable) and the past three years of historical actual indirect rates. As stated in Provisional Billing Rate approval letters, they are not to be used for proposal purposes. If an offer has a Forward Pricing Rate Submission/Proposal and does not utilize those rates in their proposal (e.g., utilizes a Forward Pricing Rate Recommendation instead), rationale and supporting documentation shall be provided to support the rate deviation. Offerors shall also provide rationale/calculations for the proposed indirect rates that are not included in the Offeror's Forward Pricing Rate Agreement, or Forward Pricing Rate Submission/Proposal. If the Offeror is using historical data as the basis of its indirect rates, then it shall provide rationale/calculations on how the proposed indirect rates were calculated from the actuals and an explanation in support of any significant changes in either expenses or base of application that exist from one year to the next. Failure to provide supporting documentation and rationale may result in the Government adjusting the proposed cost in its evaluation.

Escalation: The escalation proposed for labor must be stated along with the actual escalation experienced in the last three years. Provide a statement of rationale, including the derivation, for the proposed escalation rates. If escalation is not proposed, explain why. The Offeror shall also

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discuss the rationale for any escalation proposed for the other cost elements. The Offeror shall include the company's escalation history for each other cost element experienced in the past three years. The Offeror shall provide supporting documentation which may include but is not limited to escalation indices, Forward Pricing Rate Agreements, negotiated union contracts, etc. Failure to provide supporting documentation for proposed escalation factors may result in the Government adjusting the proposed price in its evaluation by utilizing the higher of the proposed escalation and readily available escalation data.

(3) PRIME OFFEROR OR JV ENTITY AND SIGNIFICANT SUBCONTRACTOR
PRODUCTIVE WORK YEAR CALCULATIONS

Exhibit 2 summarizes the Offeror's productive work year and how it is calculated. If exempt and non-exempt employees are proposed, separate exhibits must be provided for each classification.

(4) PRIME OFFEROR OR JV ENTITY AND SIGNIFICANT SUBCONTRACTORS
SUMMARY OF ESTIMATED COST PLUS MAXIMUM AVAILABLE AWARD FEE BY
ELEMENTS OF COST

Exhibit 3 summarizes the proposed total direct labor hours, total estimated cost and maximum available award fee by Government Fiscal Year (GFY), for the base contract and each option. (Separate exhibit to be submitted for the base contract and each option). Please note that base fee is not applicable to this procurement and if proposed will not be considered (refer to Clause 1852.216-85 Estimated Cost and Award Fee)

Offerors proposing travel shall provide a travel matrix as part of their proposal detailing the origin, destination, number of people, number of days, per diem amounts, hotel costs, and any other misc. cost. Supporting documentation shall be provided detailing the source of the proposed per diem, hotel costs and any other misc. cost.

Offerors proposing Other Direct Costs (ODCs) shall provide a breakout of the items included as well as supporting documentation to support those proposed costs. Failure to provide supporting documentation for proposed travel and ODCs may result in the Government adjusting the proposed price in its evaluation by utilizing the higher of the proposed travel/ODCs and readily available data.

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(5) PRIME OFFEROR OR JV ENTITY AND SIGNIFICANT SUBCONTRACTORS TOTAL COST THROUGH G&A BY WORK BREAKDOWN STRUCTURE (WBS)

Exhibit 3A Summarizes the total cost through WBS Level 4.

(6) PRIME OFFEROR OR JV ENTITY AND SIGNIFICANT SUBCONTRACTORS TOTAL DIRECT LABOR HOURS, LABOR COSTS AND NON-LABOR DETAIL BY WBS

Exhibit 3B summarizes the Direct Labor Hours by WBS and **Exhibit 3C** summarizes the Direct Labor Costs by WBS.

(7) PRIME OFFEROR AND SIGNIFICANT SUBCONTRACTOR MATERIAL ITEMS

Exhibit 4 summarizes all material to be purchased for the base contract and each option. Offerors shall provide supporting documentation (Quotes, Purchase Orders, Historical Actuals, etc.) to support the top 70% of material items. The bill of material shall be completed by descending order of cost. Failure to provide supporting documentation may result in the Government adjusting the proposed material prices in its evaluation by utilizing the higher of the proposed material item and readily available data.

(8) PRIME OFFEROR FUNDING SUMMARY BY GOVERNMENT FISCAL YEAR (GFY)

Exhibit 5 provides the proposed funding required by GFY for the base contract and each option.

(9) BASIS OF ESTIMATES (BOE)

The BOEs are to be submitted for the entire period of performance (Base plus Options) at the lowest WBS Level only (WBS Level 4). The Offeror shall give the Government insight into the cost estimating thought processes and methodologies used by the Offeror in estimating the quantities of labor hours/costs, other direct costs, etc. required for successful performance by elements of cost. Emphasis should be placed on a description of the cost estimating processes and methodologies themselves, and how these relate to the technical approach described in the proposal. The information provided under this section, along with audit information, will be used to assess the cost realism aspect of Mission Suitability Volume proposal.

As a minimum, include the following information in the BOE in the format that is most

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convenient, preferably the format which shall be used for the actual contract performance:

- Narrative explaining how you arrived at your estimate of labor hours, including: if your estimate was based on similar program(s), in which case, identify and provide a brief reason why the programs are similar; a standard, in which case, identify the standard and explain if it is from the industry, your company, or a product; or engineering judgment, in which case, explain the philosophies used.
- Complexity factors utilized--all factors must be identified with a detailed explanation of the basis.
- Explain in detail how your Program Management and Administrative Support are costed. If direct, explain the estimating approach and assumptions (hours per year, percentage of direct labor hours or costs, etc.). If indirect, identify what pool each function is included.
- Use of any established cost-estimating relationships.
- How subcontracts were estimated. Please note if you have experience with the proposed subcontractor(s), if utilized. For any Significant Subcontract that has a potential estimated value in excess of the threshold stated in Section (a) instructions above, BOEs must be provided for that subcontract following the above specified format.
- An explanation of how all materials, travel, equipment, and other direct costs were estimated.

BOEs shall be submitted by both the Prime Offeror and all Significant Subcontractors and shall comply with the BOE page limitations set forth in the “**Proposal Preparation—General Instructions**” provision of this RFP.

(10) PRIME OFFEROR DCAA AND DCMA INFORMATION

Exhibits 6A and 6B provide the requested information necessary to contact appropriate audit authorities regarding the Offeror’s business systems, status of financial disclosures, negotiated forward pricing rates, etc. Offerors must ensure that the information provided is current and accurate.

(11) PRIME OFFEROR SMALL BUSINESS SUBCONTRACTING PLAN GOALS

As addressed in the Mission Suitability Volume Instructions **Subfactor C**, the Offeror shall

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complete **Exhibits 7A, 7B, and 7C** which provides a breakdown of the Offeror's proposed goals, by small business category, expressed in terms of both a percent of the TOTAL CONTRACT VALUE and a percent of TOTAL PLANNED SUBCONTRACTS. **Exhibit 7A** shows a breakdown of the proposed goals for the base contract period, **Exhibit 7B** shows the proposed goals for each individual option, and **Exhibit 7C** summarizes the proposed goals for the total contract (base period plus options).

(12) DIRECT LABOR RATES, INDIRECT RATES AND FEE MATRICES

Prime Offerors shall complete **Attachment K, DIRECT LABOR RATES, INDIRECT RATES, AND FEE MATRICES**, for each Contract Year. The direct labor and indirect rates and fee percentages included in **Attachment K** are "not to exceed" bid rates. (Note: this "not to exceed" designation does not apply to the reimbursement of actual costs in task performance, but only to the pricing of task estimates and the negotiation of task values). During contract performance, Offerors will be permitted to offer costs for task orders to be placed at lower rates/fees than are listed in these matrices in accordance with the "**Task Ordering Procedure**" and "**Supplemental Task Ordering Procedures**" clauses of this contract. The direct labor categories proposed must reflect all labor categories and levels within each individual labor category anticipated to perform the requirements of the Statement of Work and should range from entry level to the most senior level.

In **Attachment K**, the Prime Offeror shall propose, by Contract Year, unburdened direct labor rates for all labor categories in Section 1; all rates or factors for Cost Estimating Relationships in Section 2; and all individual bid indirect rates in Section 3, clearly delineating Onsite, and Offsite rates. Onsite is defined as not at the Contractor's facility. Offsite is defined as the Contractor's facility. The Offeror's fee percentage(s) included in Section 4 of the matrices shall be used to calculate the fixed fee for performing all task orders issued under the resultant contract. In Section 5, the Prime Offeror shall include a fully-loaded direct labor rate matrices for each Significant Subcontractor. In Section 6, provide Position Qualifications (PQs) for all Prime Offeror proposed direct labor categories specified in Section 1 and all Significant Subcontractors' proposed direct labor categories specified in Section 5. Please note the Prime and Significant Subcontractor(s) are to insert company-specific PQs in Section 6.

(End of provision)

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GSFC 52.215-231 PAST PERFORMANCE VOLUME. (FEB 2025)

An Offeror's past performance record indicates the relevant quantitative and qualitative aspects of performing services or delivering products similar in size and content to the requirements of this acquisition.

The Offeror shall provide, at a minimum, the following information in support of its proposal to facilitate the evaluation of the offeror's past performance as related to the requirements of the proposed contract.

(a) *INFORMATION FROM THE OFFEROR*

Prime Offerors shall furnish the information requested below for all of your most recent contracts (completed and ongoing) for similar efforts with a total cost/fee incurred of \$250,000,000 that your company has had within the last 5 years of the RFP release date.

Joint Venture (JV) Prime Offerors should provide at least one of the past performance referenced contracts required above in the name of the JV. If the JV is newly established and cannot provide past performance referenced contracts in the name of the JV, then past performance referenced contracts from individual prime partners of the JV should be submitted for consideration, with at least one of the JV past performance references from each JV partner. For the purposes of the Past Performance Volume, a protégé prime partner proposed as part of a mentor protégé prime JV, shall follow the instructions for a significant subcontractor in this provision.

A proposed significant subcontractor for the past performance volume is defined as any proposed subcontractor that is estimated to meet/exceed a total cost/fee of \$140,000,000. *Note, the definition of significant subcontractor for the past performance evaluation may be different than for the cost evaluation.* The Offeror shall provide the information requested below for any significant subcontractor(s) for those similar efforts within the last 5 years of the RFP release date with a total cost/fee incurred of at least 25% of the total estimated dollar value of the proposed significant subcontract.

For example (note, these example numbers may not relate to this specific procurement), if a procurement is valued at a total value of \$100M and a proposed significant subcontractor for the

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effort has a total proposed cost/fee of \$30M, the Offeror shall provide relevant current/past contract references that have a total cost/fee incurred at/above \$7.5M (25% of \$30M) for that significant subcontractor.

If a Prime Offeror or significant subcontractor is submitting past performance data on a current/past contract vehicle that includes multiple tasks, orders, etc, all effort under that contract vehicle may be consolidated for the purposes of meeting the total cost/fee incurred in the instructions above and for the purpose of evaluating contract relevance for the proposed requirement.

The Offeror shall provide an estimated value and percentage of work to be performed on this contract by the Prime Offeror and each significant subcontractor. Indicate the primary functions (SOW, WBS, etc...) to be performed by the Prime Offeror and each proposed significant subcontractor. Indicate which contracts are most related (i.e. similar in size and content) and how they are related to the proposed effort, as well as which contracts were performed by the division of your company (if applicable) that will perform the proposed contract/subcontract.

If applicable, Offerors may provide the experience or past performance of a parent or affiliated or predecessor company to an Offeror (including Joint Venture prime partner companies and/or a parent or affiliated company that is being otherwise proposed as a subcontractor on this effort) where the firm's proposal demonstrates that the resources of the parent or affiliate or predecessor will affect the performance of the Offeror. The Offeror shall demonstrate that the resources of the parent or affiliate or predecessor company (its workforce, management, facilities or other resources) shall be provided or relied upon for contract performance such that the parent or affiliate or predecessor will have meaningful involvement in contract performance.

The Offeror shall provide the following information on all past/current contract references that meet the above criteria for the Prime Offeror and each significant subcontractor:

- Customer's name, E-mail address, and telephone number of both the lead contractual and technical personnel most familiar with the Offeror's performance record. *(Please verify the information provided is current and correct).*

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- Cage Code and/or DUNS Number of the contractor performing the work.
- Contract number, type, and total original and present or final contract value.
- Date of contract, place(s) of performance, and delivery dates or period of performance.
- Brief description of contract work and comparability to the proposed effort. It is not sufficient to state that it is comparable in magnitude and scope. Rationale must be provided to demonstrate that it is comparable. Address the amount of subcontracted work/personnel compared to the proposed subcontract approach for this effort.
- Method of acquisition: competitive or noncompetitive.
- Nature of award: initial or follow-on. If initial, indicate whether award was preceded by a Government, customer, or Offeror financed study.
- Identify and explain major technical problems and how they were overcome. List any major deviations or waivers to technical requirements that were granted by the customer.
- Identify and explain completion successes and delays, including adherence to program schedules. Provide an assessment of the performance (technical and schedule) on these past programs and support these assessments with metrics such as award or incentive fees earned.
- Cost management history; identify and explain any cost overruns and underruns, and cost incentive history, if applicable.
- Average number of personnel on the contract per year and percent turnover of personnel per year.
- Recent customer evaluations of past performance including Award Fee Evaluation results, Fee Determination Official letters, Annual Performance Evaluation Forms, etc. (Excluded from the page limitation).

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- Small Business Subcontracting Plan history; provide latest Individual Subcontract Report (ISR) and Summary Subcontract Report (SSR) (formerly known as the SF 294 and 295 reports) and supporting rationale (Excluded from the page limitation).
- Statement of contract past safety performance and a record of your company's OSHA recordable injuries and illnesses for the past 3 years.
- List any contracts terminated (partial or complete) within the past 5 years and basis for termination (convenience or default). Include the contract number, name, address, and telephone number of the terminating officer (please verify telephone numbers). Include contracts that were "descoped" by the customer because of performance or cost problems. (Excluded from the page limitation).

(b) PRIOR CUSTOMER EVALUATIONS (PAST PERFORMANCE QUESTIONNAIRES)

The offeror and any proposed significant subcontractor(s) [as defined in paragraph (a)] shall provide the questionnaires provided as Enclosure 3 to each of the above references to establish a record of past performance. The Offeror shall instruct each of its references to return the questionnaire directly to the Government Contracting Officer via email. The questionnaire respondent shall be a representative from the technical customer and responsible Contracting Officer with direct knowledge of your firm's performance. If possible, the Offeror and any proposed significant subcontractor(s) shall provide questionnaires to customers from NASA contracts, other Government contracts, and commercial contracts. For proposed significant subcontractor(s), references shall concern only work performed by the subcontractor's business entity that will perform the work under this contract, if awarded.

The Offeror is responsible for ensuring that the questionnaire is completed and submitted, via email to Bruce.B.Tsai@nasa.gov no later than the closing date of this solicitation designated in Block 9 of the SF 33.

The Offeror shall include a list of those to whom the questionnaires were sent, including name of

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individual, phone number, e-mail address, organization, and contract number. Offerors shall include in their proposal the written consent of their proposed significant subcontractors to allow the Government to discuss the subcontractors' past performance evaluation with the Offeror.

(End of provision)

GSFC 52.233-2 GSFC MODIFICATION TO FAR 52.233-2 -- SERVICE OF PROTEST.
(SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Bruce.B.Tsai@nasa.gov

Prominently mark the email subject as follows:

Protest: Solicitation Number RFP **80GSFC25R7005**

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

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Clauses incorporated by reference:

FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1):

52.217-5 EVALUATION OF OPTIONS. (JUL 1990)

(End of by reference clauses)

PROSPECTIVE CONTRACTOR RESPONSIBILITY AND ELIGIBILITY STANDARDS
(OCT 2021)

(a) The procedures for determining whether prospective contractors and subcontractors are responsible are set forth in Federal Acquisition Regulation (FAR) Subpart 9.1 and NASA FAR Subpart 1809.1. Failure by the offeror to affirmatively demonstrate adequate compliance with the general standards of prospective contractor responsibility at FAR 9.104-1, and any special standards established for this acquisition under FAR 9.104-2, will result in a determination of non-responsibility. As with all aspects of prospective contractor responsibility, a finding of non-responsibility can be made at any time prior to contract award. Per FAR 9.103(b), if the prospective contractor is a small business concern, responsibility will be determined in accordance with Subpart 19.6, Certificates of Competency and Determinations of Responsibility. If the prospective contractor is a Section 8(a) participant, see Subpart 19.8.

(b) Additional requirements for eligibility have been established for this acquisition. The Government may communicate with offerors about the eligibility requirement(s) identified below outside of the evaluation process. This communication does not constitute discussions as defined in FAR 15.306. If the following eligibility requirements cannot be made acceptable to the Government, the offeror will be considered ineligible for award:

(1) Organizational Conflict of Interest (OCI) Plan in accordance with the Notice of Potential Organizational Conflicts of Interest in Section L and FAR 9.504. The proposed OCI plan shall be consistent with all other areas of the proposal. Material inconsistencies between the plan and other proposal areas may render the proposal invalid, resulting in an unacceptable proposal that is ineligible for award.

(End of text)

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**GSFC 52.215-300 SOURCE SELECTION AND EVALUATION FACTORS - GENERAL.
 (SEP 2019)**

(a) Source Selection

This competitive negotiated acquisition shall be conducted in accordance with FAR 15.3, "Source Selection", and NASA FAR Supplement (NFS) 1815.3, same subject. The Source Evaluation Board procedures at NFS 1815.370, "NASA Source Evaluation Boards" will apply.

The attention of offerors is particularly directed to NFS 1815.305, "Proposal evaluation" and to NFS 1815.305-70, "Identification of unacceptable proposals".

A trade-off process, as described at FAR 15.101-1, will be used in making source selection.

(b) Evaluation Factors and Subfactors

The evaluation factors are Mission Suitability, Cost, and Past Performance. These factors, as described at NFS 1815.304-70, will be used to evaluate each proposal. This Section M provides a further description for each evaluation factor, inclusive of subfactor. Only the Mission Suitability factor is numerically scored.

(c) Relative Order of Importance of Evaluation Factors

The Cost Factor is significantly less important than the combined importance of the Mission Suitability Factor and the Past Performance Factor. As individual Factors, the Mission Suitability Factor is more important than the Past Performance Factor, which is more important than the Cost Factor.

(End of provision)

GSFC 52.215-311 MISSION SUITABILITY EVALUATION FACTOR. (MAY 2022)

(a) In accordance with FAR Subpart 15.3 and NFS Subpart 1815.3, the Government will evaluate the offeror's demonstrated understanding of the Mission Suitability subfactor requirements and approach for accomplishing those requirements, the appropriateness of the offeror's proposed resources, and associated programmatic risk. A lack of resource realism may adversely affect the offeror's Mission Suitability evaluation and result in cost realism adjustments under the Cost factor. The Mission Suitability evaluation will take into consideration whether the resources proposed are consistent with the proposed efforts and accomplishments associated with each subfactor or whether they are overstated or understated for the effort to be accomplished as described by the Offeror and evaluated by NASA. The Government will validate the consistency between all proposal volumes and any inconsistencies identified may indicate a lack of understanding and adversely impact the offeror's adjectival rating(s) and score. Only that information provided within the proposal will be evaluated; any reference to previously submitted information, if any, will be considered only to the extent the information is

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resubmitted as part of the proposal. Information incorporated by reference will not be considered or evaluated.

The Government may choose to incorporate any positive aspects of an Offeror's approach to meeting/exceeding contract requirements into the final contract, particularly if any positive proposal area results in Strength or Significant Strength findings in the Mission Suitability evaluation. An Offeror's proposed Mission Suitability approach shall be consistent with its proposed cost/price information.

If an Offeror elects to propose enhancements in accordance with the Mission Suitability Volume instructions in provision GSFC 52.215-210, the Offeror's completed Contract Attachment L, "Contractor Proposed Enhancements," and the description of the associated benefits for each proposed enhancement under the applicable Mission Suitability subfactor, will be evaluated for reasonableness, effectiveness, and overall performance benefit.

Subfactor A – Technical Approach

A.1 Introduction to Technical Approach

The Government will evaluate the Offeror's introduction to its technical approach, including all areas and information in Section L, GSFC 52.215-210, Subsection A.1, for adequacy, efficiency, effectiveness, clarity, reasonableness, flexibility, innovation, and degree of risk.

A.2 Systems Engineering

The Government will evaluate the Offeror's overall systems engineering approach, including all areas and information in Section L, GSFC 52.215-210, Subsection A.2, for adequacy, scope, soundness, completeness, substantiation, effectiveness, flexibility, and degree of risk.

The Government will evaluate the Offeror's MEL for adequacy, clarity, reasonableness, validation, substantiation, effectiveness, and degree of risk.

A.3 System Performance

The Government will evaluate the adequacy of the Offeror's end-to-end systems performance, including all areas and information in Section L, GSFC 52.215-210, Subsection A.3, for adequacy, compliance, substantiation, robustness, scalability, extensibility, completeness, innovation, reasonableness, flexibility, degree of risk, and likelihood of successful implementation.

A.4 Instrument Design

The Government will evaluate the risk, heritage, and maturity of the Offeror's SMBA mission design solution, including all areas and information in Section L, GSFC 52.215-210, Subsection A.4, for adequacy, clarity, completeness, reasonableness, effectiveness, innovation, flexibility, degree of risk, and likelihood of successful implementation.

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A.5 Manufacturing, Integration and Test Approach

The Government will evaluate the Offeror's approach for manufacturing, integration and test including all areas and information in Section L, GSFC 52.215-210, Subsection A.5, for adequacy, reasonableness, flexibility, effectiveness, degree of risk, and likelihood of successful implementation.

A.6 Storage

The Government will evaluate the Offeror's approach for storage, including all areas and information in Section L, GSFC 52.215-210, Subsection A.6, for adequacy, reasonableness, flexibility, effectiveness, and degree of risk.

A.7 Spacecraft Integration and Test and Mission Operations Support

The Government will evaluate the Offeror's spacecraft integration and test and mission operations support approach, including all areas and information in Section L, GSFC 52.215-210, Subsection A.7 for adequacy, soundness, effectiveness, efficiency, flexibility, completeness.

A.8 Risk

The Government will evaluate the Offeror's risk management approach, including all areas and information in Section L, GSFC 52.215-210, Subsection A.8, for adequacy, reasonableness, completeness, clarity and effectiveness.

Subfactor B – Management Approach

B.1 Management Approach

The Government will evaluate the Offeror's overall management approach, including all areas in Section L, GSFC 52.215-210, Subsection B.1, for adequacy, efficiency, effectiveness, clarity, reasonableness, teamwork, degree of risk, and likelihood of successful implementation.

B.2 Schedule

The Government will evaluate the Offeror's Integrated Master Schedule and schedule management process, including all areas and information in Section L, GSFC 52.215-210, Subsection B.2, for adequacy, realism, efficiency, reasonableness, completeness, flexibility, degree of risk, and likelihood of successful implementation.

B.3 Subcontracting

The Government will evaluate the Offeror's subcontracting strategy and process, including all areas and information in Section L, GSFC 52.215-210, Subsection B.3, for adequacy, reasonableness, efficiency, effectiveness, flexibility, degree of risk, and likelihood of successful implementation.

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B.4 Management Structure

The Government will evaluate the Offeror's management structure, including all areas and information in Section L, GSFC 52.215-210, Subsection B.4, for adequacy, efficiency, effectiveness, completeness, teamwork, reasonableness, and likelihood of successful completion.

B.5 Staffing

The Government will evaluate the Offeror's staffing approach, including all areas and information in Section L, GSFC 52.215-210, Subsection B.6, for adequacy, appropriateness, effectiveness, flexibility, degree of risk, and likelihood of successful implementation.

B.6 Facilities

The Government will evaluate the Offeror's facilities approach, including all areas and information in Section L, GSFC 52.215-210, Subsection B.7, for adequacy, appropriateness, effectiveness, flexibility, degree of risk, and likelihood of successful implementation.

B.7 Safety and Mission Assurance

The Government will evaluate the Offeror's safety and mission assurance approach, including all areas and information in Section L, GSFC 52.215-210, Subsection B.8 which also covers assurance and surveillance of subcontractors of critical hardware components, for adequacy, reasonableness, effectiveness, and degree of risk.

Subfactor C – SMALL BUSINESS UTILIZATION (SBU)

NASA will evaluate the Small Business Subcontracting Plan, as required by FAR clause 52.219-9 ALTERNATE II, "Small Business Subcontracting Plan," which applies to all Offerors, except small businesses. The evaluation of Commitment to Small Business Program applies to all Offerors.

(A) Small Business Subcontracting Plan

(1) The Small Business Subcontracting Plan will be evaluated in terms of the Offeror's proposed subcontracting goals for first tier subcontractors (overall subcontracting goals and individual subcontracting goals by category) in comparison to the Contracting Officer's assessment of the appropriate subcontracting goals for this procurement. The Offeror's Small Business Subcontracting Plan will also be evaluated in terms of meeting the requirements of FAR 19.704 Subcontracting Plan Requirements. NASA will consider the amount of work that the prime contractor plans to perform when determining whether a subcontracting plan is acceptable. The evaluation of the Small Business Subcontracting Plan will be based on TOTAL CONTRACT VALUE (basic and all options combined).

(2) Since Small Businesses are not required to submit subcontracting plans, NASA will only evaluate the amount of work that the small business prime and any small businesses proposed to perform at the first tier subcontract level. The proposed amount of work that the prime small

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business and first tier small business subcontractors will perform will be evaluated against the Contracting Officer's assessment of the overall subcontracting goal for this procurement. For small business primes and their first tier subcontractors, individual subcontracting goals by small business categories will not be evaluated.

(B) Commitment to Small Businesses

(1) NASA will evaluate the extent to which the work performed by a small business subcontractor(s) is "high technology" work as defined in NFS 1819.001. NASA also will evaluate the extent of commitment to use the subcontractor(s) (enforceable vs. non-enforceable commitments).

(2) NASA will evaluate the extent to which the identity of the small business subcontractor is specified in the proposal as well as the extent of the commitment to use small businesses. (For Small Business Offerors, NASA will evaluate this only if subcontracting opportunities exist.)

(3) NASA will evaluate the Offeror's established or planned procedures and organizational structure for small disadvantaged business (SDB) outreach, assistance, counseling, market research and SDB identification, and relevant purchasing procedures. (For Other than Small Business Offerors, this information should conform to its submitted Small Business Subcontracting Plan. For Small Business Offerors, NASA will evaluate this only if subcontracting opportunities exist.)

(4) NASA will evaluate the Offeror's participation and/or proposed participation in the Mentor Protégé program and their planned commitment to enter into mentor-protégé agreements to provide appropriate developmental assistance to enhance the protégé's ability to perform successfully under contracts and/or subcontracts.

(b) In accordance with NFS 1815.304-70(b)(1), subfactors will be numerically weighted and scored in accordance with the 1,000-point scale provided below.

Subfactor	Points
Subfactor A – Technical Approach	700
Subfactor B – Management Approach	200
Subfactor C – Small Business Utilization (SBU)	100
Total	1,000

(c) In accordance with FAR 15.001, weaknesses, significant weaknesses, and deficiencies will be assessed based on the following definitions:

Weakness means a flaw in the proposal that increases the risk of unsuccessful contract performance.

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Significant weakness in the proposal is a flaw that appreciably increases the risk of unsuccessful contract performance.

Deficiency is a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

Additionally, strengths and significant strengths will be assessed based on the following definitions:

Strength is an aspect of the proposal that will have some positive impact on the successful performance of the contract.

Significant strength is some aspect of the proposal that greatly enhances the potential for successful contract performance.

(d) The Government will assign adjectival ratings and numerical scores for each subfactor using the adjectival ratings, definitions, and percentile ranges set forth at NFS 1815.305(a)(3)(A).

(e) The Government will establish a total Mission Suitability factor numerical score by adding all of the subfactor points assessed. A summary adjectival rating will not be assigned for this factor.

(End of provision)

GSFC 52.215-321 COST EVALUATION FACTOR (COMPLETION SERVICES OR HARDWARE) (OCT 2023)

The proposed costs and Attachment K, DIRECT LABOR RATES, INDIRECT RATES, AND FEE MATRICES will be assessed to determine reasonableness and cost realism. The evaluation will be conducted in accordance with FAR 15.305(a)(1) and NFS 1815.305(a)(1)(B).

Offerors should refer to FAR 2.101(b) for a definition of “cost realism” and to FAR 15.404-1(d) for a discussion of “cost realism analysis” and “probable cost”.

Both the “proposed and probable cost” will reflect the Offeror’s proposed fee amount. Proposed fee will be corrected to resolve mathematical errors, if any. Proposed fee will not be adjusted as a result of any cost realism adjustments to establish the probable cost.

Both the proposed and probable cost assessment will be presented to the Source Selection Authority.

(End of provision)

GSFC 52.215-331 PAST PERFORMANCE EVALUATION FACTOR. (FEB 2025)

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An offeror's past performance will be evaluated based on FAR Part 15 and the evaluation criteria in this provision. All past performance references must meet the "recent" and minimum total cost/fee expenditures criteria provided below for both prime contractor references and significant subcontractor references in order to be evaluated.

For purposes of past performance, the term "Offeror" refers to a prime contractor and its significant subcontractors. Accordingly, the past performance of significant(s) subcontractors shall also be evaluated and attributed to the Offeror. The past performance of a significant subcontractor will be compared to the work proposed to be performed by that subcontractor, and weighted accordingly in assigning the overall past performance adjectival rating to the Offeror. The past performance of the prime contractor will be weighted more heavily than any significant subcontractor or combination of significant subcontractors in the overall past performance evaluation.

A "recent" contract is a contract that is ongoing or completed less than 5 years prior to the issuance of this RFP. Contracts completed more than 5 years prior to issuance of this RFP will not be considered recent and will not be considered or evaluated.

A "relevant" contract depends on the size and content of the contract with respect to this acquisition.

For a prime contractor's contract reference(s) to be considered at least minimally "relevant", it must meet/exceed a total cost/fee incurred of at least \$250,000,000.

A proposed significant subcontractor for this procurement is defined as any proposed subcontractor that is estimated to meet/exceed a total cost/fee of \$140,000,000. *Note, the definition of significant subcontractor for the past performance evaluation may be different than for the cost evaluation.*

For a significant subcontractor's contract reference(s) to be considered at least minimally "relevant", it must meet/exceed a total cost/fee incurred of at least 25% of that portion of this procurement that the subcontractor is proposed (or estimated) to perform.

If the contract is deemed recent and meets the above minimum cost/fee expenditures criteria for size, the Government will then determine the degree of relevance - i.e., level of pertinence - of the contract based on size and content. Size will not be further evaluated beyond the minimum requirement. The term "content" means the type and complexity of services, work, or supplies, in comparison to the requirements of this solicitation. The Government may consider past quantities and periods of performance in evaluating overall relevance.

The performance evaluation will be based primarily on customer satisfaction and/or contract data in meeting technical, schedule, cost, and management requirements. Additional performance factors may include contract administration, occupational health, safety, security, subcontracting

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plan goals and small disadvantaged business participation targets, if applicable, and other contract requirements.

The Government may review and consider past performance information on other contracts that it is aware of or that are made available from other sources and inquiries with previous customers. These contracts (if any) must meet the above “recent” and minimum total cost/fee expenditures criteria to be evaluated.

As part of the past performance evaluation, the Government may attribute the experience or past performance of a parent or affiliated or predecessor company (including Joint Venture prime partner companies and/or a parent or affiliated company that is being otherwise proposed as a subcontractor on this effort) to the proposed prime contractor and/or significant subcontractor(s) where the proposal demonstrates that the resources of the parent or affiliate or predecessor company will affect the performance of the proposed prime contractor and/or significant subcontractor(s). The Government will take into consideration whether the resources of the parent or affiliate or predecessor company (its workforce, management, facilities or other resources) will be provided or relied upon for contract performance such that the parent or affiliate will have meaningful involvement in contract performance. These contracts (if any) must meet the above “recent” and minimum average annual cost/fee expenditures criteria to be evaluated.

Offerors proposing as a joint venture will be evaluated on the past contracts performed by the joint venture and/or its prime joint venture partners. Joint Venture mentor/protégé proposals will evaluate the protégé partner as a significant subcontractor.

An Offeror shall not be rated favorably or unfavorably if the Offeror does not have a record of “recent” and “relevant” past performance or if a record of past performance is unavailable. In such cases the offeror will receive a “Neutral” rating. However, an offeror with favorable, recent, and relevant past performance that meets the minimum cost/fee expenditures indicated above may be considered more favorably than an offeror with no relevant past performance information.

The Government will consider an offeror’s explanation of any problems encountered on any identified contracts, and any corrective actions taken by the offeror.

The overall confidence rating assigned to an Offeror’s Past Performance (see below) will reflect a subjective evaluation of the information contained in the oral presentation, if applicable; written narrative; past performance evaluation input provided through customer questionnaires; and other references, if any, that the Government may contact for additional past performance information.

Past Performance Ratings – The level of confidence ratings set forth below will be used to evaluate the Past Performance factor for each offeror.

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Each of the adjective ratings below has a "performance" component and a "relevance" component as discussed above. As used in the ratings below, the term "pertinent" is equivalent to the term "relevant." The following adjectival rating guidelines will be used when subjectively assessing both components.

Very High Level of Confidence

The Offeror's relevant past performance is of exceptional merit and is very highly pertinent to this acquisition; indicating exemplary performance in a timely, efficient, and economical manner; very minor (if any) problems with no adverse effect on overall performance. Based on the Offeror's performance record, there is a very high level of confidence that the Offeror will successfully perform the required effort.

High Level of Confidence

The Offeror's relevant past performance is highly pertinent to this acquisition; demonstrating very effective performance that would be fully responsive to contract requirements with contract requirements accomplished in a timely, efficient, and economical manner for the most part with only minor problems with little identifiable effect on overall performance. Based on the Offeror's performance record, there is a high level of confidence that the Offeror will successfully perform the required effort.

Moderate Level of Confidence

The Offeror's relevant past performance is pertinent to this acquisition, and it demonstrates effective performance; fully responsive to contract requirements; reportable problems, but with little identifiable effect on overall performance. Based on the Offeror's performance record, there is a moderate level of confidence that the Offeror will successfully perform the required effort.

Low Level of Confidence

The Offeror's relevant past performance is at least somewhat pertinent to this acquisition, and it meets or slightly exceeds minimum acceptable standards; adequate results; reportable problems with identifiable, but not substantial, effects on overall performance. Based on the Offeror's performance record, there is a low level of confidence that the Offeror will successfully perform the required effort. Changes to the Offeror's existing processes may be necessary in order to achieve contract requirements.

Very Low Level of Confidence

The Offeror's relevant past performance does not meet minimum acceptable standards in one or more areas; remedial action required in one or more areas; problems in one or more areas which, adversely affect overall performance. Based on the Offeror's performance record, there is a very low level of confidence that the Offeror will successfully perform the required effort.

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Neutral

In the case of an Offeror without a record of relevant past performance or for whom information on past performance is not available, the Offeror may not be evaluated favorably or unfavorably on past performance [see FAR 15.305(a) (2) (ii) and (iv)].

(End of provision)